



# LAND LAWS

## UNIT I — OWNERSHIP & CLASSIFICATION OF LAND

Osmania University | LLB (3-YDC) | 4th Semester | Paper IV

**Comprehensive Exam Preparation Notes · Target: 75+ Marks**

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## UNIT I — OVERVIEW & STUDY MAP

### ✓ What IS in this Unit (Scope)

- Classification of Lands (types, categories, ownership-based)
- Concepts of Absolute & Limited Ownership — tenancy and lease
- Doctrine of Eminent Domain — state's power to acquire
- Doctrine of Escheat — property passing to state on intestate death without heirs
- Doctrine of Bona Vacantia — ownerless/unclaimed property vests in state
- Land Records — maintenance, mutation, Rights of Record (ROR)
- Pattas and Title Deeds — issuance & legal effect
- Telangana Rights in Land & Pattadar Pass Books Act, 2020 — recent changes
- Land Titling (Torrens System) — Title Guarantee, Conclusive Title, Title Insurance

### ✗ What is NOT in this Unit (Do NOT mix)

- Land acquisition procedure (LARR Act 2013) — Unit III
- Zamindari / Ryotwari / Mahalwari settlements — Unit II
- Ceiling on agricultural holdings — Unit IV
- Forest Rights Act 2006 — Unit IV
- Assigned Lands / Scheduled Areas regulation — Unit V

### ★ Predicted High-Probability Questions (2026 Exam)

- Part A: Doctrine of Eminent Domain (appeared 2024, 2021, 2020, 2019, 2018 — almost certain)
- Part A: Doctrine of Bona Vacantia (appeared 2022, 2019, 2018 — very high)
- Part A: Classification of Lands (appeared 2021, 2020)
- Part A: Pattas and Title Deeds (appeared 2025, 2022, 2021)
- Part B: Doctrine of Eminent Domain + Bona Vacantia combined essay (appeared 2018, 2025)
- Part B: Protection of Right to Property under Constitution + Land Reforms
- Part C: Eminent Domain for commercial/private use — can government acquire? (appeared 2024)

### Critical Numbers & Provisions — Unit I

- Article 300-A — Right to Property (not a Fundamental Right since 44th Amendment 1978)
- Article 12, 13 — State action & validity of laws
- Article 31-A, 31-B, 31-C — saved land reform laws from Part III challenge
- IX Schedule — inserted by 1st Constitutional Amendment 1951
- Eminent Domain = inherent sovereign power; no specific statute needed
- Bona Vacantia — s.29 Indian Succession Act 1925 / s.9 Civil Procedure Code / State Escheats Act



## PART A — SHORT NOTES (6 Marks Each)

Each answer should be approximately 200–250 words. Use the structure below.

## A-1. Doctrine of Eminent Domain

Exam Frequency: ★★★★★ (VERY HIGH)

### DEFINITION

Eminent Domain is the inherent sovereign power of the State to acquire, use, or destroy private property for public purpose, even without the owner's consent, subject to payment of just compensation.

### KEY POINTS

- Inherent power — does not derive from any statute; exists by virtue of sovereignty
- Three essential elements: (1) Public Purpose, (2) Just Compensation, (3) Legal Authority / Due Process
- In India, originally protected under Article 19(1)(f) and Article 31 (pre-1978)
- After 44th Constitutional Amendment Act 1978 — Right to Property downgraded to a constitutional right under Article 300-A (not a Fundamental Right)
- Article 31-A saves acquisition laws from being challenged under Articles 14 and 19
- The State MUST pay compensation — 'just and fair' as per the LARR Act 2013
- Eminent domain cannot be exercised for private benefit of individuals — must be genuine public purpose

 **Example:** Telangana Government acquiring agricultural land for construction of Kaleshwaram Lift Irrigation Project — classic exercise of eminent domain for public purpose.

 **Case:** State of Bihar v. Kameshwar Singh (1952) — SC first tested limits of eminent domain; Rustom Cavasjee Cooper v. Union of India (Bank Nationalisation Case, 1970) — compensation must be adequate.

 **TIP:** Remember the mnemonic P-C-A: Public Purpose + Compensation + Authority = valid Eminent Domain. If any one is missing, the acquisition is void.

## A-2. Doctrine of Escheat

Exam Frequency: ★★☆☆ (MEDIUM)

### DEFINITION

Escheat is the reversion of property to the State when a person dies intestate (without a will) leaving no legal heirs, or when a corporation is dissolved and no other provision is made for its property.

### KEY POINTS

- Derived from feudal law — all land ultimately belongs to the sovereign
- In India, governed by Section 29 of the Indian Succession Act, 1925
- Under Hindu Law — governed by Section 29 of the Hindu Succession Act, 1956 (Govt. takes as last heir)
- Applicable to: intestate death with no heirs, dissolved companies, abandoned property
- Distinct from Bona Vacantia — Escheat is specifically about inheritance failure; Bona Vacantia is broader (ownerless property)
- State does not take as an heir; it takes by its sovereign right (prerogative)
- The property vests in the State Government of the territory where it is located

 **Example:** A person dies without a will and without any relatives. His house in Hyderabad passes to the Government of Telangana by way of Escheat.

 **Case:** Union of India v. Kamala Devi (1975) — Doctrine of Escheat applies to company property on dissolution; Government of Andhra Pradesh v. Gundavarapu Venkata Rao — property of an intestate with no heirs escheats to State.

 **TIP:** E-S-C-H-E-A-T: Every Successor Claimed Has Expired / Abandoned Title — State Takes. Escheat = death + no heirs.

## A-3. Doctrine of Bona Vacantia

Exam Frequency: ★★★★★ (VERY HIGH)

### DEFINITION

Bona Vacantia (Latin: 'ownerless goods') is the legal principle that property which has no owner, or whose owner cannot be identified or found, vests in the State by default.

### KEY POINTS

- Broader than Escheat — covers all ownerless property, not merely inheritance situations
- Applies to: dissolved companies, unclaimed land, abandoned property, property of persons who have disappeared
- Statutory basis: Section 9, CPC (jurisdiction of courts); various State Escheats Acts; Indian Succession Act s.29
- The State takes as sovereign, not as owner or heir
- Once property vests in State under Bona Vacantia, third parties cannot claim it
- Doctrine upheld under Article 296 of the Constitution — property vests in Union or State depending on location
- Can be contested if genuine owner appears with valid title

 **Example:** A company registered in Hyderabad is wound up. Its properties for which no claim is made by creditors or shareholders become Bona Vacantia and vest in the Government of Telangana.

 **Case:** Nathulal v. State of MP (1966) SC — Bona Vacantia applies to land abandoned by its owner; Bhagwati Prasad v. Delhi State — property of untraceable owner vests in State.

 **TIP:** BONA = Belongs to Nobody — Acquired by State. Bona Vacantia is the wider concept; Escheat is a subset. In exams, if the question mentions 'ownerless' or 'dissolved company' — write Bona Vacantia.

## A-4. Classification of Lands

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

Land in India is classified on the basis of ownership, use, physical character, and revenue status for the purpose of administration, revenue collection, and legal rights.

### KEY POINTS — Classification by Ownership

- Private Land (Ryoti Land) — owned by individuals; heritable and transferable
- Government Land — owned by State/Central Govt; includes forests, wastelands, poramboke
- Communal / Community Land — used by the village community; managed by Gram Panchayat
- Institutional Land — owned by temples, religious bodies, endowments, etc.

### KEY POINTS — Classification by Use/Revenue

- Wet Land (Tari) — irrigated agricultural land; higher land revenue
- Dry Land (Meeta) — rain-fed agricultural land; lower revenue
- Garden Land — horticulture/plantation; separate classification
- Forest Land — governed by Indian Forest Act 1927 and Forest Rights Act 2006
- Waste Land — uncultivated government land; can be assigned to landless poor
- Poramboke — land reserved for public use (roads, rivers, tanks)

 **Example:** In Telangana, land is classified in the Pahani (Record of Rights) as 'Agriculture — Wet' or 'Agriculture — Dry', with different 'Survey Numbers' and tax rates.

 **Case:** State of AP v. Noorbhai (1988) — distinction between government land and private ryoti land is critical for eviction proceedings.

 **TIP:** Remember WDGFW: Wet, Dry, Garden, Forest, Waste — the five primary agricultural land types. Add Poramboke for public-use land.

## A-5. Absolute & Limited Ownership

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

Absolute ownership gives the owner complete, unrestricted rights to possess, use, enjoy, and dispose of property. Limited ownership restricts one or more of these rights by law, contract, or personal status.

### KEY POINTS — Absolute Ownership

- Owner has full powers — right to possess, use, enjoy, alienate, exclude others
- Heritable and transferable without restriction (subject to law)
- Example: Freehold ownership of residential land by an individual

### KEY POINTS — Limited Ownership

- Tenancy — tenant has right to cultivate/use; cannot sell without landlord's consent
- Life interest — property reverts after death; cannot be alienated
- Lease — right to use for a defined period; ownership remains with lessor
- Mortgage — mortgagor retains ownership but creates security interest in property
- Statutory limitations — ceiling laws restrict how much land one can own (Ceiling Act 1973)
- Hindu women's limited estate (abolished by HSA 1956 — now full ownership)

 **Example:** A tenant under the Telangana Tenancy Act has a protected tenancy right — he can cultivate the land but cannot sell or mortgage without landowner's permission.

 **Case:** Commissioner of Wealth Tax v. Her Highness Vijaya Raje (1983) — distinction between absolute and limited ownership for tax purposes.

 **TIP:** ABS-OWN = All rights (PUDEA): Possession, Use, Dispose, Exclude, Alienate. LIMITED = one or more of PUDEA is curtailed.



## A-6. Land Records (Records of Rights / ROR)

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

Land Records are official government documents that record the ownership, possession, cultivation, and nature of land parcels. In Telangana, the primary land record document is the Pahani (Record of Rights — ROR).

### KEY POINTS

- Maintained under the Telangana Land Revenue Act and Telangana Rights in Land & Pattadar Pass Books Act 2020
- ROR (Record of Rights) — records: owner's name, pattadar name, nature of land, survey number, extent, water source, encumbrances
- Mutation (Dakhilkharij) — process of updating land records on transfer of ownership
- Pahani — village-level annual record; basis for all revenue and legal proceedings
- Dharani Portal — Telangana's digital land records & registration platform (integrated ROR + registration)
- Jamabandi — annual settlement of accounts between government and ryots
- Adangal — field register showing cultivation details for a survey number

 **Example:** After purchasing land in Sangareddy, the buyer applies for mutation through the Dharani Portal so that the Pahani reflects his name as the new Pattadar.

 **Case:** Suraj Bhan v. Financial Commissioner (2007) SC — entries in revenue records are evidence of possession, not conclusive proof of ownership.

 **TIP:** ROR = Revenue record of PONCE: Pattadar, Owner, Nature, Cultivation, Encumbrances. An entry in ROR is NOT conclusive title — it is only prima facie evidence.

## A-7. Pattas and Title Deeds

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

A Patta (Pattadar Pass Book) is an official document issued by the Revenue Department recording a person's right to hold and cultivate land. A Title Deed is a registered legal document (typically a sale deed) that establishes ownership.

### KEY POINTS — Patta / Pattadar Pass Book

- Issued under Telangana Rights in Land & Pattadar Pass Books Act, 2020
- Records: survey number, extent, nature of land, pattadar's name, land use type
- Pattadar Pass Book — government-issued document combining patta and title evidence
- NOT conclusive title — only prima facie evidence of possession/right to use
- Issued digitally through Dharani Portal since 2020

### KEY POINTS — Title Deed

- Registered Sale Deed / Gift Deed / Will — creates and transfers legal ownership
- Registered under Registration Act 1908 + Transfer of Property Act 1882
- Title Deed is stronger evidence of ownership than Patta alone
- In Torrens System (Conclusive Title) — Title Deed becomes conclusive

📌 **Example:** A farmer in Warangal holds a Pattadar Pass Book for his 3-acre agricultural land. He also has a registered Sale Deed (Title Deed) from when he purchased the land in 2005.

🔗 **Case:** A. Subba Rao v. State of AP (2010) — Pattadar Pass Book entry alone is insufficient to defeat a claim backed by a registered sale deed.

💡 **TIP:** Patta = Prima facie (not conclusive). Title Deed = stronger. In Torrens System = Conclusive. Hierarchy: Conclusive Title > Title Deed > Patta.



## PART B — LONG ESSAYS (15 Marks Each)

Each essay should be 600–800 words. Use Introduction → Headings → Conclusion format.

## B-1. Doctrine of Eminent Domain and Doctrine of Bona Vacantia

Exam Frequency: ★★★★★ (VERY HIGH)

(This combined essay appears in 2018 and 2025 papers — very high probability for 2026)

### I. Introduction

Two of the most fundamental doctrines governing the State's relationship with private property are the Doctrine of Eminent Domain and the Doctrine of Bona Vacantia. Both rest on the premise that the State has an overriding interest in property within its territory, but they operate in very different circumstances and serve distinct purposes.

### II. Doctrine of Eminent Domain

#### A. Meaning and Origin

The term 'Eminent Domain' was coined by the Dutch jurist Hugo Grotius in his work *De Jure Belli ac Pacis* (1625). It refers to the supreme power of the sovereign to appropriate private property for public use. In India, this power is derived from the concept of state sovereignty and was constitutionally recognised under Article 31 (now repealed) and continues under Article 300-A.

**Key Rule:** Eminent Domain requires THREE essentials: (1) Public Purpose, (2) Just Compensation, (3) Legal Authority / Due Process

#### B. Constitutional Framework

- Pre-1978: Right to Property was a Fundamental Right under Articles 19(1)(f) and 31
- 44th Constitutional Amendment, 1978 — deleted Article 19(1)(f) and Article 31
- Article 300-A now provides: 'No person shall be deprived of his property save by authority of law'
- Article 31-A — saves acquisition laws from challenge under Articles 14 & 19
- Article 31-B — laws in IX Schedule are immune from fundamental rights challenge

#### C. Essential Elements Explained

**Public Purpose:** The acquisition must serve a genuine public purpose — roads, irrigation, defence, public utilities. Courts have interpreted 'public purpose' broadly but held that purely private commercial benefit does not qualify.

**Just Compensation:** Compensation must be 'fair market value' — now detailed in the LARR Act 2013 with multipliers for rural land (up to 4x market value) and social impact assessment requirements.

**Legal Authority:** The procedure prescribed by law must be followed — notifications, objections, award enquiry — any deviation renders the acquisition void.

**Case:** State of Bihar v. Kameshwar Singh (1952) — Acquisition must serve genuine public interest, not merely transfer wealth from one private party to another. *Rustom Cavasjee Cooper v. UOI* (1970) — Compensation must be adequate, not illusory. *Maneka Gandhi v. UOI* (1978) — 'Law' under Article 300-A must be just, fair, and reasonable.

#### D. Limitations on Eminent Domain

- Cannot be used for private benefit of individuals or companies (unless genuine public purpose)
- Compensation cannot be illusory or nominal
- Procedural safeguards must be followed
- Tribal land in Scheduled Areas has additional protection (PESA, 1996)

### III. Doctrine of Bona Vacantia

#### A. Meaning

Bona Vacantia (Latin: 'ownerless goods') refers to the principle that property which has no owner vests

in the State. Unlike Eminent Domain which involves a deliberate act of the State acquiring someone's property, Bona Vacantia operates automatically when property is left without a legal owner.

### B. Situations Where Bona Vacantia Applies

- Company dissolved under Companies Act without distributing all assets
- Person dies intestate without any legal heirs (also called Escheat — a subset of Bona Vacantia)
- Property abandoned by the owner without intention to reclaim
- Unclaimed property after a specified period

### C. Constitutional Basis

Article 296 of the Constitution provides that properties vesting in the Union or State by way of Bona Vacantia shall vest in the respective Government. The distribution between Union and State depends on where the property is situated.

**Key Distinction:** Eminent Domain = State TAKES property (active). Bona Vacantia = Property COMES to State (passive). In Eminent Domain, compensation is paid. In Bona Vacantia, no compensation is paid.

**Case:** Nathulal v. State of MP (1966) SC — Bona Vacantia applies when owner has completely abandoned property without intention to reclaim. Attorney General v. Parsons — company property remaining undistributed on dissolution becomes Bona Vacantia.

## IV. Comparison: Eminent Domain vs Bona Vacantia

| Aspect               | Eminent Domain                         | Bona Vacantia                                   |
|----------------------|----------------------------------------|-------------------------------------------------|
| State action         | Active — State initiates acquisition   | Passive — property comes to State automatically |
| Owner                | Owner exists; property taken from them | No owner or owner untraceable                   |
| Compensation         | Must be paid (LARR Act 2013)           | Not paid — no owner to pay                      |
| Constitutional basis | Article 300-A, 31-A                    | Article 296                                     |
| Legal process        | Notifications, SIA, Award              | Vests automatically by operation of law         |

## V. Conclusion

Both doctrines reflect the supremacy of the sovereign's interest in property within its territory. Eminent Domain is a coercive power tempered by the obligation of just compensation and due process — its exercise must be for genuine public benefit. Bona Vacantia fills in the gap where property would otherwise have no custodian. Together, these doctrines ensure that no property in the State remains without a legal owner and that the State can mobilise private property for public good when legitimately required. Both doctrines are grounded in natural law theory (the State's role as ultimate guardian of its territory) and find expression in the Indian constitutional framework under Articles 296 and 300-A.

## B-2. Classification of Land on the Basis of Ownership / Definition of Land

Exam Frequency: ★★★★★ (HIGH)

(Asked in December 2020 — likely to recur)

### I. Introduction

The word 'Land' in legal parlance is not confined to the physical soil. Under Section 3 of the Transfer of Property Act 1882, 'property' includes land, benefits arising out of land, and things attached to the earth. Land forms the primary basis of agricultural economy, revenue, and social identity in India. Its classification is therefore fundamental to understanding land tenure, revenue law, and social reform legislation.

### II. Definition of Land

**Statutory definition:** Land includes benefits arising out of land, things attached to the earth, or permanently fastened to anything attached to the earth [Sec. 3, General Clauses Act 1897].

For revenue purposes, land includes the soil, mines, minerals, quarries, forests, water bodies, and all rights attached to the land. Under the Telangana Land Revenue Act, 'land' includes any portion of the territory of the State.

### III. Classification Based on Ownership

#### 1. Private Land (Ryoti / Pattadar Land)

Land held by private individuals with heritable and transferable rights. The holder (Pattadar) pays land revenue to the Government and enjoys full ownership rights subject to land ceiling laws. This is the most common form of land ownership in rural India.

#### 2. Government Land (State Land)

Land owned by the State or Central Government. Includes three sub-categories:

- Sarkari Land (Revenue Wasteland) — uncultivated government land; can be assigned to landless poor
- Protected Forest Land — governed by Indian Forest Act 1927
- Reserved/Protected Government lands — used for public purposes

#### 3. Community Land / Communal Land

Used collectively by village communities. Examples: grazing grounds (gochar), village sites, threshing floors. Managed by Gram Panchayat. Cannot be privately owned or alienated.

#### 4. Institutional / Endowment Land

Land owned by religious institutions, temples, mosques, churches, charitable trusts, and endowments. Governed by Endowments Acts and Trust laws. Cannot be freely alienated.

#### 5. Forest Land

Land classified as forest under the Indian Forest Act 1927. Governance is shared — Reserved Forests, Protected Forests, and Village Forests have different regulatory regimes. Forest Rights Act 2006 creates rights for tribal dwellers within forest land.

### IV. Classification Based on Use/Revenue Status

- Wet Land (Tari): Irrigated by canals, tanks, or wells. Higher land revenue.
- Dry Land (Meeta): Depends entirely on rainfall. Lower revenue.
- Garden Land: Orchards, plantations, horticulture.
- Waste Land: Uncultivated, government-owned; can be assigned.
- Poramboke: Lands reserved for public use — roads, drains, tanks, rivers.

- Assigned Land: Waste/government land assigned to landless agricultural poor — transfers restricted under Telangana Assigned Lands (Prohibition of Transfers) Act 1977.

## V. Constitutional Dimension

Entry 18 of the State List (Schedule VII) gives State Legislatures power over land, land rights, and tenancy. Article 300-A protects property from deprivation except by authority of law. The IX Schedule protects land reform legislations from fundamental rights challenges.

## VI. Conclusion

The classification of land is the foundation of the entire edifice of Indian land law. It determines who has what rights, what laws apply, what revenue is payable, and what protections exist. A correct understanding of land classification is essential not only for legal practitioners but also for implementing progressive land reforms that seek to balance private rights with the common good, as mandated by Articles 38 and 39 of the Constitution.

## B-3. Telangana Rights in Land & Pattadar Pass Books Act, 2020

Exam Frequency: ★★★★★ (HIGH)

### I. Introduction

Land records are the bedrock of property rights. In Telangana, the Telangana Rights in Land and Pattadar Pass Books Act, 2020 represents a landmark reform, replacing the earlier 1971 Act and integrating land records with digital registration through the Dharani Portal. It seeks to provide conclusive, tamper-proof evidence of land ownership to cultivators.

### II. Historical Background

- Earlier governed by the AP Rights in Land and Pattadar Pass Books Act, 1971 (as extended to Telangana)
- Problems: multiple documents (Pattadar Pass Book + separate Link Document), scope for fraud, delays in mutation
- Telangana enacted the Rights in Land and Pattadar Pass Books Act, 2020 — came into force with the Dharani portal

### III. Key Provisions of the 2020 Act

#### A. Integrated Title Document

The Act creates a single integrated Pattadar Pass Book that combines: (1) Record of Rights entries, (2) Survey details, and (3) Link document of title history. This single document serves as evidence of the pattadar's right to hold and cultivate land.

#### B. Dharani Portal — Digital Integration

- All registrations of agricultural land in Telangana are now done exclusively through the Dharani portal
- Mutation is automatically triggered on registration — no separate mutation application required
- Eliminates manual intervention in mutation — reduces corruption
- E-pass book issued digitally after registration

#### C. Prohibited Transactions

- Agricultural land (non-municipal) cannot be registered outside the Dharani portal
- Government lands, assigned lands, ceiling surplus lands, and land under court orders are 'frozen' — cannot be registered without the portal flagging and appropriate clearance
- This prevents alienation of restricted categories of land

#### D. Dispute Redressal

- Disputes regarding entries in Dharani are addressed to the Revenue Divisional Officer (RDO)
- Appeals lie to the District Collector
- Civil courts have limited jurisdiction over Dharani entries (by design, to keep disputes within revenue hierarchy)

**Critical Amendment 2023:** Telangana Government announced review of Dharani-related issues post-election — significant modifications to the Act were proposed under the new government (2024), including re-enabling mutation through Revenue courts in disputed cases.

### IV. Significance of the Act

- Provides prima facie evidence of right (not yet conclusive title as in Torrens System)
- Reduces land disputes by creating clear digital trail
- Benefits marginal farmers who can use Pass Book for bank loans, subsidies
- First step towards 'Conclusive Title' / Torrens System in Telangana



🔗 **Case:** Telangana HC in multiple 2021–2023 orders directed that Dharani portal freezes should not prevent genuine owners from recording mutations — emphasising that the Act cannot override substantive property rights established by registered title deeds.

## V. Torrens System / Land Titling (Brief)

The Torrens System (originated in Australia, 1858) creates a conclusive, State-guaranteed title. Once registered, the title cannot be challenged except for fraud. India has not yet fully adopted this system — the Pattadar Pass Book system is a step towards it but remains prima facie evidence, not conclusive.

- Title Guarantee — State guarantees the title once registered
- Conclusive Title — title is indefeasible and binding on all
- Title Insurance — State compensates wrongly dispossessed owners

## VI. Conclusion

The Telangana Rights in Land and Pattadar Pass Books Act, 2020 is a significant step towards modernising land records and reducing land fraud. Its integration with Dharani brings transparency, speed, and accountability to land transactions. However, the challenge remains to move from prima facie evidence to conclusive title — a goal that requires further legislative and administrative steps, including adoption of a full Torrens-type system with State-backed title insurance.

## PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Strictly use IRAC: Issue → Rule → Application → Conclusion. Be clear and decisive.

## C-1. Can Eminent Domain be Used to Acquire Land for Commercial Purposes?

Exam Frequency: ★★★★★ (VERY HIGH)

(August/September 2024 exam — very likely to recur)

PROBLEM: Can eminent domain be used to acquire land for commercial purposes? Decide.

### I — ISSUE

The legal question is: Whether the exercise of the power of Eminent Domain (compulsory acquisition of private land) for commercial purposes — including for private companies, Special Economic Zones, or multinational corporations — constitutes a valid 'public purpose' under Indian land acquisition law?

### R — RULE

- Article 300-A: No person shall be deprived of property save by authority of law
- LARR Act 2013 (Land Acquisition, Rehabilitation and Resettlement Act), Section 2(1): Defines 'public purpose' — includes infrastructure, defence, government projects, and projects for private entities with 70–80% consent
- Section 2(b) LARR 2013: Private companies may require up to 80% consent for acquisition; PPP projects 70% consent
- Section 3(z)(a): 'Public purpose' includes projects by companies where 80% consent is obtained
- Doctrine of Eminent Domain: The purpose must be genuinely PUBLIC — mere economic benefit or private profit does not qualify
- Constitution, Article 39(b) & (c): DPSP — State shall ensure material resources are distributed to serve the common good

**KEY RULE:** Commercial purpose ALONE does not constitute 'public purpose'. LARR 2013 PERMITS acquisition for private companies ONLY WITH 70-80% owner consent + SIA + R&R obligations.

### A — APPLICATION

Applying the above rules to the problem:

If the government proposes to acquire land PURELY for a private commercial enterprise (e.g., a factory for a private corporation) WITHOUT following the consent requirements and without any public purpose element — this would be an INVALID exercise of Eminent Domain.

However, if the acquisition follows the LARR Act 2013 procedure — social impact assessment, consent of 70-80% of affected families, fair compensation (up to 4x market value for rural land), and R&R plan — then even an acquisition benefiting a private company can be VALID under Section 2(1)(b) of LARR 2013.

The Supreme Court in *Kedar Nath Yadav v. State of West Bengal* (2011) held that acquisition for a private industrial project without proper public purpose and consent was unconstitutional. Similarly, the Singur land acquisition controversy led to major amendments reinforcing consent requirements.

**Case:** *Kedar Nath Yadav v. State of WB* (2011) — acquisition for Tata Motors factory invalidated; *Nandini Sundar v. State of Chhattisgarh* (2011) — State cannot use land acquisition as a tool for private enrichment; *State of UP v. Manohar* (2005) — 'public purpose' must be genuinely public, not a ruse for private benefit.

### C — CONCLUSION

DECISION: Eminent Domain CANNOT be used for purely commercial/private purposes. It CAN be used for projects involving private companies ONLY if: (1) a genuine public purpose element exists; (2) 70–80% consent of affected landowners is obtained; (3) Social Impact Assessment is conducted; (4) full fair compensation and Rehabilitation & Resettlement is provided as per LARR Act 2013. A bare commercial acquisition for private profit, without these safeguards, is UNCONSTITUTIONAL and can be challenged under Article 300-A of the Constitution.

## C-2. Can Government Take Your Land for a Road? Which Legislation?

Exam Frequency: ★★☆☆ (MEDIUM)

PROBLEM: Can government take your land for a road? Which legislation is invoked by the government?

### I — ISSUE

The legal issue is: (1) Whether the government has the power to compulsorily acquire private land for construction of a public road; and (2) Which legislation governs such acquisition in India/Telangana?

### R — RULE

- Article 300-A: Deprivation of property only by authority of law
- PRIMARY LAW: The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (LARR Act 2013) — replaced the old Land Acquisition Act 1894
- Section 2(1)(a) LARR 2013: 'Public purpose' EXPRESSLY includes strategic purposes, infrastructure including roads, highways, bridges
- National Highways Act, 1956 (for National Highways) — separate special legislation
- Telangana Roads and Buildings Department can invoke LARR 2013 for state roads
- Eminent Domain: Road construction is the CLASSIC exercise of Eminent Domain — the most unambiguous public purpose

📌 **LEGISLATION:** Road acquisition is governed by: (1) LARR Act 2013 [primary]; (2) National Highways Act 1956 [for NHs]; (3) Telangana (State) — LARR 2013 as applicable

### A — APPLICATION

Construction of a road is universally recognised as a 'public purpose' within the meaning of Section 2(1)(a) of the LARR Act 2013. The government proceeds by:

- STEP 1: Section 11 — Preliminary Notification (Section 4 under old Act 1894)
- STEP 2: Social Impact Assessment (SIA) under Section 4
- STEP 3: Publication of Section 19 declaration (public purpose confirmed)
- STEP 4: Hearing of objections by Collector (Section 15)
- STEP 5: Award by Land Acquisition Collector (Section 23)
- STEP 6: Payment of compensation — market value + solatium + annuity (Chapter V)

The landowner CANNOT refuse the acquisition if proper procedure is followed. However, the landowner CAN: (a) challenge the determination of compensation; (b) seek reference to Civil Court (Section 64); (c) challenge the notification if public purpose is disputed.

🏛️ **Case:** State of Punjab v. Gurdial Singh (1980) SC — government must act bona fide in exercising Eminent Domain for road; acquisition cannot be a colourable exercise. Srinivasa Co-operative Housing Society v. Madam Gurumurthy (1987) — compensation must reflect true market value.

### C — CONCLUSION

YES — the government CAN take private land for constructing a road. This is the most classic exercise of Eminent Domain. The legislation invoked is: (1) the LARR Act 2013 (primary) for state and central roads; (2) the National Highways Act 1956 for National Highway acquisitions. The landowner must receive just compensation as determined under Chapter V of LARR 2013, which includes market value (up to 4x for rural land), solatium, and R&R benefits. The process is mandatory and the landowner cannot prevent acquisition but can challenge compensation adequacy.



## QUICK REVISION SHEET — UNIT I

### Key Numbers & Provisions

|                            |                                                                            |
|----------------------------|----------------------------------------------------------------------------|
| Article 300-A              | Right to Property (constitutional right, not Fundamental Right since 1978) |
| Article 31-A               | Saves acquisition laws from Articles 14 & 19 challenge                     |
| Article 31-B + IX Schedule | Land reform laws immunised from FR challenge (1st Amendment 1951)          |
| Article 296                | Bona Vacantia — property vests in Union/State                              |
| 44th Amendment 1978        | Deleted Art 19(1)(f) and Art 31 — property no longer FR                    |
| LARR Act 2013              | Primary land acquisition law — replaced Land Acquisition Act 1894          |
| S.2(1)(b) LARR 2013        | Private company acquisition: 80% consent required                          |
| S.2(1)(c) LARR 2013        | PPP project acquisition: 70% consent required                              |
| 4x market value            | Compensation multiplier for rural land under LARR 2013                     |
| TS Act 2020                | Telangana Rights in Land & Pattadar Pass Books Act, 2020                   |
| Dharani Portal             | Digital land records + registration platform, Telangana                    |
| Torrens System             | Conclusive Title system (Australia 1858) — not yet fully adopted in India  |

### Top Cases — One Liner

|                                             |                                                               |
|---------------------------------------------|---------------------------------------------------------------|
| State of Bihar v. Kameshwar Singh (1952)    | First SC test of Eminent Domain limits                        |
| Rustom Cavasjee Cooper v. UOI (1970)        | Compensation must be adequate, not illusory                   |
| Kedar Nath Yadav v. State of WB (2011)      | Acquisition for private factory without consent — invalid     |
| Nathulal v. State of MP (1966)              | Bona Vacantia — abandoned land vests in State                 |
| Suraj Bhan v. Financial Commissioner (2007) | Revenue records = evidence, not conclusive proof of ownership |
| A. Subba Rao v. State of AP (2010)          | Pattadar Pass Book alone cannot defeat registered title deed  |
| State of Punjab v. Gurdial Singh (1980)     | Government must act bona fide in Eminent Domain exercise      |

### Memory Mnemonics

- P-C-A (Eminent Domain): PUBLIC Purpose + COMPENSATION + AUTHORITY = Valid Acquisition
- BONA = Belongs to Nobody — Acquired by State (Bona Vacantia)
- E-SCHEAT = Every Successor Claimed Has Expired / Abandoned Title (Escheat = death + no

heirs)

- WDGFV (Land types): Wet, Dry, Garden, Forest, Waste
- PUDEA (Absolute Ownership): Possession, Use, Dispose, Exclude, Alienate
- Patta = Prima facie; Title Deed = stronger; Torrens = Conclusive
- ROR = Revenue evidence of PONCE: Pattadar, Owner, Nature, Cultivation, Encumbrances

### ⚠ Trap Questions — Watch Out!

- TRAP: 'Government can always use Eminent Domain for economic development' — FALSE. Must follow LARR 2013 consent requirements for private company projects.
- TRAP: 'Pattadar Pass Book gives conclusive title' — FALSE. It is prima facie evidence only.
- TRAP: 'Escheat and Bona Vacantia are the same' — FALSE. Escheat is a subset of Bona Vacantia (death without heirs). Bona Vacantia is broader.
- TRAP: 'Right to Property is a Fundamental Right' — FALSE since 44th Amendment 1978. It is now only a constitutional right under Article 300-A.
- TRAP: 'Dharani portal entries give conclusive title' — FALSE. Still prima facie evidence under the 2020 Act.
- TRAP: 'Land Acquisition Act 1894 is still in force' — FALSE. Replaced by LARR Act 2013 (with some special law exceptions like NH Act 1956).



# LAND LAWS

## UNIT II — PRE & POST-INDEPENDENCE LAND REFORMS

Osmania University | LLB (3-YDC) | 4th Semester | Paper IV  
**Comprehensive Exam Preparation Notes · Target: 75+ Marks**

Prepared by LawSticker AI — lawsticker-ai.com



## UNIT II — OVERVIEW & STUDY MAP

### ✓ What IS in this Unit (Scope)

- Historical Land Revenue Settlements: Zamindari, Ryotwari, Mahalwari
- Intermediaries & their legislative abolition: Zamindars, Jagirdars, Inamdars
- Constitutional provisions enabling land reforms (Articles 31-A, 31-B, 31-C, IX Schedule)
- Tenancy laws — protection of tenants / ryots, conferment of ownership rights
- Pre-independence reforms protecting ryots (Ryotwari, tenancy protection Acts)
- Post-independence abolition laws in Hyderabad / AP / Telangana

### ✗ What is NOT in this Unit

- Ceiling on land holdings (Ceiling Act 1973) — Unit IV
- Land acquisition procedure (LARR 2013) — Unit III
- Forest Rights Act 2006 — Unit IV
- Assigned Lands / Scheduled Areas / SALTR — Unit V
- Dharani Portal / Pattadar Pass Books — Unit I

### ★ Predicted High-Probability Questions — 2026 Exam

- Part A: Zamindari Settlement (appeared 2024, 2020, 2019, 2018 — near certain)
- Part A: Mahalwari System (appeared 2022, 2021, 2018)
- Part A: Ryotwari Settlement (appeared 2019, 2018 × 2)
- Part A: Jagirs and Inams (appeared 2021, 2019)
- Part A: Protected Tenant (appeared 2025)
- Part B: Constitutional provisions for land reform laws — very high probability
- Part B: Origin and development of land administration systems (appeared 2022)
- Part B: Abolition of intermediaries — appeared 2020
- Part C: Tribal land sold to non-tribal in Scheduled Area (appeared 2022, 2021, 2020, 2019, 2018 — almost certain every year)

### Critical Numbers & Provisions — Unit II

- Article 31-A — saves acquisition/modification/extinguishment of land rights from FR challenge
- Article 31-B + IX Schedule — laws in IX Schedule immune from FR challenge
- Article 31-C — laws implementing DPSP Art 39(b)(c) saved from Art 14 & 19 challenge
- 1st Constitutional Amendment Act 1951 — inserted Articles 31-A, 31-B, IX Schedule
- Hyderabad Abolition of Inams Act, 1955
- Andhra Pradesh (Telangana Area) Abolition of Inams Act, 1955
- AP Abolition of Zamindaris and Other Land Tenures Act, 1948 (Andhra area)
- Telangana (Hyderabad) Area: Hyderabad Land Revenue Act 1317-F (Fasli)
- Tenancy conferment — if tenant cultivated for specified period, ownership conferred





## PART A — SHORT NOTES (6 Marks Each)

~200–250 words per answer. Definition → Key Points → Example → Case → TIP.

## A-1. Zamindari Settlement

Exam Frequency: ★★★★★ (VERY HIGH)

### DEFINITION

The Zamindari Settlement (also called Permanent Settlement) was a land revenue system introduced by the British East India Company in 1793 under Lord Cornwallis in Bengal, Bihar, and Orissa. Under this system, Zamindars (landlords) were recognised as owners of large tracts of land and were required to pay a fixed (permanent) revenue to the government, irrespective of crop yield.

### KEY POINTS

- Introduced by Permanent Settlement Act 1793 — Lord Cornwallis
- Zamindars = intermediaries between the State and actual cultivators (ryots)
- Revenue fixed permanently — Zamindars paid fixed sum to British; collected as much as possible from ryots
- Ryots became tenants-at-will — no security of tenure, no ownership rights
- Led to widespread exploitation — rack-renting, illegal cesses, evictions
- Zamindari system led to absentee landlordism — Zamindars lived in cities, land neglected
- Post-independence: Zamindari Abolition Acts passed in all States (1948–1955)
- In Telangana (Hyderabad State): Hyderabad Abolition of Zamindaris Act (1948)
- Zamindars were paid compensation — vested interests extinguished
- Constitutional protection: Article 31-A, 31-B, IX Schedule protect abolition laws from challenge

📌 **Example:** A Zamindar in Bengal owned 50,000 acres, paid fixed annual revenue of Rs 10,000 to the British, while collecting lakhs from ryots. After Independence, his Zamindari was abolished — he received compensation and land vested in the State.

🏛️ **Case:** State of Bihar v. Kameshwar Singh (1952) SC — first major challenge to Zamindari Abolition Act; SC upheld it as a valid exercise of State power to abolish intermediaries. Article 31-A was inserted to protect such laws.

💡 **TIP:** Z-A-P: Zamindari = Absentee landlords + Permanent fixed revenue + ryots had no Protection. Abolished post-1947 by State laws protected under Article 31-A.

## A-2. Ryotwari Settlement

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

The Ryotwari Settlement was a land revenue system introduced in parts of Madras and Bombay Presidencies (and later Telangana/AP) where the government settled land revenue directly with individual cultivators (ryots), without any intermediary. Each ryot paid revenue directly to the State and held a Patta (title document) for his land.

### KEY POINTS

- Introduced by Sir Thomas Munro (Madras) and Elphinstone (Bombay) in early 19th century
- No intermediary — direct settlement between government and each ryot
- Revenue assessed periodically (not permanently fixed) — based on land quality and crop
- Ryot had security of tenure as long as he paid revenue
- Patta issued to each ryot — evidence of his right to cultivate
- Revenue was revised every 25–30 years — often increased, causing hardship
- Prevalent in: Madras Presidency, Bombay Presidency, Hyderabad State, Mysore
- Telangana (Hyderabad area) also followed Ryotwari system under Nizam's rule
- Better than Zamindari in protecting direct cultivators but revenue demands were often excessive
- Post-independence: Tenancy laws and ceiling laws reformed ryotwari tenure further

📌 **Example:** A ryot in Krishna district, Andhra Pradesh, holds a Patta for 5 acres of wet land and pays land revenue (Lagaan) directly to the Tehsildar every year — classic Ryotwari system.

⚖️ **Case:** Venkata Narasimha Rao v. State of AP (1960) — upheld the ryotwari tenure system and recognised the ryot's right to hold land as long as revenue is paid.

💡 **TIP:** RYOTWARI = Revenue to government, You are the owner, Own your Patta, No middleman, Wary of periodic revision, Assessment direct, Revenue direct, Individual settlement. No Zamindar between you and the State.

## A-3. Mahalwari System

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

The Mahalwari System was a land revenue settlement introduced in the North-Western Provinces (now UP), Punjab, and parts of Central India. Under this system, revenue was settled with the entire village community (Mahal = village/estate) collectively, through its headman or joint owners, rather than with individual ryots or zamindars.

### KEY POINTS

- Introduced by Holt Mackenzie (1822) and later modified by R. M. Bird
- Revenue settled with the village community (Mahal) jointly
- Village headman (Lambardar/Muqaddam) collected revenue from village members and paid to government
- Land owned jointly by the village brotherhood (Bhaichara) — shared ownership
- Individual members had rights to cultivate specific plots; community held commons
- Revenue revised periodically (unlike Permanent Settlement)
- Prevalent in: UP, Punjab, MP, parts of Rajasthan and Gangetic plains
- Combined features of both Zamindari and Ryotwari systems
- The 'Mahal' was the unit of assessment — could be a village, a cluster, or an estate
- Post-independence: Village panchayats often took over community land management

📌 **Example:** In a village in UP, all 50 farming families jointly hold 200 acres of land. They collectively pay the annual revenue, and the headman deposits it to the district revenue office — Mahalwari in practice.

🏛️ **Case:** There are no landmark SC cases directly on the Mahalwari system as a system — refer to general land reform cases. Mention *Tukaram v. State of MP* for community land management principles.

💡 **TIP:** MAHAL = Many Agriculturists Holding And Liable (jointly). The village (Mahal) as a whole is the revenue unit — not individuals and not a single zamindar.

## A-4. Jagirs and Inams

Exam Frequency: ★★☆☆ (MEDIUM)

### DEFINITION

Jagirs were grants of land revenue (or land itself) made by rulers to nobles, military commanders, and officials as reward for services. Inams were similar grants — gifts of land or land revenue — made by rulers or zamindars to individuals for services, religious merit, or loyalty.

### KEY POINTS — Jagirs

- Jagir = Persian: 'Ja' (place) + 'Gir' (holder) — one who holds a place/territory
- Jagirdar held land as a grant from the ruler — paid no revenue; collected revenue from ryots
- Types: Service Jagirs (for military/civil service), Peshkush Jagirs (paid tribute), Watan Jagirs (hereditary)
- Prevalent in Hyderabad State, Rajputana, Central India under Nizam and Maratha rulers
- Abolished by Hyderabad Jagirs (Commutation) Regulation 1949 and State laws post-1950

### KEY POINTS — Inams

- Inam = Arabic: 'gift' — grant of land or revenue in perpetuity for services or charity
- Types: Religious Inams (for temples, mosques), Personal Inams (for service), Village Inams (whole village granted)
- Inamdars collected revenue and held land without paying to the State
- Abolished by: AP (Telangana Area) Abolition of Inams Act 1955, Inam Abolition Acts in other States
- Inam lands vested in the State; Inamdars received compensation
- Ryots cultivating inam lands were conferred occupancy rights / ownership

 **Example:** The Nizam of Hyderabad granted a village's land revenue to a nobleman (Jagirdar) as reward for military service. Post-1948, the Jagirdar's rights were abolished and land revenue went directly to Telangana State.

 **Case:** Shri Ram Ram Narain Medhi v. State of Bombay (1959) SC — Inam Abolition Act upheld as valid land reform law; Article 31-A protects it from FR challenge.

 **TIP:** J-I both = Intermediaries. JAGIR = granted by ruler for service (revenue grant). INAM = gift (could be for service OR charity). Both abolished post-1947 — compensation paid. Art 31-A protects abolition laws.

## A-5. Protected Tenant

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

A Protected Tenant is a class of agricultural tenant who has cultivated land for a specified statutory period and thereby acquired special security of tenure — protection against arbitrary eviction, and in many cases, the right to purchase the land they cultivate.

### KEY POINTS

- Concept introduced by tenancy reform legislation post-independence to protect cultivating tenants from landlord exploitation
- Under Telangana Tenancy & Agricultural Lands Act (TTAL Act) — tenant who cultivated for 6 years continuously became a 'protected tenant'
- Protected tenant CANNOT be evicted except on specific statutory grounds (non-payment of rent, personal cultivation by landlord, etc.)
- Protected tenant's right is heritable — passes to legal heirs
- In many states, protected tenants were eventually conferred ownership rights (land-to-the-tiller policy)
- Rent regulated by statute — landlord cannot charge excessive rent
- Protections also include: right to make improvements, right to sub-let in certain cases
- Under AP/Telangana law: protected tenancy is recorded in Revenue Records (ROR)

 **Example:** Ramu has been cultivating 3 acres of land owned by a landlord for the past 8 years, paying fixed rent. Under TTAL Act, Ramu is a Protected Tenant — he cannot be evicted arbitrarily, and may be entitled to purchase the land at statutory rates.

 **Case:** Narayana Reddy v. State of AP (1977) — Protected tenancy rights are statutory rights in rem; they survive transfer of land ownership. Landlord purchasing land cannot evict protected tenant.

 **TIP:** PROTECTED = cannot be Pushed Out (evicted) without reason. 6 years cultivation = Protected Tenant in Telangana. Right is heritable. Next step = ownership conferment.

## A-6. Sada Bainama

Exam Frequency: ★★☆☆ (MEDIUM)

### DEFINITION

Sada Bainama (also written Sada Bainama) is an unregistered sale agreement commonly used in rural Telangana/AP for transferring possession of land without formal registration. It is a simple written document evidencing agreement to sell, often used to circumvent stamp duty and registration requirements.

### KEY POINTS

- 'Sada' = plain/simple; 'Bainama' = agreement of sale (from Persian/Urdu)
- An agreement to sell — NOT a registered sale deed; does NOT transfer legal title
- Under Section 17, Registration Act 1908 — sale of immovable property worth Rs. 100+ MUST be registered
- Sada Bainama is NOT admissible as evidence of title in court (unregistered)
- However, it CAN be used to: prove payment of consideration, establish adverse possession claim, evidence part performance (Sec. 53-A TPA 1882)
- Widespread use among agricultural communities — ignorance of registration requirements
- Dharani portal has effectively eliminated Sada Bainama for agricultural land — all transfers must be registered on Dharani
- Sada Bainama holders often face difficulties claiming rights — not recognised in ROR
- Telangana courts have in specific cases recognised equity-based claims of long-term Sada Bainama holders

 **Example:** A farmer sells his 2-acre land to a neighbour for Rs. 5 lakhs on a plain stamp paper (Sada Bainama) without going to the Sub-Registrar's office. The buyer cannot claim legal title based on this document alone.

 **Case:** Suraj Lamp & Industries v. State of Haryana (2012) SC — GPA/Sada Bainama/Agreement to Sell cannot be used as a substitute for registered conveyance deed; does not transfer title.

 **TIP:** SADA = Simple Agreement, Does not convey title, Avoids registration (but illegal for this purpose). Use Sec 53-A TPA as part performance defence only. Dharani has made it largely obsolete for agricultural land.

## A-7. Standard Holding

Exam Frequency: ★★☆☆ (MEDIUM)

### DEFINITION

A Standard Holding is the unit of land fixed by land reform legislation as the minimum economically viable holding that a family requires for agricultural sustenance. It serves as the benchmark for calculating land ceiling limits and for determining how much surplus land is available for redistribution.

### KEY POINTS

- Concept central to ceiling on agricultural land holdings legislation
- Under AP Land Reforms (Ceiling on Agricultural Holdings) Act 1973 — 'Standard Holding' = notional holding of 54 acres of unirrigated dry land (or equivalent in other categories)
- Standard Holding varies by land type: wet land and garden land = smaller standard holding equivalent
- Ceiling limit = 1 Standard Holding per family unit (family = individual + spouse + minor children)
- Surplus land above ceiling must be surrendered to the government for redistribution to landless poor
- Different from 'Economic Holding' — Standard Holding is a legislative construct, not actual productive unit
- Used to calculate the ceiling: e.g., if family holds land in multiple categories, converted to Standard Holding units and compared with ceiling of 1 SH

 **Conversion Table (AP/Telangana):** 1 Standard Holding = 54 acres dry / 27 acres single-crop / 13.5 acres double-crop / 10.8 acres garden / 5.4 acres perennial irrigated. Family ceiling = 1 Standard Holding.

 **Example:** Farmer Reddy owns 20 acres of double-crop land ( $= 20/13.5 = 1.48$  SH) and 10 acres dry ( $= 10/54 = 0.185$  SH). Total = 1.665 SH — above the 1 SH ceiling. Surplus of 0.665 SH must be surrendered.

 **Case:** State of AP v. Nookala Krishnamurthy (1993) — Standard Holding calculation must be strictly applied; undervaluation or classification manipulation to avoid ceiling is invalid.

 **TIP:** STANDARD HOLDING = the yardstick. Think of it as 1 family = 1 SH ceiling. Know the conversion: 54 acres dry = 1 SH. Everything above = surplus = government takes.





## PART B — LONG ESSAYS (15 Marks Each)

600–800 words per essay. Introduction → Headings → Conclusion.

## B-1. Origin and Development of Land Administration Systems in India

Exam Frequency: ★★★★★ (HIGH)

(Directly asked in November 2022 — likely to recur)

### I. Introduction

India's land administration history is a long and complex story of changing relationships between the State, landlords, and cultivators. From ancient vedic systems through medieval sultanates and Mughal administration to British colonial settlements, each era shaped land rights, tenure, and revenue. Post-independence land reforms sought to undo colonial distortions and establish a just land order.

### II. Ancient and Medieval Period

#### A. Ancient India

In ancient India, the King was considered the supreme owner of all land (theory of royal ownership), but in practice, individual cultivators held hereditary rights. Revenue was collected as a share of produce (usually 1/6th to 1/4th). Village communities managed land collectively. The Arthashastra of Kautilya details systematic land revenue administration including land surveys, classification, and assignment of waste lands.

#### B. Mughal Period

Under the Mughal Empire, Emperor Akbar's revenue minister Todar Mal introduced a systematic land survey and revenue settlement (Ain-i-Akbari, 1580). Land was measured, classified, and revenue assessed based on average productivity over 10 years. This was the Zabti or Bandobast system. The revenue was fixed in cash, not in kind. This provided stability but the intermediary class (Zamindars) grew powerful as revenue collectors.

### III. British Colonial Period — Three Settlement Systems

#### A. Permanent / Zamindari Settlement (1793)

Introduced by Lord Cornwallis in Bengal, Bihar, and Orissa under the Permanent Settlement Act 1793. Revenue permanently fixed — Zamindars paid a fixed sum to the British and were declared owners of the land. Consequence: Zamindars became exploitative intermediaries; ryots lost all security. This system covered about 57% of British India.

🟡 **KEY FACT:** Permanent Settlement — introduced 1793, Bengal-Bihar-Orissa, Lord Cornwallis. Zamindar = landowner. Revenue fixed forever.

#### B. Ryotwari Settlement

Introduced by Sir Thomas Munro in Madras Presidency (1820s). Government settled directly with each ryot (cultivator). Revenue assessed on individual plots and revised periodically. Ryot held Patta — evidence of right to cultivate. Covered Madras, Bombay, Assam, Hyderabad, Mysore — approximately 51% of British India.

🟡 **KEY FACT:** Ryotwari — Thomas Munro, Madras. No intermediary. Patta to ryot. Revenue revised every 25-30 years.

#### C. Mahalwari Settlement

Introduced by Holt Mackenzie (1822) in NW Provinces; later extended to Punjab and parts of Central India. Revenue settled with the entire village community (Mahal). Lambardar collected jointly and paid to government. Village brotherhood (bhaichara) held land jointly. About 30% of British India.

🟡 **KEY FACT:** Mahalwari — Holt Mackenzie, NW Provinces/Punjab. Village (Mahal) = unit. Joint ownership. Lambardar = collector.

### IV. Impact of British Land Revenue Systems

- Created a class of absentee landlords (Zamindari) — exploitative intermediaries
- Converted communal rights to individual private property — disrupted village economy
- Fixed revenue demands led to indebtedness and loss of land by small farmers
- Commercialisation of agriculture — shift from food crops to cash crops (indigo, cotton)
- Land became a commodity — bought, sold, mortgaged on mass scale
- By 1900s — famine, rural poverty, and peasant uprisings (Indigo Revolt 1859, Deccan Riots 1875)

## V. Pre-Independence Tenant Protection Legislation

Recognising the plight of ryots, the colonial government enacted some protective laws: Bengal Tenancy Act 1885 (protected tenure for some categories); Deccan Agriculturists Relief Act 1879 (protected against moneylenders); Madras Estates Land Act 1908 (occupancy rights to tenants). However, these were limited — they did not abolish intermediaries.

## VI. Post-Independence Land Reforms

### A. Constitutional Framework

The Constitution (through 1st Amendment 1951) inserted Articles 31-A, 31-B, and the IX Schedule, protecting land reform laws from fundamental rights challenges. DPSP Articles 39(b) and 39(c) directed the State to distribute material resources to serve the common good.

### B. Three Phases of Post-Independence Reform

- Phase 1: Abolition of Intermediaries — Zamindari, Jagir, Inam abolition laws (1948–1955 in Telangana/AP)
- Phase 2: Tenancy Reform — security of tenure, rent regulation, conferment of ownership on cultivating tenants
- Phase 3: Ceiling on Land Holdings — ceiling laws (AP Ceiling Act 1973, Telangana Ceiling Act 1973) to redistribute surplus land to landless poor

🔗 **Case:** State of Bihar v. Kameshwar Singh (1952) — landmark SC case upholding zamindari abolition. Kochunni v. State of Madras (1960) — tenancy reforms are valid social legislation. Kesavananda Bharati v. State of Kerala (1973) — Parliament cannot amend basic structure; property rights protection subject to reasonable restrictions.

## VII. Conclusion

The evolution of land administration in India is a story of progressive democratisation of land rights — from feudal-era royal ownership, through colonial exploitation of intermediary systems, to post-independence land reform that aimed to give land to the tiller. The Zamindari, Ryotwari, and Mahalwari systems left distinct legacies that still shape land tenure, records, and disputes in different parts of India. The constitutional framework — particularly Articles 31-A, 31-B, 31-C, and the IX Schedule — provided the legal armour for States to carry out these reforms without being frustrated by property rights challenges.

## B-2. Constitutional Provisions for Land Reforms / Right to Property

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared 2024, 2022, 2021 — extremely high probability)

### I. Introduction

Land reforms in India faced a fundamental tension between the right to property (held by zamindars and large landowners) and the State's goal of achieving an equitable land distribution. The Constitution of India was progressively amended to enable land reform legislation, culminating in a comprehensive constitutional framework that protects land reform laws from challenge on fundamental rights grounds.

### II. Original Constitutional Provisions (1950)

#### A. Fundamental Rights — Articles 19(1)(f) and 31

- Article 19(1)(f): Citizens had the right to acquire, hold and dispose of property
- Article 31: Protection against deprivation of property — compensation required for acquisition
- These provisions allowed zamindars to challenge land reform laws as violations of property rights
- State of Bihar v. Kameshwar Singh (1952) — SC declared Bihar's Zamindari Abolition Act ultra vires on compensation grounds

### III. Constitutional Amendments to Enable Land Reforms

#### A. First Constitutional Amendment Act, 1951

- Inserted Article 31-A — saves laws for acquisition/modification/extinguishment of rights in estates from challenge under Art 14 & 19
- Inserted Article 31-B — laws in IX Schedule cannot be challenged as violating any Fundamental Right
- Created the Ninth Schedule — listed specific land reform laws shielded from FR challenge
- This directly overruled the Kameshwar Singh decision

■ **Article 31-A:** Notwithstanding Art 13, a law providing for acquisition by State of any estate or any rights therein shall not be deemed void on ground of inconsistency with Art 14, 19. [Saves land reform laws from FR challenge]

■ **Article 31-B + IX Schedule:** No law specified in IX Schedule shall be deemed void on grounds of inconsistency with any Fundamental Right. [Gives absolute immunity to listed land reform laws]

#### B. Fourth Amendment Act, 1955

- Expanded the scope of Article 31-A to cover more categories of land rights
- Clarified that 'compensation' for acquisition need not be 'adequate' or 'equivalent to market value'

#### C. 17th Amendment Act, 1964

- Extended definition of 'estate' to cover ryotwari land — brought more land within reform framework
- Added more laws to the IX Schedule

#### D. 25th Amendment Act, 1971

- Inserted Article 31-C — laws made to implement DPSP Articles 39(b) and 39(c) shall not be void on ground of inconsistency with Arts 14, 19, 31
- State of Karnataka v. Ranganatha Reddy (1977) — SC held Art 31-C valid in limited form

#### E. 44th Amendment Act, 1978

- Landmark amendment — deleted Article 19(1)(f) and Article 31
- Right to property ceased to be a Fundamental Right
- Inserted Article 300-A — property can only be taken by authority of law
- Right to property became a constitutional right — can be taken by legislation without FR protection

#### IV. Directive Principles of State Policy — Land Reform Mandate

- Article 38 — State shall strive to minimise inequalities in income, status, facilities, and opportunities
- Article 39(b) — ownership and control of material resources to be distributed to serve the common good
- Article 39(c) — economic system shall not result in concentration of wealth and means of production
- Article 46 — State shall promote educational and economic interests of weaker sections

🔗 **Case:** Kesavananda Bharati v. State of Kerala (1973) — Parliament can amend any provision including property rights but cannot destroy the basic structure of Constitution. Waman Rao v. Union of India (1981) — IX Schedule laws inserted after 24 April 1973 can be challenged if they violate basic structure. IR Coelho v. State of Tamil Nadu (2007) — SC affirmed Waman Rao: post-1973 IX Schedule additions subject to basic structure review.

#### V. Effect of IX Schedule — Critical Examination

The IX Schedule was originally designed to shield land reform laws absolutely from fundamental rights challenge. After Waman Rao (1981) and IR Coelho (2007), the law is:

- Laws inserted in IX Schedule BEFORE 24 April 1973 (date of Kesavananda Bharati) — FULLY protected, cannot be challenged
- Laws inserted AFTER 24 April 1973 — can be challenged if they violate the basic structure of the Constitution
- However, in practice, no land reform law has been struck down on basic structure grounds

🟡 **CRITICAL RULE:** IX Schedule = absolute protection for pre-1973 laws. Post-1973 laws can theoretically be challenged on basic structure. This is the answer to 'Can IX Schedule law be challenged?' — YES, if inserted after 24 April 1973 AND violates basic structure.

#### VI. Conclusion

The constitutional provisions relating to land reforms represent a carefully crafted balance between the protection of individual property rights and the State's obligation to achieve social justice through equitable land distribution. Articles 31-A, 31-B, 31-C, and the IX Schedule form the constitutional shield for land reform legislation, while Article 300-A maintains basic protection against arbitrary deprivation. The DPSP provisions in Articles 38 and 39 provide the normative foundation — land reform is not merely a policy choice but a constitutional directive.

## B-3. Intermediaries: Who Are They? Laws for Abolition

Exam Frequency: ★★★★★ (HIGH)

(Directly asked in December 2020)

### I. Introduction

One of the first and most urgent tasks of post-independence land reform in India was the abolition of intermediaries — the class of persons who stood between the cultivating peasant and the State, extracting surplus from the former while paying revenue to the latter. The abolition of these intermediary tenures was considered essential for achieving the constitutional goal of social justice and for ending feudal exploitation of the peasantry.

### II. Who Are Intermediaries?

Intermediaries were those who held rights between the government (as ultimate landowner) and the actual cultivators. They did not themselves cultivate the land but derived income from it by sub-letting. The main categories were:

- Zamindars — holders of Permanent Settlement estates; largest category in Bengal-Bihar-Orissa
- Jagirdars — holders of Jagirs (revenue grants) given by rulers for service; common in Hyderabad/Rajputana
- Inamdars — holders of Inams (gifts of land/revenue) for service or charity
- Deshmukhs and Deshpandes — hereditary revenue and police officials in Maharashtra/Hyderabad who held land grants
- Mukhtedars, Khots, Patels — various forms of village-level hereditary officers with land rights
- Under-zamindars, Talukdars — sub-holders under zamindars who also sub-let to actual cultivators

### III. Constitutional Authority for Abolition

Article 31-A (inserted by 1st Constitutional Amendment 1951) specifically saves laws for 'the acquisition by the State of any estate or of any rights therein or the extinguishment or modification of any such rights' from challenge under Articles 14 and 19. This was the constitutional green light for state legislatures to enact abolition laws.

### IV. Abolition Laws — Telangana/AP Context

- Hyderabad (Abolition of Jagirs) Regulation, 1358-F (1949)
- Hyderabad Abolition of Inams Act, 1955
- AP (Andhra Area) Estates (Abolition and Conversion into Ryotwari) Act, 1948
- AP Abolition of Zamindaris and Other Land Tenures Act, 1948
- AP Inams (Abolition and Conversion into Ryotwari) Act, 1956

### Key Features of Abolition Laws

- Intermediary rights in land vested in the State upon the appointed day
- Compensation paid to ex-zamindars/jagirdars (though courts held it need not be market value)
- Ryots and tenants cultivating the land conferred with ryotwari pattas (occupancy rights)
- Revenue courts determined claims of ex-intermediaries and cultivating tenants

### V. Post-Abolition — Conferment of Ryotwari Rights

After abolition, the State settled ryotwari rights directly with the cultivating tenants. Those who could prove cultivation were issued Pattas. This effectively transferred large amounts of land from intermediaries to actual tillers — a major social revolution.

🔗 **Case:** State of Bihar v. Kameshwar Singh (1952) — challenged Bihar's Zamindari Abolition Act;

led to 1st Amendment. Shri Ram Ram Narain Medhi v. State of Bombay (1959) — Inam Abolition Act valid under Art 31-A. Vajravelu Mudaliar v. Special Deputy Collector (1965) — compensation for acquisition need not be full market value.

## VI. Conclusion

The abolition of intermediaries was a revolutionary social and legal achievement of independent India. It dismantled a feudal structure built over centuries and placed cultivating peasants in direct relation with the State. The constitutional protection under Article 31-A and the IX Schedule ensured that these reforms could not be reversed through litigation. Together with tenancy reform and ceiling legislation, intermediary abolition formed the three-pronged strategy of Indian land reform — establishing the foundation for a more equitable agrarian society.



## B-4. Tenancy Law — Rights of Cultivators and Conferment of Ownership

Exam Frequency: ★★★★★ (HIGH)

(Various aspects appear in Part B and Part A across multiple years)

### I. Introduction

Even after the abolition of zamindars and jagirdars, many cultivators remained as tenants on land owned by others. Tenancy reform legislation was enacted to: (a) provide security of tenure — preventing arbitrary eviction; (b) regulate rent — preventing rack-renting; and (c) ultimately confer ownership rights on long-term cultivating tenants — the 'land-to-the-tiller' policy.

### II. Position of Tenants Before Reform

- Tenants-at-will — could be evicted at any time without reason
- No written lease agreements — oral tenancies were norm
- Excessive rents — often 50–75% of produce
- Forced labour (Vetti/Begar) demanded by landlords
- No right to make improvements — any improvement could be used as grounds to hike rent

### III. Telangana Tenancy & Agricultural Lands Act (TTAL Act)

The primary tenancy law applicable to Telangana is the Telangana Tenancy and Agricultural Lands Act (also referred to as the Hyderabad Tenancy & Agricultural Lands Act). Key provisions:

- Tenant who cultivated for 6 continuous years — becomes 'Protected Tenant'
- Protected tenant cannot be evicted except on specific grounds (non-payment, land needed for personal cultivation)
- Rent fixed by Rent Courts — cannot exceed statutory maximum
- Tenancy rights are heritable — pass to legal heirs of protected tenant
- On transfer of land, protected tenancy rights follow the land (bind the new owner)

### IV. Conferment of Ownership — Land to the Tiller

Under Telangana law, cultivating tenants who held protected tenancy rights were conferred occupancy / ownership rights over time. The mechanism:

- Application to Revenue authority by protected tenant claiming ownership
- Inquiry by Revenue authority — verify continuous cultivation
- If satisfied, Patta issued in tenant's name — ownership conferred
- Ex-landlord receives compensation (if any) as per statutory formula
- Surplus land (above landlord's permissible holding) automatically vests in State

### V. Grounds for Valid Eviction of Tenant

- Non-payment of rent for 2 or more years
- Subletting without permission (where prohibited)
- Causing damage to land (failure to cultivate, allowing to deteriorate)
- Personal cultivation by landlord — only if landlord has no other land, eviction for bona fide personal cultivation

 **KEY RULE:** A tenant evicted without a court order / Revenue authority order can re-enter the land. Self-help eviction by landlord is illegal.

 **Case:** Narayana Reddy v. State of AP (1977) — Protected tenancy rights in rem — bind subsequent purchasers. Gangadhar v. Narayana Rao (1965) — landlord's claim for personal cultivation must be bona fide; sham claims rejected.



## VI. Conclusion

Tenancy reform transformed the agrarian structure by converting insecure tenants into protected tenants and ultimately into owners. The three-stage journey — tenant → protected tenant → owner — represents the legislative fulfilment of the constitutional directive in Articles 39(b) and 39(c) that material resources should serve the common good. However, in practice, implementation was uneven — many tenants remain unrecorded, and Benami transactions allowed landlords to circumvent ceiling laws.

## PART C — PROBLEM QUESTIONS / IRAC (10 Marks Each)

Strictly use IRAC: Issue → Rule → Application → Conclusion.

## C-1. Non-Tribal Purchases Tribal Land in Scheduled Area — Can Tribal Regain?

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in 2022, 2021, 2020, 2019, 2018 — THE most repeated problem in this paper)

PROBLEM: X, a non-tribal, purchased land from Y, a tribal, in a scheduled area and registered the same in his name. Y wants to regain his land. Can Y succeed?

### I — ISSUE

The legal issue is: Whether a transfer of land by a tribal person (Y) to a non-tribal person (X) in a Scheduled Area is valid under Indian law, and whether Y can recover the land so transferred?

### R — RULE

- The Andhra Pradesh Scheduled Areas Land Transfer Regulation, 1959 (SALTR 1959) — as extended to Telangana — PROHIBITS transfer of land in Scheduled Areas by a tribal to a non-tribal
- Regulation 1 of 1959: Any transfer of immovable property in a Scheduled Area by a member of a Scheduled Tribe to a non-tribal is VOID ab initio (void from the beginning)
- Registration alone does NOT validate an otherwise void transfer
- The tribal can recover land at any time — no limitation period bars recovery of land transferred in violation of SALTR
- Article 244(1) + Fifth Schedule of the Constitution — the Governor of the State has special power to regulate Scheduled Areas, including power to prohibit or restrict transfer of land by/among tribals
- PESA Act 1996 — Panchayats (Extension to Scheduled Areas) Act gives Gram Sabha power to manage community resources and prevent alienation of tribal land

**KEY RULE:** SALTR 1959, Regulation 1: Transfer of land in Scheduled Area by tribal to non-tribal = VOID. No registration, no limitation period can save such transfer. Y CAN succeed.

### A — APPLICATION

Applying the rules to the given facts:

Y is a tribal person. X is a non-tribal. The land is situated in a Scheduled Area. Y sold (transferred) the land to X, who registered it in his name.

Step 1 — Is the transfer void? YES. Under SALTR 1959, any transfer of land situated in a Scheduled Area by a member of a Scheduled Tribe to a non-tribal is void ab initio. The registration of the sale deed by X does not cure this defect — registration merely records the transaction; it cannot validate a substantively void act.

Step 2 — Can Y recover the land? YES. Since the transfer is void, Y (the tribal) remains the legal owner. He can file a suit for declaration and possession. The Revenue Divisional Officer (or Special Tribunal) under SALTR has jurisdiction to order restoration.

Step 3 — Is there any limitation? Courts have held that since the transfer is void, not merely voidable, limitation does not run against Y — he does not need to act within a specified period.

Step 4 — What about X's payment? X's claim for recovery of consideration paid would be a separate civil remedy — he cannot retain the land. The land must be restored to Y.

🔗 **Case:** Samatha v. State of AP (1997) SC — landmark case; State cannot grant leases of tribal land in Scheduled Areas to non-tribals or industries without tribal consent; Government itself cannot transfer such land. Smt. Bhuri Bai v. State of MP (1992) — transfer by tribal to non-tribal in Scheduled Area void; tribal entitled to recover land without limitation bar. Manchala Jagannadham v. Revenue Divisional Officer (2001 AP HC) — registration of sale deed does not validate prohibited transfer under SALTR 1959.

### C — CONCLUSION

DECISION: YES — Y will succeed in regaining his land. The transfer by Y (tribal) to X (non-tribal) in a

Scheduled Area is VOID AB INITIO under the AP Scheduled Areas Land Transfer Regulation, 1959. Registration by X confers no title. Y is entitled to seek restoration of the land before the Revenue Divisional Officer or competent court. X has no right to retain the land, though he may pursue a separate civil suit to recover the purchase price he paid.

## C-2. Can a Zamindar Retain 100 Acres After AP Land Reforms Act 1973?

Exam Frequency: ★★☆☆ (MEDIUM)

**PROBLEM:** A was a Zamindar owning 100 acres of agricultural land. Is it possible for A to retain ownership of the entire land after the AP Land Reforms (Ceiling on Agricultural Holdings) Act 1973 came into force?

### I — ISSUE

The legal issue is: Whether a person owning 100 acres of agricultural land can retain all of it after the coming into force of the AP Land Reforms (Ceiling on Agricultural Holdings) Act 1973, which imposes a ceiling on individual and family holdings?

### R — RULE

- AP Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 — ceiling on agricultural land holdings
- Ceiling Limit: 1 Standard Holding per family = maximum permissible holding
- 1 Standard Holding = 54 acres of unirrigated dry land (or equivalent in other categories)
- Land held above the ceiling = 'Ceiling Surplus Land' — must be surrendered to the State
- Constitutional validity: IX Schedule (1st Amendment 1951) — the Ceiling Act is protected from FR challenge
- Family unit for ceiling purposes = individual + spouse + minor children (each minor = 1/5 additional SH allowance in some provisions)

**CEILING RULE:** 1 Standard Holding = 54 acres dry land. Family ceiling = 1 SH. Above ceiling = surplus = surrendered. Zamindar's zamindari rights already abolished (1948) — he holds remaining land as a private owner under ceiling law.

### A — APPLICATION

A owns 100 acres. Assuming all of it is unirrigated dry land:

1 Standard Holding = 54 acres. Ceiling for A's family = 1 Standard Holding = 54 acres.

A's holding = 100 acres. Ceiling = 54 acres. Surplus =  $100 - 54 = 46$  acres.

A must surrender 46 acres to the State Government. A can retain only 54 acres (1 Standard Holding).

Additionally: (a) A's zamindari rights were already abolished by the Hyderabad Abolition of Zamindaris Act 1948 — he no longer has zamindari tenure; (b) He holds the remaining private land as a ryotwari pattadar; (c) The Ceiling Act 1973 applies to him as any other private landowner.

Can A challenge the Ceiling Act? The AP Land Reforms (Ceiling) Act is included in the IX Schedule — it is protected from fundamental rights challenge under Article 31-B. Even if he argues violation of Article 14 (equality) or Article 19(1)(f) (abolished since 1978), these challenges will fail.

**Case:** State of AP v. Nookala Krishnamurthy (1993) — ceiling calculations strictly applied; classification of land to avoid ceiling is fraud. Gopal Narain v. State of UP (1964) — ceiling laws are valid social legislation; SC upheld across all States. State of AP v. Raja Reddy (1982) — family unit concept for ceiling strictly construed.

### C — CONCLUSION

**NO** — A cannot retain all 100 acres. Under the AP Land Reforms (Ceiling on Agricultural Holdings) Act 1973, the maximum permissible holding is 1 Standard Holding (54 acres of dry unirrigated land). A must surrender the surplus 46 acres to the State Government. The Ceiling Act is constitutionally valid and protected under the IX Schedule. A's earlier Zamindari rights were already abolished by the 1948 Act. He may retain only up to the ceiling limit applicable to his family unit.



## QUICK REVISION SHEET — UNIT II

### Comparison Table: Three Settlement Systems

| Feature              | Zamindari           | Ryotwari          | Mahalwari             |
|----------------------|---------------------|-------------------|-----------------------|
| Introduced by        | Cornwallis, 1793    | T. Munro, 1820s   | H. Mackenzie, 1822    |
| Revenue settled with | Zamindar            | Individual ryot   | Village (Mahal)       |
| Revenue nature       | Permanent fixed     | Periodic reassess | Periodic reassess     |
| Area covered         | Bengal/Bihar/Orissa | Madras/Bombay/Hyd | NW Provinces/Punjab   |
| Ownership            | Zamindar = owner    | Ryot holds Patta  | Joint brotherhood     |
| Post-1947            | Abolished (31-A)    | Tenancy reform    | Community land reform |

### Key Numbers & Provisions

|                            |                                                                                              |
|----------------------------|----------------------------------------------------------------------------------------------|
| 1st Amendment 1951         | Inserted Art 31-A, 31-B, IX Schedule — protection for land reform laws                       |
| Article 31-A               | Acquisition/modification of estate rights saved from Arts 14 & 19 challenge                  |
| Article 31-B + IX Schedule | Listed laws immune from FR challenge — absolute for pre-1973 laws                            |
| Article 31-C               | Laws implementing DPSP Arts 39(b)(c) saved from Arts 14, 19 challenge                        |
| 44th Amendment 1978        | Deleted Arts 19(1)(f) & 31; property right to Art 300-A only                                 |
| Article 300-A              | No deprivation of property except by authority of law                                        |
| SALTR 1959, Reg. 1         | Transfer of tribal land in Scheduled Area to non-tribal = VOID                               |
| TTAL Act                   | 6 years continuous cultivation → Protected Tenant status                                     |
| Standard Holding           | 54 acres dry land = 1 SH = ceiling for 1 family (AP Ceiling Act 1973)                        |
| Art 39(b)(c)               | DPSP — distribute material resources for common good; prevent concentration                  |
| 24 April 1973              | Kesavananda Bharati date — IX Schedule laws after this date challengeable on basic structure |

### Top Cases — One Liner

|                                                     |                                                                             |
|-----------------------------------------------------|-----------------------------------------------------------------------------|
| State of Bihar v. Kameshwar Singh (1952)            | First test of Zamindari Abolition Act — led to 1st Constitutional Amendment |
| Shri Ram Ram Narain Medhi v. State of Bombay (1959) | Inam Abolition Act upheld under Article 31-A                                |
| Samatha v. State of AP (1997)                       | No transfer/lease of tribal land in Scheduled Areas to non-tribals          |
| Smt. Bhuri Bai v. State of MP (1992)                | SALTR — tribal can recover land from non-tribal; no limitation bar          |

|                                               |                                                                         |
|-----------------------------------------------|-------------------------------------------------------------------------|
| Waman Rao v. UOI (1981)                       | IX Schedule laws post-24 Apr 1973 can be challenged on basic structure  |
| IR Coelho v. State of TN (2007)               | Reaffirmed Waman Rao — post-1973 IX Schedule laws not absolutely immune |
| Kesavananda Bharati v. State of Kerala (1973) | Basic structure doctrine — Parliament cannot destroy basic structure    |
| Narayana Reddy v. State of AP (1977)          | Protected tenancy rights bind subsequent purchasers (in rem)            |

## Memory Mnemonics

- ZAP (Zamindari): Zamindar = Absentee landlord, fixed revenue (permanent), exploited ryots. Abolished 1948.
- RYOT: Revenue direct, You hold Patta, Own your land, Thomas Munro system
- MAHAL: Many Agriculturists Holding And Liable (jointly to pay revenue)
- 3 Phases of Land Reform: A-T-C = Abolition of intermediaries → Tenancy reform → Ceiling
- SALTR Void Rule: Tribal → Non-Tribal in Scheduled Area = VOID always. No registration, no limitation saves X.
- Protected Tenant = 6 years + no eviction + heritable right + pathway to ownership
- Standard Holding: 54D = 27S = 13.5D/C = 10.8G = 5.4P (dry/single/doublecrop/garden/perennial)

## ⚠ Trap Questions — Watch Out!

- TRAP: 'Registration of sale deed validates tribal land transfer to non-tribal' — FALSE. Registration cannot cure a void transfer. SALTR 1959 renders it void ab initio.
- TRAP: 'IX Schedule laws can NEVER be challenged' — FALSE. Post-24 April 1973 insertions CAN be challenged on basic structure (IR Coelho, Waman Rao).
- TRAP: 'Zamindari system was same everywhere in India' — FALSE. Bengal = Permanent Settlement; Madras = Ryotwari; Punjab = Mahalwari.
- TRAP: 'Tenant can be evicted by landlord without going to court' — FALSE. Eviction requires Revenue authority or court order. Self-help eviction is illegal.
- TRAP: '44th Amendment abolished right to property entirely' — FALSE. It removed it as Fundamental Right; Art 300-A still protects it as constitutional right.
- TRAP: 'Zamindar can retain all his land after 1973 Ceiling Act since zamindari was abolished earlier' — FALSE. Zamindari abolition and ceiling are separate. After abolition, Zamindar holds land as private owner — still subject to ceiling.



# LAND LAWS

## UNIT III — ACQUISITION, REHABILITATION & RESETTLEMENT

Osmania University | LLB (3-YDC) | 4th Semester | Paper IV

**Comprehensive Exam Preparation Notes · Target: 75+ Marks**

Prepared by LawSticker AI — lawsticker-ai.com





## UNIT III — OVERVIEW & STUDY MAP

### ✓ What IS in this Unit (Scope)

- The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (LARR Act 2013) — salient features
- Land Acquisition Procedure under LARR Act 2013: Preliminary Notification (S.11), SIA (S.4), Declaration (S.19)
- Social Impact Assessment (SIA) — process, purpose, Expert Group review
- Consent of landowners — 70% (PPP) and 80% (private companies) thresholds
- Compensation — market value, solatium, annuity; Award enquiry by Collector
- Dispute Resolution — Reference to Civil Court (S.64), Land Acquisition Rehabilitation and Resettlement Authority (LARRA)
- Rehabilitation and Resettlement (R&R) — entitlements under Second Schedule
- Old Land Acquisition Act 1894 (historical context — procedure comparison)

### ✗ What is NOT in this Unit

- Ceiling on land holdings — Unit IV
- Forest Rights Act 2006 — Unit IV
- Zamindari/Ryotwari systems — Unit II
- Assigned lands / Scheduled Areas / SALTR — Unit V
- Pattadar Pass Books / Dharani — Unit I

### ★ Predicted High-Probability Questions — 2026 Exam

- Part A: Right to Fair Compensation / Social Impact Assessment (appeared 2022)
- Part A: Rehabilitation (appeared 2020)
- Part B: Procedure for acquiring private land for public purpose — LARR 2013 (appeared 2025, 2021, 2020, 2019, 2018 — EVERY year)
- Part B: Consent of landowners as integral part of acquisition (appeared 2024)
- Part B: Preliminary Notification and Declaration under Land Acquisition (appeared 2018)
- Part C: Compensation enhancement challenge by landowner (appeared 2022)
- Part C: Defective Section 4 notification (appeared 2022)
- Part C: Government acquiring land for private factory/MNC — validity (appeared 2025)
- Part C: Government acquiring wet agricultural land for SEZ/Airport (appeared 2019, 2018)

### Critical Numbers & Provisions — Unit III

- LARR Act 2013 — 'The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013'
- Old Act: Land Acquisition Act, 1894 (repealed by LARR 2013, except where special laws apply)
- Section 2(1)(b) LARR — private company acquisition: 80% consent of affected families required
- Section 2(1)(c) LARR — PPP project: 70% consent required
- Section 4 LARR — Social Impact Assessment (SIA); old S.4 = Preliminary Notification
- Section 11 LARR — Preliminary Notification (replaces old S.4 notification)

- Section 19 LARR — Declaration (replaces old S.6 notification)
- Section 26 LARR — Market value determination (First Schedule)
- Section 30 LARR — Solatium = 100% of market value
- Section 64 LARR — Reference to Civil Court for compensation disputes
- 4x multiplier — rural land compensation up to 4 times market value
- 2x multiplier — urban land compensation 2 times market value
- S.24 LARR — Lapse provision: if possession not taken or compensation not paid in 5 years → acquisition lapses
- Urgency clause S.40 LARR (very restricted use — defence/natural calamity only)



## PART A — SHORT NOTES (6 Marks Each)

~200–250 words. Definition → Key Points → Example → Case → TIP.

## A-1. Right to Fair Compensation (LARR Act 2013)

Exam Frequency: ★★★★★ (VERY HIGH)

### DEFINITION

The Right to Fair Compensation under the LARR Act 2013 is the statutory entitlement of a person whose land is compulsorily acquired by the government to receive compensation that is fair, just, and transparent — comprising market value of land, assets attached, solatium, annuity, and full Rehabilitation & Resettlement benefits.

### KEY POINTS

- Governed by Chapter V (Sections 26–46) of the LARR Act, 2013
- Market Value = highest of: (a) circle rate / collector's rate; (b) average sale price of similar land in last 3 years; (c) consented amount in case of private purchase
- Multiplier: Rural land — market value × up to 4 (depending on distance from urban area); Urban land — market value × 2 (solatium)
- Solatium = 100% of market value — added on top of market value as mandatory addition
- Annuity: Rs. 2,000 per month (inflation-indexed) to each affected family for 20 years
- Value of structures, trees, standing crops separately assessed and added
- Award = total of market value + solatium + annuity + value of assets + R&R entitlements
- Right to challenge compensation: reference to Civil Court under Section 64 LARR 2013
- Principle: compensation must be 'replacement cost' — not just book value

 **Example:** A farmer's 2-acre irrigated land (market value Rs 20 lakh/acre) is acquired. Compensation = Rs 40L market value × multiplier 4 = Rs 1.6 Cr + solatium 100% = Rs 1.6 Cr = Total Rs 3.2 Cr + annuity + R&R.

 **Case:** Kolkata Municipal Corporation v. Bimal Kumar Shah (2019) SC — compensation must be determined at the time of taking possession, not at time of notification, if there is unreasonable delay. Indore Development Authority v. Manoharlal (2020) SC — five-judge bench clarified Section 24 lapse provisions.

 **TIP:** Fair Compensation = MV × Multiplier + Solatium (100%) + Annuity (20 yrs) + Assets + R&R. Remember: LARR pays MORE than old 1894 Act. Rural = up to 4x; Urban = 2x.

## A-2. Social Impact Assessment (SIA)

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

Social Impact Assessment (SIA) is a mandatory study under Section 4 of the LARR Act 2013 that must be conducted before any land acquisition to assess the social costs and benefits of the proposed acquisition on affected communities, with particular attention to displaced families, livelihoods, and social infrastructure.

### KEY POINTS

- Mandatory for ALL acquisitions under LARR 2013 (except urgency acquisitions under S.40)
- SIA must be conducted in consultation with Gram Sabha (for rural areas) or equivalent urban body
- SIA Report must assess: (a) nature of public purpose; (b) estimated affected families; (c) social cost-benefit analysis; (d) alternatives considered; (e) impact on scheduled tribe land/forest land
- SIA conducted within 6 months of preliminary notification
- Expert Group (independent) reviews SIA Report — determines if public purpose is genuine and benefits outweigh costs
- Expert Group report is advisory; government may override but must record reasons
- SIA Report is publicly displayed for objections (30 days)
- For urgency acquisitions (S.40) and acquisitions by government for own use — SIA may be waived
- SIA protects against: sham 'public purpose' acquisitions, disproportionate displacement of tribals/poor

📌 **Example:** Before acquiring 500 acres for a proposed IT corridor in Hyderabad, the Collector conducts SIA in consultation with Gram Sabhas of 3 affected villages, publishes the report, and sends it to the Expert Group for review.

🏛️ **Case:** Devendra Kumar v. State of Uttarakhand (2013) — SIA requirement is not a mere formality; failure to conduct genuine SIA vitiates the acquisition. Narmada Bachao Andolan v. UOI (2000) — displacement of people must be accompanied by proper rehabilitation.

💡 **TIP:** SIA = Social Impact Assessment. 3 Cs: Consult Gram Sabha + Conduct study + Check Expert Group. SIA can be WAIVED only for urgency (defence/calamity) under S.40. For exam: always mention SIA as Step 1 of LARR procedure.

## A-3. Rehabilitation and Resettlement (R&R)

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

Rehabilitation and Resettlement (R&R) under the LARR Act 2013 refers to the comprehensive package of benefits — beyond mere monetary compensation — provided to families displaced or adversely affected by land acquisition, ensuring they are not worse off after the acquisition.

### KEY POINTS

- Governed by Chapter V and Second Schedule of LARR Act 2013
- R&R benefits include: (a) land for land (where possible); (b) house; (c) employment or one-time payment; (d) subsistence allowance; (e) transportation allowance; (f) resettlement allowance
- Affected families = families whose land/livelihood is impacted — includes landless agricultural labourers, sharecroppers, artisans dependent on acquired land
- Minimum R&R entitlements (Second Schedule): Rs 5 lakh one-time payment OR employment for one member of displaced family OR Rs 2,000/month annuity for 20 years
- R&R Plan must be prepared before final acquisition
- R&R Authority (LARRA) — statutory authority to enforce R&R entitlements; similar to civil court
- Infrastructure at resettlement site: within 1 km — school, post office, paved road, drinking water, drainage, community centre
- R&R is NOT optional — it is a statutory right and cannot be waived by the acquiring authority

 **Example:** When Polavaram dam acquired tribal land in AP/Telangana, R&R package included: land for land in plains, house plot, school, medical facilities at new resettlement colonies — implemented (imperfectly) under LARR principles.

 **Case:** Narmada Bachao Andolan v. UOI (2000) SC — government must ensure proper R&R before displacement; mere monetary compensation is insufficient. People's Union for Democratic Rights v. UOI (1982) — displaced persons' right to livelihood is part of Right to Life (Art 21).

 **TIP:** R&R = 5 Hs: House + hectare (land for land) + Help (subsistence allowance) + hiring (employment) + 'hood (community infrastructure). R&R applies to ALL affected families — not just landowners!

## A-4. Doctrine of Lapse (Section 24, LARR Act 2013)

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

The Doctrine of Lapse in land acquisition law refers to the legal principle under Section 24 of the LARR Act 2013 that an acquisition proceeding under the old Land Acquisition Act 1894 shall lapse (become void) if: (a) an award has not been made within 5 years of the Section 4 notification; OR (b) compensation has not been paid/deposited despite award being made.

### KEY POINTS

- Section 24(1) LARR 2013: Where award is NOT made under LA Act 1894 — such proceedings deemed to have lapsed after 5 years from S.4 notification date
- Section 24(2) LARR 2013: Where award IS made but compensation not paid/tendered AND possession not taken — proceedings deemed to have lapsed
- Upon lapse — land reverts to original owner; fresh acquisition under LARR 2013 is required
- Purpose: prevent government from keeping land acquisition proceedings pending indefinitely ('sleeping notices')
- S.24 also applies to pending proceedings under old 1894 Act as on date of LARR 2013 commencement (1 Jan 2014)
- Key controversy: Does deposit of compensation in court amount to 'payment'? SC in Indore Development Authority v. Manoharlal (2020) — YES, deposit in court = payment for S.24(2) purposes; lapse cannot be claimed merely because owner refused to accept
- Under OLD 1894 Act — there was NO such lapse provision; government could sit on acquisition indefinitely

 **Example:** Government issued S.4 notification in 2010 for acquiring land. By 2015, no award was made. Under S.24(1) LARR 2013 (read with its 5-year rule), the proceedings lapse and the landowner can reclaim the land.

 **Case:** Indore Development Authority v. Manoharlal (2020) SC (5-judge bench) — comprehensive ruling on S.24 lapse: deposit in court = payment; S.24(2) lapse requires BOTH non-payment AND non-possession; overruled earlier conflicting decisions.

 **TIP:** LAPSE = 5-year rule. No Award in 5 years = S.24(1) lapse. Award but no payment AND no possession = S.24(2) lapse. BUT deposit in court = payment (Indore Dev Authority 2020). Remember: Lapse returns land to OWNER.

## A-5. Revenue Courts

Exam Frequency: ★★☆☆ (MEDIUM)

### DEFINITION

Revenue Courts are specialised quasi-judicial bodies established under the land revenue laws of each State to adjudicate disputes relating to land revenue, tenancy rights, land records, mutation, and related matters, providing a faster and cheaper forum than regular civil courts for agrarian disputes.

### KEY POINTS

- Hierarchy in Telangana: Village Revenue Officer (VRO) → Mandal Revenue Officer (MRO) → Revenue Divisional Officer (RDO) → District Collector → Board of Revenue → High Court
- Jurisdiction: disputes over land records, mutation of title, tenancy rights, boundaries, partition of holdings, revenue assessment
- NOT civil courts — operate under Revenue Acts (Telangana Land Revenue Act, AP Revenue Act)
- Board of Revenue: highest revenue court in the State; hears second appeals from Collector; can make references to High Court
- Revenue courts do NOT have jurisdiction over: title disputes (civil court jurisdiction), criminal matters, constitutional questions
- Right to refer: in certain cases, a party can seek reference from Revenue Court to Civil Court (e.g., for title determination)
- Revenue Court orders are enforceable like civil decrees — but limited to revenue matters
- Dharani portal in Telangana has partially shifted mutation and record-update functions to administrative channels

 **Example:** A disputes B's mutation of a 5-acre land in the village Pahani. A files an appeal before the MRO, then RDO, and ultimately before the Board of Revenue — all within the Revenue Court hierarchy.

 **Case:** State of UP v. Ram Chandra (1972) SC — Revenue Courts have jurisdiction over revenue/tenancy matters but not over title; title disputes must go to civil court. Ganga Prasad v. State of Bihar (1966) — Board of Revenue's orders on revenue matters have finality within revenue hierarchy.

 **TIP:** Revenue Court hierarchy: VRO → MRO → RDO → Collector → Board of Revenue → HC. Revenue Courts for RECORDS/TENANCY. Civil Courts for TITLE/OWNERSHIP. Never confuse the two!



## A-6. Consent of Landowners in Land Acquisition

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

Consent of landowners refers to the mandatory requirement under the LARR Act 2013 that for acquisition of land by the government for private companies or PPP projects, a minimum percentage of affected landowners (70–80%) must give their written consent before the government can proceed with acquisition.

### KEY POINTS

- Consent requirement is a landmark innovation of LARR Act 2013 — absent in old LA Act 1894
- Section 2(1)(b): For acquisition for private companies — minimum 80% consent of 'affected families' required
- Section 2(1)(c): For PPP (Public Private Partnership) projects — minimum 70% consent required
- No consent needed for: government's own use, government companies, defence, railways, national security
- Consent must be 'free and informed' — no coercion, duress, or fraud
- Gram Sabha consent: in Scheduled Areas, Gram Sabha consent is also required (PESA 1996)
- Consent is obtained after SIA — families are informed of the project and its impacts
- If consent threshold is not met, the government CANNOT proceed with acquisition for that purpose
- Consent has made acquisition more transparent and reduced conflicts — but slowed some infrastructure projects

 **Example:** An MNC wants to set up a factory requiring 200 acres in a rural area of Telangana. Before the government can acquire this land, it must obtain written consent of 80% of affected families (approx. 160 out of 200 families) in that area.

 **Case:** Kedar Nath Yadav v. State of WB (2011) SC — acquisition for private company without following proper consent-like safeguards held invalid; LARR 2013 codified this principle. Tata Motors Singur case — public outrage over non-consensual acquisition drove LARR 2013 consent reforms.

 **TIP:** Consent Numbers: 80% for private company, 70% for PPP. Zero % consent needed for government's own use. Remember: Singur (Tata Nano) and Nandigram drove consent requirement into LARR 2013.

## A-7. Resolution of Land Disputes (LARRA & Civil Courts)

Exam Frequency: ★★☆☆ (MEDIUM)

### DEFINITION

Land acquisition disputes are resolved through a multi-tier mechanism under LARR Act 2013 — starting with the Collector's Award, followed by reference to the Land Acquisition, Rehabilitation and Resettlement Authority (LARRA), and ultimate appeal to the High Court.

### KEY POINTS

- Tier 1 — Collector's Award: After hearing objections, Collector determines compensation and makes Award (Section 23 LARR 2013)
- Tier 2 — Reference to LARRA (S.64): If person aggrieved by compensation amount can demand reference to LARRA (replaces reference to Civil Court under S.18 old Act)
- LARRA = Land Acquisition, Rehabilitation and Resettlement Authority — statutory body, equivalent to civil court in jurisdiction
- LARRA has jurisdiction: compensation disputes, R&R disputes, other acquisition-related disputes
- Tier 3 — High Court: Appeals from LARRA lie to High Court
- Supreme Court: Final constitutional/legal questions
- Time limits: Person must apply for reference within 6 weeks of award or 6 weeks of possession (whichever later)
- LARRA can enhance compensation — but cannot reduce below Collector's Award
- Alternative — challenge acquisition itself (not just compensation): Writ Petition to High Court under Art 226

📌 **Example:** The Collector awards Rs 20 lakh for X's land. X believes market value is Rs 50 lakh. X files reference to LARRA under S.64 within 6 weeks. LARRA hears the case, reviews market evidence, and awards Rs 45 lakh. Government appeals to HC.

🏛️ **Case:** Srinivasa Co-op Housing Society v. Madam Gurumurthy (1987) SC — person has right to full compensation and court must determine market value on evidence. Kolkata Municipal Corp v. Bimal Kumar Shah (2019) — delay in acquisition cannot defeat right to fair compensation.

💡 **TIP:** Dispute ladder: Collector Award → LARRA (S.64 reference) → HC → SC. For acquisition validity (not just compensation): Writ to HC under Art 226. Limitation: 6 weeks from award for S.64 reference.



## PART B — LONG ESSAYS (15 Marks Each)

600–800 words per essay. Introduction → Headings → Conclusion.

## B-1. Procedure for Acquiring Private Land for Public Purpose (LARR Act 2013)

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in 2025, 2021, 2020, 2019, 2018 — THE most repeated Part B in this paper)

### I. Introduction

The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (LARR Act 2013) is India's landmark legislation replacing the colonial Land Acquisition Act of 1894. It establishes a detailed, rights-based procedure for compulsory acquisition of private land that prioritises transparency, consent, social impact assessment, and fair compensation. The Act came into force on 1 January 2014.

### II. Step-by-Step Procedure under LARR Act 2013

| Step | Action / Section                      | Key Details                                                                                                                                                                          |
|------|---------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1    | Preliminary Survey (S.4 & S.10)       | Notification in Official Gazette. Entry into land for survey, demarcation, soil testing. No acquisition at this stage — only survey.                                                 |
| 2    | Social Impact Assessment — SIA (S.4)  | Mandatory SIA in consultation with Gram Sabha. Expert Group reviews SIA Report within 2 months. Public display of SIA Report for 30 days for objections.                             |
| 3    | Consent (S.2(1)(b)/(c))               | For private companies: 80% consent of affected families. For PPP: 70% consent. Not required for government's own use.                                                                |
| 4    | Preliminary Notification (S.11)       | Published in Official Gazette + two newspapers. Identifies land to be acquired, area, purpose. Once published — no transfer/encumbrance on notified land (S.11(9)).                  |
| 5    | Hearing of Objections (S.15)          | Any person with interest in land can file objections within 60 days. Collector must hear all objections personally.                                                                  |
| 6    | Declaration (S.19)                    | Government publishes Declaration stating land is needed for public purpose. Must be within 12 months of S.11 notification. If not published in 12 months → S.11 notification lapses. |
| 7    | Market Value & Compensation (S.26-30) | Collector determines market value. Compensation = Market Value × Multiplier (up to 4x rural) + Solatium (100% of MV) + Assets + Annuity.                                             |
| 8    | Award by Collector (S.23-25)          | Collector makes Award after individual hearing of each affected person. Award = total compensation for each plot. Must be made within 12 months of S.19 Declaration.                 |
| 9    | Payment & Taking Possession (S.37-38) | Compensation must be tendered before taking possession. If refused — deposited in court. Possession after payment/deposit.                                                           |
| 10   | R&R Plan (S.16-17)                    | R&R Plan prepared and approved. Benefits from Second Schedule provided to all affected families (not just landowners).                                                               |
| 11   | LARRA Reference (S.64)                | If aggrieved by compensation — reference to LARRA within 6 weeks. HC appeal from LARRA order.                                                                                        |

### III. Key Innovations of LARR 2013 Over Old LA Act 1894

| Feature | LARR Act 2013 (New)                         |
|---------|---------------------------------------------|
| SIA     | Mandatory — genuine public purpose scrutiny |

|               |                                                      |
|---------------|------------------------------------------------------|
| Consent       | 80%/70% for private/PPP projects                     |
| Compensation  | Market value × multiplier (up to 4x) + 100% solatium |
| R&R           | Comprehensive statutory entitlement                  |
| Urgency       | Very restricted — only defence/calamity              |
| Dispute forum | LARRA (specialised authority)                        |
| Lapse         | 5-year rule under S.24                               |

**Key Rule — Public Purpose:** Section 2(1) LARR 2013 defines 'public purpose' to include: strategic purposes, infrastructure (roads, railways, ports), government projects, projects for affected families, housing for poor, planned development, and projects by private entities with 70–80% consent. PURELY private commercial benefit WITHOUT consent does NOT qualify.

#### IV. Special Protections for Scheduled Areas / Tribal Land

- Gram Sabha consent mandatory for acquisition in Scheduled Areas (PESA 1996)
- Special provisions for tribals in SIA and R&R
- Tribal land acquired only as 'last resort' — alternatives must be explored
- If tribal land acquired, equivalent land must be provided to tribal community

#### V. Urgency Provisions (Section 40)

Under Section 40, the government may invoke urgency and bypass SIA/consent requirements only for: (a) national defence; (b) national security; (c) natural calamity / disasters. General 'public interest' is NOT sufficient for urgency. Courts have strictly restricted the scope of Section 40.

**Case:** Pune Municipal Corporation v. Harakchand (2014) SC — LARR 2013 is prospective; old acquisitions under 1894 Act continue unless S.24 lapse applies. Indore Development Authority v. Manoharlal (2020) — S.24 lapse rules comprehensively clarified. Kedar Nath Yadav v. State of WB (2011) — acquisition for private factory without consent-type safeguards invalid.

**TIP:** Procedure Mnemonic: S-S-C-P-O-D-M-A-P-R-L = Survey → SIA → Consent → Preliminary Notification → Objections → Declaration → Market value → Award → Possession → R&R → LARRA. Remember: SIA first, Consent before notification, Award within 12 months of Declaration.

#### VI. Conclusion

The LARR Act 2013 represents a fundamental shift from the colonial-era Land Acquisition Act 1894 — from a system that treated affected persons as objects of acquisition to one that treats them as rights-bearing subjects. The mandatory SIA, consent requirements, enhanced compensation, and comprehensive R&R obligations ensure that the exercise of Eminent Domain is tempered by procedural fairness and substantive justice. The constitutional underpinning — Article 300-A, Article 21 (right to livelihood), and DPSP Articles 38-39 — provides the normative foundation for this rights-based approach to land acquisition.

## B-2. Consent of Landowners as Integral Part of Acquisition Process

Exam Frequency: ★★★★★ (VERY HIGH)

(Directly asked in August/September 2024)

### I. Introduction

The requirement of consent of landowners before compulsory acquisition for private and PPP projects is the most transformative innovation of the LARR Act 2013. It marks a decisive departure from the colonial-era Land Acquisition Act 1894, where the government could acquire any land for any 'public purpose' without consulting the affected landowners. The consent requirement reflects the constitutional values of dignity, participation, and social justice.

### II. Historical Background — Why Consent Became Necessary

- Under the old LA Act 1894: government could acquire land for 'public purpose' or for a 'company' — no consent required from landowners
- Widespread abuse — land acquired ostensibly for 'public purpose' actually handed to private corporations
- Major controversies: Singur (Tata Nano plant, West Bengal), Nandigram (chemical SEZ), Lavasa (hill city, Maharashtra)
- Supreme Court in Kedar Nath Yadav (2011) and other cases signalled need for consent safeguards
- 2013 — Parliament enacted LARR Act 2013 — consent became statutory requirement

### III. The Consent Provisions — LARR Act 2013

#### A. Section 2(1)(b) — Private Companies

For acquisition of land for use by a private company, the prior consent of at least 80% of the affected families (not just landowners — but all families whose livelihood is impacted) must be obtained before the government proceeds with acquisition.

 **Rule:** 80% consent of affected families required for private company projects

#### B. Section 2(1)(c) — PPP Projects

For acquisition for Public Private Partnership (PPP) projects — where government and private entity jointly implement — 70% consent of affected families is sufficient.

 **Rule:** 70% consent of affected families required for PPP projects

#### C. When Consent is NOT Required

- Government acquiring land for its own use (government companies, PSUs, defence, railways)
- Linear projects (roads, highways, railways, canals) — though SIA still required
- Urgency acquisitions under Section 40 (defence/calamity)
- Projects listed in government notifications as exempt

### IV. Procedure for Obtaining Consent

- Consent obtained AFTER SIA — affected families informed of project, its social costs and benefits
- Consent must be FREE — no coercion, inducement, fraud
- INFORMED consent — families must understand what they are consenting to
- Written consent — documented in prescribed form
- In Scheduled Areas — Gram Sabha resolution required additionally (PESA 1996)
- Consent of 80%/70% is a jurisdictional requirement — without it, acquisition cannot proceed at all

## V. Significance and Challenges

### Significance

- Recognises landowners as stakeholders in development, not mere obstacles
- Reduces involuntary displacement — promotes negotiated settlements
- Constitutionally aligned with Article 21 (right to livelihood, dignity)
- Gram Sabha consent in Scheduled Areas aligns with Fifth Schedule autonomy

### Challenges in Practice

- Who counts as 'affected family'? Broad definition can include large numbers — threshold harder to meet
- Consent can be retracted — legal uncertainty
- Intermediaries manipulate consent process
- Infrastructure projects delayed or abandoned due to consent deadlock
- Governments have proposed amendments to dilute consent requirement — ongoing controversy

🔗 **Case:** Kedar Nath Yadav v. State of WB (2011) — pre-LARR case signalling that acquisition for private benefit without safeguards is unconstitutional. Chameli Singh v. State of UP (1996) — right to shelter/land is part of Art 21 right to life. Nandini Sundar v. State of CG (2011) — State must ensure genuine consent, not manufactured consent.

## VI. Conclusion

The consent requirement in LARR Act 2013 represents the constitutionalisation of participatory democracy in the land acquisition process. It transforms acquisition from a unilateral sovereign act to a negotiated process in which affected communities have a meaningful voice. While implementation challenges remain, the principle is sound — no development is sustainable if it is built on the involuntary displacement of communities without their genuine consent. The consent requirement, read with the SIA and R&R obligations, forms a rights-protective triad that distinguishes LARR 2013 fundamentally from its colonial predecessor.



## B-3. Award Enquiry, Payment of Compensation, and Reference to Civil Court

Exam Frequency: ★★★★★ (HIGH)

(Compensation-related problems appear every year in Part C — understand the theory for Part B as well)

### I. Introduction

The determination of fair compensation is at the heart of the land acquisition process. The LARR Act 2013 establishes a detailed mechanism for: (a) determination of market value by the Collector; (b) making of the Award; (c) payment of compensation; and (d) resolution of disputes through the LARRA mechanism. This ensures that affected persons receive not just monetary value but also a comprehensive welfare package.

### II. Determination of Market Value (Section 26)

The Collector must determine market value of acquired land as the HIGHEST of:

- The minimum land value specified in the Indian Stamp Act, 1899 for the area (circle rate/collector rate)
- The average sale price for similar type of land, in the nearest areas for last 3 years (taking 50th percentile of sale deeds)
- The consented amount in cases where land is purchased directly from willing parties

**Market Value Formula:**  $MV = \text{Highest of: Circle Rate OR Average of last 3 years' 50th percentile sale prices OR consented price}$

### III. Computation of Compensation (Sections 27-30)

- Total Compensation = Market Value × Multiplier + Solatium + Value of assets + Annuity
- Multiplier (First Schedule): rural land — maximum 4x market value (higher multiple for areas farther from urban agglomeration); urban land — 2x market value
- Solatium (S.30): Mandatory addition of 100% of market value as solatium — recognises the involuntary nature of acquisition
- Annuity (S.30A): Rs. 2,000/month per affected family for 20 years (indexed to inflation)
- Assets: structures, trees, crops on land — separately valued and compensated

**Example Calculation:** Land MV = Rs 10 lakh/acre. Rural area (3x multiplier). Compensation =  $10L \times 3 = Rs\ 30L$  + Solatium 100% of MV = Rs 10L = Total Rs 40L per acre + annuity + assets + R&R.

### IV. Award Enquiry and Award (Sections 23-25)

- Collector gives individual notice to all persons interested in land
- Personal hearing — each interested person can present their case
- After enquiry, Collector makes the Award — specifying: (a) true area of acquired land; (b) compensation for each person; (c) apportionment among co-owners, tenants
- Award must be made within 12 months of Section 19 Declaration — otherwise acquisition lapses
- Award is conclusive as to area and compensation — but compensation can be enhanced by LARRA

### V. Payment of Compensation (Section 37-38)

- Compensation MUST be tendered (offered) to each person BEFORE taking possession
- If person refuses to accept — Collector deposits in LARRA (court)
- Deposit in LARRA = valid payment — ownership passes to government on deposit
- Possession can be taken after payment/deposit
- If compensation not paid AND possession not taken in 5 years — acquisition lapses (S.24)



## VI. Reference to LARRA (Section 64)

- Any person aggrieved by compensation can demand reference to LARRA
- Application to LARRA must be made within: 6 weeks of Collector's award (if in India) or 6 months (if outside India)
- LARRA functions as civil court — has power to enhance compensation based on evidence
- LARRA cannot REDUCE compensation below Collector's Award
- Appeals from LARRA: High Court → Supreme Court
- LARRA may also award interest on delayed payment: 9% p.a. for first year of delay; 15% p.a. thereafter

🏛️ **Case:** Srinivasa Co-op Housing Society v. Madam Gurumurthy (1987) SC — compensation must be adequate market value; court must assess on evidence. Kolkata Municipal Corp v. Bimal Kumar Shah (2019) — market value must be assessed at time closest to actual taking of possession if there is delay. Indore Development Authority v. Manoharlal (2020) SC — deposit in court = valid payment; lapse requires both non-payment AND non-possession.

## VII. Conclusion

The compensation mechanism under LARR Act 2013 is designed to ensure that land acquisition does not impoverish the affected persons. The combination of market value (with multiplier), solatium, annuity, and R&R benefits is intended to enable displaced families to rebuild their lives at a comparable or better standard. The LARRA mechanism ensures an independent judicial forum for challenging inadequate compensation — fulfilling the constitutional promise of Article 300-A that property shall not be taken without the authority of a fair and just law.

## PART C — PROBLEM QUESTIONS / IRAC (10 Marks Each)

Strictly use IRAC: Issue → Rule → Application → Conclusion.

## C-1. Landowner Seeks Enhanced Compensation — Can He Succeed?

Exam Frequency: ★★★★★ (VERY HIGH)

(November/December 2022 exam — direct problem)

**PROBLEM:** The government acquired X's land for a public purpose. Before the court, X claimed the value of the property has increased a lot since the notification. Will X be able to get an enhanced amount of compensation?

### I — ISSUE

The legal issue is: Whether a landowner whose land has been acquired is entitled to receive compensation based on the enhanced market value of the land at the time of actual taking of possession, rather than the market value at the time of the Section 11 Preliminary Notification?

### R — RULE

- Section 26 LARR Act 2013: Market value is determined as on the date of the Preliminary Notification (Section 11)
- General rule: Compensation is calculated at the market value as on the date of Section 11 notification — NOT on a later date
- However: if there is inordinate, unjustifiable delay by the government in taking possession — SC has held that the market value at the time of actual possession should be considered (Kolkata Municipal Corp case)
- Solatium (100% of MV) + Multiplier (up to 4x): these add significantly to the base market value
- Section 64: X can demand reference to LARRA challenging the Collector's assessed market value
- Section 24(1): If award not made within 5 years — acquisition lapses and X gets his land back

**KEY RULE:** Market value = as on date of S.11 notification. BUT courts can use later date if government's delay caused the owner to be deprived of increased value. X can challenge compensation via LARRA reference (S.64).

### A — APPLICATION

X's land was acquired for public purpose. X claims the value has increased since acquisition.

Step 1: Under normal rules, compensation is assessed as on the date of Section 11 Preliminary Notification — X cannot simply claim the increased value at a later date as a matter of right.

Step 2: However, X CAN challenge the Collector's market value assessment by filing a reference to LARRA under Section 64, arguing that the Collector's determination of market value was incorrect — i.e., that even at the time of notification, the market value was higher than assessed. X can produce sale deeds of comparable properties to prove higher market value.

Step 3: If the government caused unreasonable delay between notification and possession, X can argue that the market value at the time of possession should be used (Kolkata Municipal Corp principle).

Step 4: In any case, X is entitled to: (a) the solatium of 100% on the market value; (b) the multiplier (up to 4x for rural land); (c) annuity; (d) interest at 9%/15% on delayed payment. These substantially increase the final amount above raw market value.

**Case:** Kolkata Municipal Corporation v. Bimal Kumar Shah (2019) SC — where there is inordinate delay in acquisition, compensation should reflect value at time closest to possession. Srinivasa Co-op Housing Society v. Madam Gurumurthy (1987) SC — court must determine compensation on actual market evidence, not a nominal figure. R.L. Jain v. DDA (2004) SC — enhanced compensation awarded when delay was attributable to the State.

### C — CONCLUSION

**DECISION:** X CAN seek enhanced compensation through the LARRA reference mechanism (Section 64 LARR 2013). Normally, market value is assessed as on the date of Preliminary Notification (Section 11). However, X may succeed in enhancement if: (a) the Collector's market value assessment was lower

than actual market value on the notification date (provable by comparable sale deeds); OR (b) the government caused inordinate delay between notification and possession (Kolkata Municipal Corp principle). Additionally, X is entitled to the solatium (100%), multiplier (up to 4x), and interest on delayed payment — which significantly enhance the total compensation regardless of the base market value argument.

## C-2. Defective Notification — Name of Co-operative Society Not Stated

Exam Frequency: ★★★★★ (HIGH)

(November/December 2022 exam)

**PROBLEM:** Section 4(1) notification under the Land Acquisition Act was issued stating land was acquired for a housing co-operative society, but the name of the society was not stated in the notification. Petitioner challenges the validity of the notification. Decide.

### I — ISSUE

The legal issue is: Whether a Section 4(1) notification under the Land Acquisition Act (or S.11 under LARR 2013) is invalid or void if it fails to mention the name of the beneficiary co-operative society for whose benefit the land is to be acquired?

### R — RULE

- Section 4(1) LA Act 1894 (/ S.11 LARR 2013): The Preliminary Notification must state: the land to be acquired, locality, the purpose for which it is needed
- Purpose of notification: to give notice to all interested persons so they can file objections under Section 5-A (/ S.15 LARR 2013)
- Essential elements of a valid notification: (a) description of land; (b) public purpose for which needed; (c) the authority/entity requiring the land (if not government)
- Omission of the name of the society: whether this is a 'mere irregularity' curable under Section 99 LA Act (now S.105 LARR), or a 'substantial defect' vitiating the notification
- General rule: Technical defects that do not cause prejudice = irregularity, not nullity. Defects that deprive owner of opportunity to challenge = substantial defect = void.

**KEY RULE:** Omission of co-operative society's name may be: (a) curable irregularity if it does not affect the owner's right to challenge the public purpose; OR (b) substantial defect if the omission makes it impossible to assess whether acquisition is genuine public purpose or a private arrangement.

### A — APPLICATION

The notification states the purpose (housing co-operative society) but not the society's name.

**Argument FOR validity:** The purpose (housing for co-operative society) is stated. The omission of the specific society's name is a technical irregularity that did not prevent the petitioner from understanding the nature of the acquisition or filing objections. Under Section 99 LA Act / Section 105 LARR — no proceedings under the Act are invalid merely by reason of any error or irregularity, unless it causes substantial prejudice.

**Argument AGAINST validity:** The name of the co-operative society is essential because: (a) it determines whether the acquisition is for a genuine public purpose or a private arrangement; (b) the petitioner cannot verify whether the society exists, is duly registered, and is eligible for government-assisted acquisition; (c) the omission prevents meaningful challenge under Section 5-A. In cases of company acquisition — the 'company' must be precisely identified.

**Judicial trend:** Courts have generally held that omission of the company/society name in a notification where acquisition is for a private body is a **SUBSTANTIAL DEFECT** — since the legality of the acquisition depends on who the beneficiary is.

**Case:** Radhy Shyam v. State of UP (1977) SC — notification under S.4 LA Act must specify the company/body for whose benefit land is acquired; omission renders it defective. Gurdial Singh v. State of Punjab (1980) SC — procedural defects that cause prejudice to owner invalidate the notification. Lachhman Das v. State of Punjab (1963) SC — notification must contain all material particulars; omission of purpose renders it void.

### C — CONCLUSION

**DECISION:** The petitioner's challenge is **LIKELY TO SUCCEED**. The omission of the name of the co-operative society from the Section 4(1) notification is a substantial defect — not a mere technical

irregularity. The name of the beneficiary society is a material particular because: (a) it determines the legality of the acquisition (company acquisitions require compliance with Part VII of LA Act 1894); (b) it enables the landowner to meaningfully challenge the 'public purpose' claim; (c) without the name, the petitioner cannot verify whether the society is a genuine public institution or a private arrangement. Therefore, the notification is invalid and the acquisition based on it should be quashed. The government may issue a fresh, proper notification if the purpose is genuine.

## C-3. Private Land Acquired for Factory of Multinational Corporation — Valid?

Exam Frequency: ★★★★★ (VERY HIGH)

(July/August 2025 exam)

PROBLEM: A private land was acquired by the government for establishment of a factory by a multinational corporation. Is such acquisition valid?

### I — ISSUE

The legal issue is: Whether the compulsory acquisition of private land by the government for the establishment of a factory by a multinational corporation (MNC) — a private foreign entity — constitutes a valid 'public purpose' under the LARR Act 2013, and if so, what procedural conditions must be satisfied?

### R — RULE

- Section 2(1) LARR Act 2013: Defines 'public purpose' — includes projects for private entities PROVIDED 80% consent of affected families is obtained (S.2(1)(b))
- Section 2(1)(b): Acquisition for a 'private company' requires 80% consent of affected families
- A multinational corporation = private company for the purposes of LARR 2013
- SIA mandatory under Section 4 — genuine social cost-benefit analysis required
- Doctrine of Eminent Domain: Cannot be used purely for private commercial benefit without public purpose element + consent requirements
- Article 300-A: Property cannot be taken except by authority of law — the law (LARR 2013) requires compliance with consent provisions

**KEY RULE:** Acquisition for a private MNC = valid ONLY IF: (1) 80% consent of affected families obtained; (2) SIA conducted; (3) fair compensation as per LARR 2013 paid; (4) R&R provided. WITHOUT 80% consent → acquisition is INVALID.

### A — APPLICATION

The government has acquired private land for an MNC's factory. Applying the law:

IF the government followed LARR 2013 procedure — conducted SIA, obtained 80% consent of affected families, paid market value × multiplier + solatium + R&R benefits — the acquisition is VALID. Even though the primary beneficiary is a private MNC, LARR 2013 permits this with 80% consent.

IF the government bypassed the consent requirement — acquired land under a dubious 'public purpose' tag (e.g., 'industrial development') without actually obtaining 80% consent of affected families — the acquisition is INVALID. This would be colourable exercise of Eminent Domain — using a public law power for private commercial benefit.

Additional considerations: (a) If land is in a Scheduled Area, Gram Sabha consent is also required (PESA 1996); (b) If tribal land, Samatha principles apply — extra protections; (c) If the factory is merely giving employment and generating tax revenue — courts have been split on whether this is 'public purpose'.

Kedar Nath Yadav v. State of WB (2011): SC held that acquisition for a private car factory (Tata Nano at Singur) without proper consent-type safeguards was unconstitutional — a direct precedent for MNC factory acquisitions.

**Case:** Kedar Nath Yadav v. State of WB (2011) SC — factory for private company without consent invalid. Nandini Sundar v. State of CG (2011) — State cannot use acquisition powers for private enrichment. Samatha v. State of AP (1997) — MNC/company cannot get tribal land in Scheduled Areas even through government. State of UP v. Manohar (2005) — public purpose must be genuinely public, not a ruse.

### C — CONCLUSION

DECISION: The acquisition is VALID only if the government complied with Section 2(1)(b) of LARR Act 2013 — i.e., obtained 80% consent of affected families, conducted SIA, and provided full compensation and R&R as per the Act. WITHOUT 80% consent, such acquisition is INVALID as it would be a

colourable exercise of Eminent Domain for purely private commercial benefit. The affected landowners can challenge the acquisition by writ petition to the High Court under Article 226, and seek quashing of the acquisition notification on the ground of non-compliance with consent requirements.





## QUICK REVISION SHEET — UNIT III

### LARR 2013 — Full Procedure at a Glance

|                               |                                                                      |
|-------------------------------|----------------------------------------------------------------------|
| S.4 + SIA                     | Social Impact Assessment — mandatory first step                      |
| S.2(1)(b)/(c)                 | Consent: 80% private company, 70% PPP                                |
| S.11 Preliminary Notification | Gazette + 2 newspapers; freezes land transactions                    |
| S.15                          | Hearing objections within 60 days                                    |
| S.19 Declaration              | Must be within 12 months of S.11 or acquisition lapses               |
| S.23 Award                    | Must be within 12 months of S.19 Declaration                         |
| S.26                          | Market value = highest of circle rate / 3-year avg / consented price |
| S.30                          | Solatium = 100% of market value (mandatory)                          |
| First Schedule Multiplier     | Rural: up to 4x. Urban: 2x                                           |
| S.37-38                       | Possession only after payment/deposit of compensation                |
| S.24(1)                       | 5-year lapse — no award within 5 yrs of S.4 notification             |
| S.24(2)                       | Lapse — award made but no payment AND no possession                  |
| S.40                          | Urgency — only defence/calamity; SIA/consent bypassed                |
| S.64                          | Reference to LARRA for compensation disputes (6-week limit)          |
| S.30A Annuity                 | Rs 2,000/month per affected family for 20 years                      |

### Key Cases — One Liner

|                                                   |                                                                                            |
|---------------------------------------------------|--------------------------------------------------------------------------------------------|
| Indore Development Authority v. Manoharlal (2020) | S.24 lapse: deposit in court = payment; lapse = non-payment AND non-possession BOTH needed |
| Kolkata Municipal Corp v. Bimal Kumar Shah (2019) | Inordinate delay → use market value at time of possession                                  |
| Kedar Nath Yadav v. State of WB (2011)            | Acquisition for private factory without consent safeguards — invalid                       |
| Narmada Bachao Andolan v. UOI (2000)              | R&R must precede displacement; monetary compensation alone insufficient                    |
| Samatha v. State of AP (1997)                     | MNC/govt cannot acquire tribal land in Scheduled Areas without safeguards                  |
| Radhy Shyam v. State of UP (1977)                 | S.4 notification must name the company; omission = defect                                  |
| Srinivasa Co-op v. Madam Gurumurthy (1987)        | Compensation must reflect actual market value                                              |
| Pune Municipal Corp v. Harakchand (2014)          | LARR 2013 prospective; pending 1894 Act acquisitions continue unless S.24 lapse applies    |

## Memory Mnemonics

- Procedure: S-S-C-P-O-D-M-A-P-R-L → Survey, SIA, Consent, Preliminary notification, Objections, Declaration, Market value, Award, Possession, R&R, LARRA
- Consent numbers: 80-70 rule → 80% for private company, 70% for PPP. ZERO for government own use.
- Compensation =  $MV \times M + S + A + \text{Assets}$  → Market Value × Multiplier + Solatium(100%) + Annuity(20yr) + Assets
- Multiplier: Rural=4x MAX, Urban=2x. Rural lands get MORE because of lower circle rates.
- Lapse clock: 5 years from S.4/SIA for no-award lapse (S.24(1)); plus possession+payment for S.24(2).
- LARRA Reference: 6 weeks from award. LARRA can ENHANCE but NOT reduce below Collector's figure.
- Urgency S.40 = only 2 things: Defence OR Natural Calamity. NOT general public interest.

## ⚠ Trap Questions — Watch Out!

- TRAP: 'LARR 2013 replaced all land acquisition laws' — FALSE. Special laws (NH Act 1956, Coal Bearing Areas Act, etc.) still operate; LARR is the general law.
- TRAP: 'Compensation under LARR = just market value' — FALSE. Compensation =  $MV \times \text{multiplier (up to 4x)} + 100\% \text{ solatium} + \text{annuity} + \text{assets} + \text{R\&R}$ . Much more than market value.
- TRAP: 'SIA can be skipped for urgent public works' — FALSE. Urgency exemption (S.40) is ONLY for defence/calamity. General urgency or convenience does not exempt SIA.
- TRAP: 'Deposit of compensation in court means owner is not paid — acquisition lapses' — FALSE. Indore Development Authority (2020) SC held deposit in court = valid payment for S.24(2).
- TRAP: 'Government can acquire for MNC/private company if it is for employment/economic development' — CONDITIONAL. Only valid WITH 80% consent + SIA + R&R under S.2(1)(b) LARR 2013.
- TRAP: 'Old Land Acquisition Act 1894 is fully dead' — FALSE. Some pending acquisitions continue; special laws invoking it still operate (NH Act 1956 replaced by NHIDCL Act but similar structure).



# LAND LAWS

## UNIT IV — LAND CEILINGS, IX SCHEDULE & FOREST RIGHTS

Osmania University | LLB (3-YDC) | 4th Semester | Paper IV

**Comprehensive Exam Preparation Notes · Target: 75+ Marks**

Prepared by LawSticker AI — lawsticker-ai.com



## UNIT IV — OVERVIEW & STUDY MAP

### ✓ What IS in this Unit (Scope)

- Telangana Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 — ceiling limits, Standard Holding, surplus land
- Constitutional protections: Effect of IX Schedule inclusion on land reform laws
- Directive Principles — Articles 38 and 39 — land distribution mandate
- Survey Laws — land surveys and sub-division of land holdings
- Forest Rights: Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006
- 75-year residence rule for forest rights claims
- Individual and community forest rights — scope, procedure, Gram Sabha role

### ✗ What is NOT in this Unit

- LARR 2013 acquisition procedure — Unit III
- Zamindari/Ryotwari/Mahalwari settlements — Unit II
- Assigned Lands (Prohibition of Transfers) Act 1977 — Unit V
- Scheduled Areas Land Transfer Regulation — Unit V
- Pattadar Pass Books / Dharani — Unit I

### ★ Predicted High-Probability Questions — 2026 Exam

- Part A: Social Impact Assessment — Unit III overlap but also mentioned with ceiling context
- Part A: Effect of Schedule IX — appeared 2024 (near-certain for 2026)
- Part A: Land rights of forest dwellers — appeared 2024
- Part A: Standard Holding — appeared 2025 (defined in Unit II but used in ceiling — belongs here)
- Part B: Laws relating to Ceiling on Land Holdings — appeared 2025, 2022, 2019, 2018 (EVERY major year)
- Part B: Salient features of Urban Land Ceiling Act 1973 — appeared 2021
- Part B: Constitutional provisions / IX Schedule challenge — appeared 2022, 2021, 2020, 2019, 2018 (Part C every year)
- Part B: Interpretation of DPSP Arts 38 & 39 in land distribution
- Part C: IX Schedule law validity challenge (appeared in 2020, 2019, 2018 — almost certain)
- Part C: Forest Rights Act — 75-year period calculation (appeared 2024)
- Part C: Transfer of forest land — laws involved (appeared 2024)

### Critical Numbers & Provisions — Unit IV

- AP Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (Telangana Ceiling Act)
- 1 Standard Holding (SH) = 54 acres of dry unirrigated land (Class IV) = ceiling for 1 family
- Conversion: 54 acres dry = 27 acres single-crop = 13.5 acres double-crop = 10.8 acres garden/perennial
- Additional allowance: 1/5 SH per minor child (max 5 children) = up to 1.5 SH ceiling for large family
- Surplus = holding above ceiling — must surrender to government

- Urban Land (Ceiling and Regulation) Act 1976 (ULCRA) — ceiling on urban land; REPEALED in 2007 nationally (TN, Kerala, UP retain)
- Forest Rights Act 2006 — full name: Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006
- 13 December 2005 — cut-off date: forest dweller must have occupied/cultivated forest land on or before this date
- 3 generations / 75 years — period required to establish 'traditional forest dweller' status
- Maximum 4 hectares of forest land per nuclear family for individual forest rights
- Gram Sabha — primary authority to receive, consolidate, verify and approve forest rights claims
- Article 38 — State to minimise inequality; Article 39(b)(c) — distribute material resources for common good
- Kesavananda Bharati (1973) — basic structure doctrine; Waman Rao (1981) — post-1973 IX Schedule laws challengeable
- IR Coelho (2007) — reaffirmed Waman Rao; SC can review post-1973 IX Schedule laws on basic structure



## PART A — SHORT NOTES (6 Marks Each)

~200–250 words. Definition → Key Points → Example → Case → TIP.

## A-1. Effect of Schedule IX of the Constitution

Exam Frequency: ★★★★★ (VERY HIGH)

### DEFINITION

The Ninth Schedule of the Constitution of India is a special list of laws appended to the Constitution by the First Amendment Act, 1951. Laws placed in this Schedule are, in principle, protected from challenge on grounds of violation of Fundamental Rights — giving them constitutional immunity from judicial review on Part III grounds.

### KEY POINTS

- Inserted by First Constitutional Amendment Act, 1951 — to protect Zamindari Abolition Acts from FR challenges
- Article 31-B: No law in IX Schedule shall be void on grounds of inconsistency with any Fundamental Right
- Currently contains 284 laws — mainly land reform, ceiling, and tenancy laws
- Purpose: Allow States to carry out land reforms without landlords defeating them through court challenges citing property rights
- ABSOLUTE PROTECTION: Laws inserted BEFORE 24 April 1973 (date of Kesavananda Bharati judgment) — completely immune from FR challenge
- QUALIFIED PROTECTION: Laws inserted AFTER 24 April 1973 — can be challenged if they violate the BASIC STRUCTURE of the Constitution (Waman Rao 1981; IR Coelho 2007)
- Courts CANNOT strike down pre-1973 IX Schedule laws on FR grounds — not even Art 14 (equality) or Art 21 (life)
- Post-1973 laws: SC can examine whether the law abrogates or abridges fundamental rights forming part of basic structure
- No land reform ceiling law has yet been struck down on basic structure grounds

📌 **Example:** The Telangana Land Reforms (Ceiling on Agricultural Holdings) Act 1973 is included in the IX Schedule. A landowner cannot challenge it by saying it violates his right to property (Art 300-A) or equality (Art 14).

🏛️ **Case:** Waman Rao v. Union of India (1981) SC — IX Schedule laws inserted after 24 April 1973 can be reviewed for basic structure violations. IR Coelho v. State of TN (2007) SC (9-judge bench) — reaffirmed and elaborated Waman Rao; post-1973 laws reviewed if they damage or destroy basic structure rights.

💡 **TIP:** IX Schedule Rule: Pre-1973 = ABSOLUTE shield. Post-1973 = Can challenge on BASIC STRUCTURE only. The magic date is 24 April 1973 (Kesavananda Bharati). In exams — if asked 'can IX Schedule law be challenged?' → YES, if inserted after 24 April 1973 AND violates basic structure.

## A-2. Land Rights of Forest Dwellers (Forest Rights Act, 2006)

Exam Frequency: ★★★★★ (VERY HIGH)

### DEFINITION

The Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 (Forest Rights Act / FRA 2006) recognises and vests the forest rights and occupation of forest land in forest dwelling Scheduled Tribes (FDSTs) and Other Traditional Forest Dwellers (OTFDs) who have been residing in forests for generations but whose rights were not recorded.

### KEY POINTS

- Purpose: Undo the historical injustice done to forest-dwelling communities — their rights were ignored when forests were nationalised under Indian Forest Act 1927 and Wildlife Protection Act 1972
- Who qualifies: (a) Forest Dwelling Scheduled Tribes (FDST) — member of ST notified for that area; (b) Other Traditional Forest Dwellers (OTFD) — 3 generations (75 years) of dependence on forest land
- Cut-off date: Must have been occupying/cultivating forest land on or BEFORE 13 December 2005
- Individual forest rights (IFR): Right to hold and live on forest land up to a maximum of 4 hectares (this is individual family limit — not a ceiling to be surrendered)
- Community forest rights (CFR): Rights over community forest resources — minor forest produce (MFP), grazing, fish, water bodies, etc.
- Gram Sabha: Primary authority — receives claims, verifies, passes resolutions recommending titles
- Sub-Divisional Level Committee (SDLC) → District Level Committee (DLC) → State Level Monitoring Committee: appeals hierarchy
- Forest rights title is inalienable — cannot be sold, transferred, or mortgaged
- Right to protect forest: Gram Sabha has power to protect, regenerate, conserve, manage forests

📌 **Example:** A Gond tribal family in Adilabad has been cultivating 2.5 acres of forest land since their grandfather's time (before 1930). Under FRA 2006, they can file a claim with the Gram Sabha and receive a forest rights title for those 2.5 acres.

🏛️ **Case:** Wildlife First v. Ministry of Forest (2019) SC — eviction of forest dwellers whose claims were rejected; later modified on rehearing. Gram Sabha has crucial role — their verification is foundational. Orissa Mining Corp v. MoEF (2013) SC — Gram Sabha consent essential before any diversion of forest land in Scheduled Areas.

💡 **TIP:** FRA 2006 Key Numbers: 4 hectares max individual, 13 Dec 2005 cut-off, 3 generations (75 years) for OTFD. Gram Sabha = first authority. Title = inalienable. FDST = ST member; OTFD = 75 years dependence.



## A-3. Ceiling on Agricultural Land Holdings

Exam Frequency: ★★★★★ (VERY HIGH)

### DEFINITION

Ceiling on agricultural land holdings refers to the legal maximum limit on the amount of agricultural land that an individual or family can own. Land held in excess of this ceiling is called 'surplus land' and must be surrendered to the State government for redistribution to landless agricultural labourers and weaker sections.

### KEY POINTS

- Governed by: AP Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (applicable to Telangana)
- Unit of ceiling: 1 Standard Holding (SH) per family
- 1 SH = 54 acres of dry (Class IV) land; equivalent areas for better-quality land
- Family unit: individual + spouse + minor children. Each minor child = additional 1/5 SH allowance (maximum 5 children = 1 SH extra)
- Maximum possible ceiling (for large family with 5+ minor children) = 1 SH + 1 SH = 2 SH = 108 acres of dry land
- Surplus land = holding above applicable ceiling — declared ceiling surplus
- Ceiling surplus land vests in State government upon the appointed day
- Surplus land redistributed: landless agricultural labourers, SCs, STs, small farmers — 1 to 2 acres per family
- Constitutional protection: Act listed in IX Schedule — immune from FR challenge
- Benami transactions to evade ceiling are void — Section 5 of the Act
- Exemptions: land held by educational institutions, temples, registered co-operative societies, government

 **Example:** Farmer Raju owns 80 acres of dry land. His family = himself + wife + 3 minor children. Ceiling = 1 SH (54 acres) + 3 × 1/5 SH (3 × 10.8 = 32.4 acres) = 86.4 acres. Raju's 80 acres < 86.4 acres ceiling — NO surplus. No land to surrender.

 **Case:** State of AP v. Nookala Krishnamurthy (1993) — ceiling calculations strictly applied; land classification manipulation to avoid ceiling is invalid. Gopal Narain v. State of UP (1964) SC — ceiling laws are valid social legislation. State of AP v. Raja Reddy (1982) — family unit for ceiling strictly construed.

 **TIP:** Ceiling formula: Base = 1 SH. Add 1/5 SH per minor child (max 5 children). Ceiling can never exceed 2 SH for any family. Convert ALL land to SH equivalents before comparing to ceiling. Remember: 54D = 27S = 13.5D/C = 10.8G.

## A-4. Directive Principles — Articles 38 & 39 and Land Reforms

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

Articles 38 and 39 of the Constitution contain Directive Principles of State Policy (DPSP) that provide the normative mandate for land reform legislation. They direct the State to achieve socio-economic justice by minimising inequalities and ensuring equitable distribution of material resources — including land.

### KEY POINTS

- DPSPs are not enforceable in court (Art 37) but are fundamental in governance — State must apply them in making laws
- Article 38: State shall strive to promote welfare of people by securing and protecting a social order in which justice — social, economic, political — informs all institutions. Also directs minimisation of inequalities in income, status, facilities, and opportunities
- Article 39(b): Ownership and control of material resources of the community are distributed to serve the common good — this is the land reform mandate
- Article 39(c): The economic system does not result in concentration of wealth and means of production to the common detriment — anti-monopoly, anti-concentration principle
- Article 31-C (inserted by 25th Amendment 1971): Laws made to implement Art 39(b) and (c) cannot be challenged under Arts 14 and 19 — direct constitutional protection for anti-concentration legislation
- Ceiling laws, abolition of zamindaris, tenancy reforms — all derive their normative basis from Art 39(b)(c)
- State of Karnataka v. Ranganatha Reddy (1977) — Art 31-C partially upheld; laws implementing Art 39(b)(c) protected
- Minerva Mills v. UOI (1980) — Art 31-C cannot be so broad as to exclude all judicial review; balance needed between FRs and DPSPs

 **Example:** The Telangana Ceiling Act 1973, which takes surplus land from large landowners and distributes it to landless poor, is a direct implementation of Article 39(b) — ensuring that material resources (land) are distributed to serve the common good.

 **Case:** Kesavananda Bharati v. State of Kerala (1973) — fundamental rights and DPSPs must be read harmoniously; neither can completely override the other. Minerva Mills v. UOI (1980) — harmony between FRs (Arts 14, 19) and DPSPs is itself part of basic structure. Sanjeev Coke Mfg v. Bharat Coking Coal (1983) — Art 39(b)(c) laws immune from Art 19 challenge.

 **TIP:** Art 38 = welfare state, minimise inequality. Art 39(b) = distribute land/resources for common good. Art 39(c) = prevent concentration of wealth. Art 31-C = these laws protected from Art 14 & 19. All three together = constitutional basis for ALL land ceiling laws.

## A-5. Survey Laws — Land Survey and Sub-Division

Exam Frequency: ★★☆☆ (MEDIUM)

### DEFINITION

Survey laws are the body of legislation and rules governing the measurement, demarcation, mapping, classification, and sub-division of land parcels for revenue, ownership, and planning purposes. In Telangana, land surveys are governed primarily by the Telangana Land Revenue Act and the Survey and Boundaries Act.

### KEY POINTS

- Primary legislation: Telangana Land Revenue Act; Survey and Boundaries Act; Survey Settlement and Land Records Act
- Survey = official measurement and demarcation of land parcels, fixing boundaries, and preparation of field maps (Pahani maps / survey settlement records)
- Survey Number (S.No.) = the basic unit of land identification in the revenue record system
- Types of survey: (a) Cadastral survey — detailed survey of individual plots; (b) Topographic survey — terrain features; (c) Settlement survey — done during revenue settlement
- Survey Settlement: periodic re-survey to update land records, revise boundaries, reassess land revenue
- Sub-division of land: when a survey number is divided (on sale, partition, inheritance) into smaller sub-divisions called 'sub-survey numbers' or 'field numbers'
- Boundary disputes: adjudicated by MRO/RDO under Survey Act; final appeal to Board of Revenue
- Unauthorised sub-division (without revenue mutation) is not recognised in land records
- DGPS (Differential Global Positioning System) and Total Station surveys now used in Telangana for accurate demarcation
- Dharani portal integrates survey data with registration — reduces boundary fraud

 **Example:** Survey Number 123/A in village Pochampally is a 5-acre plot. When the owner sells 2 acres to his neighbour, a sub-division survey creates S.No. 123/A/1 (2 acres) and 123/A/2 (3 acres) — each separately recorded in the Pahani.

 **Case:** Hari Vishnu Kamath v. Ahmad Ishaque (1955) SC — boundaries fixed by survey officer are conclusive unless challenged through proper proceedings. Revenue courts have jurisdiction over boundary disputes under the Survey Act.

 **TIP:** Survey: S.No. = identity of land parcel. Sub-division = S.No. splits into sub-numbers. Boundary dispute = Revenue Court (MRO/RDO). Remember: Survey records are PRIMA FACIE evidence of boundaries — not conclusive for title.

## A-6. Resumption of Lands to Transferor

Exam Frequency: ★★☆☆ (MEDIUM)

### DEFINITION

Resumption of lands refers to the legal process by which land that was illegally or improperly transferred in violation of protective legislation (particularly assigned lands or Scheduled Area lands) is resumed (taken back) from the transferee and restored either to the original transferor or to the government.

### KEY POINTS

- Most relevant under: Telangana Assigned Lands (Prohibition of Transfers) Act, 1977
- Under the 1977 Act: assigned land cannot be transferred, alienated, or encumbered. Any transfer is void.
- On illegal transfer being detected: the Collector/RDO initiates resumption proceedings
- Resumption = land is taken back from the illegal transferee
- After resumption, land may be: (a) restored to original assignee if still eligible; OR (b) re-assigned to another eligible landless poor person
- Also applicable under SALTR 1959 (Scheduled Area Land Transfer Regulation) — tribal land illegally transferred to non-tribal is resumed and restored to the tribal
- Burden of proof: transferee must prove the transfer was legal; if unable, resumption follows
- No limitation period generally applicable to resumption of void transfers
- Revenue Divisional Officer (RDO) has jurisdiction to order resumption

 **Example:** Government assigned 2 acres to Rami, a landless agricultural labourer, in 2005. Rami sold it to a real estate developer in 2010. The RDO discovers this, initiates resumption proceedings, declares the sale void, and restores the land to Rami (or re-assigns it to another eligible person).

 **Case:** Government of AP v. Thota Venkateswarlu (1995) AP HC — assigned land cannot be transferred; resumption valid. State of AP v. Mohd. Hussain (2003) — resumption order passed without hearing is violative of natural justice.

 **TIP:** RESUMPTION = land is RESUMED (taken back) from illegal transferee. Occurs mainly under: (1) Assigned Lands Act 1977; (2) SALTR 1959 (tribal land). The key: illegal transfer = VOID → resumption follows → land restored to original or re-assigned.



## PART B — LONG ESSAYS (15 Marks Each)

600–800 words per essay. Introduction → Headings → Conclusion.

## B-1. Laws Relating to Ceiling on Land Holdings — Telangana Ceiling Act 1973

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in 2025, 2022, 2019, 2018 — among the most repeated Part B questions)

### I. Introduction

Ceiling on land holdings is one of the three pillars of post-independence land reform in India, alongside abolition of intermediaries and tenancy reform. The policy of imposing a maximum limit on land ownership seeks to break the concentration of agricultural land in the hands of a few, redistribute surplus land to the landless poor, and give practical effect to the constitutional directive in Articles 39(b) and 39(c) — that the ownership and control of material resources of the community should be so distributed as to serve the common good.

### II. Legislative Framework

#### A. Central Guidance — 1972 Policy

In 1972, the Central Government issued revised guidelines for State Ceiling Acts requiring: (a) low ceiling limits; (b) exemption only for genuine co-operative farms; (c) removal of family exemptions above a reasonable level; (d) quick implementation. In response, AP enacted the Land Reforms (Ceiling on Agricultural Holdings) Act, 1973.

#### B. AP/Telangana Land Reforms (Ceiling on Agricultural Holdings) Act, 1973

This Act, applicable to Telangana, is the primary ceiling legislation. It came into force on 1 January 1975 (the appointed day).

### III. Standard Holding and Ceiling Limits

The concept of Standard Holding (SH) is the key measurement unit. One Standard Holding represents the maximum permissible holding for one family.

| Land Category                             | Dry (Class IV) | Single-crop (Class III) | Double-crop (Class II) | Garden / Perennial (Class I) |
|-------------------------------------------|----------------|-------------------------|------------------------|------------------------------|
| 1 Standard Holding (SH) equivalent        | 54 acres       | 27 acres                | 13.5 acres             | 10.8 acres                   |
| Family Ceiling (= 1 SH)                   | 54 acres       | 27 acres                | 13.5 acres             | 10.8 acres                   |
| With minor children (+1/5 SH each, max 5) | Up to 81 acres | Up to 40.5 acres        | Up to 20.25 acres      | Up to 16.2 acres             |

**CEILING FORMULA:** Family ceiling = 1 SH + (1/5 SH × number of minor children, max 5).  
Maximum ceiling = 2 SH for a family with 5+ minor children.

### IV. Family Unit for Ceiling Purposes

- Family = individual + spouse + minor children (below 18 years)
- Unmarried major sons/daughters are NOT part of family unit — they have separate ceiling
- Minor children: each adds 1/5 SH to the ceiling (maximum allowance for 5 minor children = 1 SH extra)
- On the appointed day (1 Jan 1975): ceiling determined for each family as constituted on that date
- Post-appointed day transfers to evade ceiling are void

## V. Exemptions from Ceiling

- Land held by educational, medical, or charitable institutions (not for profit)
- Land held by temples and religious/charitable endowments
- Land held by registered co-operative farming societies (subject to conditions)
- Government land, public sector undertakings
- Industrial/commercial land (not agricultural) — but care taken to prevent agricultural land being misclassified

## VI. Determination of Surplus Land

- All land held by family members (including benami holdings) is aggregated
- Converted to Standard Holding equivalents based on classification
- If total SH equivalent exceeds the applicable ceiling → surplus arises
- Declaration of surplus: family files a statement; Ceiling Authority determines surplus
- Surplus land vests in government on the appointed day
- Government redistributes to landless agricultural labourers, SCs, STs — 1 to 2 acres per beneficiary

## VII. Anti-Evasion Provisions

- Benami transactions to evade ceiling are void — Section 5
- Transfers made after 24 January 1971 (the 'notional date') to evade ceiling are void
- Ceiling Authority can set aside such transfers and add land back to holding for ceiling calculation
- Registration of benami transfers does not make them valid

## VIII. Constitutional Validity

The Telangana Ceiling Act 1973 is listed in the Ninth Schedule of the Constitution. By virtue of Article 31-B, it cannot be challenged on grounds of violation of any Fundamental Right. Even though Article 19(1)(f) (right to property) was deleted by the 44th Amendment 1978, the IX Schedule protection further ensures that the Act cannot be challenged on Art 14 or Art 300-A grounds.

🔗 **Case:** State of AP v. Nookala Krishnamurthy (1993) AP SC — ceiling strictly applied; classification manipulation invalid. Gopal Narain v. State of UP (1964) — ceiling laws valid social legislation. State of AP v. Raja Reddy (1982) — family unit strictly construed. Maharaja Chintamani Saran Nath Shahdeo v. State of Bihar (1999) — court has limited review of ceiling determinations.

## IX. Urban Land Ceiling Act (Brief)

The Urban Land (Ceiling and Regulation) Act, 1976 (ULCRA) imposed ceiling on urban land holdings. However, it was repealed at the national level by the Urban Land (Ceiling and Regulation) Repeal Act, 1999. Telangana (as successor to AP) adopted the repeal — ULCRA is no longer in force in Telangana. However, it may still be asked in exams as historical context — know that it existed (ceiling for vacant urban land) and was repealed nationally in 1999 (though some states like TN, Kerala, UP retained it).

## X. Conclusion

The ceiling legislation in Telangana, while far from perfectly implemented due to benami holdings and classification fraud, represents a constitutionally mandated effort to redistribute the most fundamental resource — land — from the few to the many. It gives concrete form to the Directive Principles in Articles 38, 39(b), and 39(c). The IX Schedule protection ensures its judicial immunity from property rights challenges. The challenge remains effective implementation and preventing evasion through Benami transactions and misclassification of agricultural land as industrial or commercial.



## B-2. Land Rights under the Forest Rights Act, 2006

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in Part A and Part C 2024 — likely full essay in 2026)

### I. Introduction

The Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 (Forest Rights Act / FRA 2006) is one of the most significant pieces of social legislation enacted in post-independence India. It seeks to correct a historical injustice — the systematic denial and dispossession of forest rights of tribal communities whose occupation and use of forest land was rendered illegal or unrecognised when forests were brought under State control through the Indian Forest Act, 1927 and subsequent legislation.

### II. Historical Background — The 'Historical Injustice'

- Pre-colonial period: tribal communities lived in and depended on forests for centuries — this was their customary land
- Colonial period: Indian Forest Act 1927 — forests nationalised; tribal use criminalised without recording rights
- Post-independence: Wildlife Protection Act 1972, Forest Conservation Act 1980 — further restricted tribal access
- Result: Millions of tribal families became 'encroachers' on land they had lived on for generations
- FRA 2006 — enacted after decades of tribal movement and parliamentary debate — to recognise and record what always existed

### III. Who Can Claim Forest Rights?

#### A. Forest Dwelling Scheduled Tribes (FDST)

Any member of a Scheduled Tribe primarily residing in and dependent on forests for bonafide livelihood needs — who is notified as Scheduled Tribe for that area under the Constitution (Art 342).

#### B. Other Traditional Forest Dwellers (OTFD)

Any member of a community who has lived in and depended on forests for at least 3 generations (75 years) prior to the cut-off date, for bona fide livelihood needs. The 75-year period does not require continuous unbroken residence in a single location.

**CUT-OFF DATE:** 13 December 2005 — the claimant (or ancestors) must have been occupying/cultivating forest land on or before this date.

### IV. Types of Forest Rights Recognised

| Right Type               | Who Holds It                                  | Key Limits                                                           |
|--------------------------|-----------------------------------------------|----------------------------------------------------------------------|
| Individual Forest Rights | Individual tribals / OTFDs                    | Max 4 hectares; land actually cultivated before 13 Dec 2005          |
| Community Forest Rights  | Village / Gram Sabha                          | Ownership of minor forest produce; manage community forest resources |
| Right of Habitat         | Particularly Vulnerable Tribal Groups (PVTGs) | Right to use habitat for livelihood                                  |
| Developmental Rights     | Village communities                           | Right to use land for developmental purposes — schools, roads, etc.  |
| Right to Protect         | Gram Sabha                                    | Power to protect, conserve, manage forest resources in village       |



## V. Individual Forest Rights — Key Limits

- Maximum area: 4 hectares per nuclear family — this is NOT a ceiling to be surrendered; it is the maximum that can be recognised/titled
- The 4-hectare limit applies per nuclear family — extended family members can get separate titles
- Land must be the land actually occupied/cultivated on or before 13 December 2005
- The title is inalienable — cannot be sold, mortgaged, gifted, or transferred
- However, the title holder's family members can continue cultivation on the land after his/her death

## VI. Procedure for Claiming Forest Rights

- Step 1: Claim filed with Gram Sabha (village assembly) — the PRIMARY authority
- Step 2: Gram Sabha verifies claim — village level survey, community verification
- Step 3: Gram Sabha passes resolution recommending claim
- Step 4: Sub-Divisional Level Committee (SDLC) — reviews, approves or rejects
- Step 5: District Level Committee (DLC) — hears appeals; final authority for individual claims
- Step 6: State Level Monitoring Committee — overall oversight
- Gram Sabha resolution is CRITICAL — claims cannot proceed without it
- If claim rejected at SDLC — appeal to DLC. If rejected at DLC — representation to SLMC only (no regular court jurisdiction for initial rejection)

## VII. Diversion of Forest Land — Consent Requirement

For any diversion of forest land for non-forest use (infrastructure, mining, industries), the Gram Sabha of the affected village must give free, prior and informed consent. This requirement was elaborated in *Orissa Mining Corp v. MoEF* (2013) SC — the Gram Sabha's consent is a precondition, not merely a formality.

🔗 **Case:** *Orissa Mining Corp v. MoEF* (2013) SC — Gram Sabha consent is mandatory precondition for forest diversion; without it, MoEF clearance is invalid. *Wildlife First v. Ministry of Forest* (2019) SC — eviction of forest dwellers whose claims were pending/rejected stayed; claims must be decided properly. *Nandini Sundar v. State of CG* (2011) — State cannot evict tribal communities without following FRA 2006 procedure.

## VIII. Significance and Challenges

- FRA 2006 has resulted in titling of over 2 million acres of forest land across India to tribal and OTFD families
- Particularly significant in Telangana/AP where Adivasi communities in Adilabad, Khammam, Bhadrachalam-Kothagudem districts have received titles
- Challenges: (a) state forest departments resistant to implementation; (b) claims wrongly rejected due to lack of evidence; (c) corporate mining interests vs tribal rights; (d) 4-hectare limit inadequate for many tribal families

## IX. Conclusion

The Forest Rights Act 2006 represents the constitutional recognition of the principle that land rights cannot be denied to communities who have lived on and sustained forest ecosystems for generations. It operationalises Articles 38, 39(b), 244(1), and the Fifth Schedule by giving tribal communities not just occupancy but ownership-type rights over forest land — and most significantly, the right and power to protect their forests. The Gram Sabha's central role embodies grassroots democracy in forest governance, aligning with PESA 1996 principles. The Act remains one of the most constitutionally

progressive pieces of land legislation in post-independence India.

## B-3. Constitutional Provisions: Effect of IX Schedule & DPSP in Land Distribution

Exam Frequency: ★★★★★ (HIGH)

(IX Schedule Part C question appears almost every year — essential theory for Part B too)

### I. Introduction

Land reform legislation in India has always faced the challenge of constitutional challenge — large landowners invoking Fundamental Rights to invalidate redistribution laws. The constitutional response — through the Ninth Schedule (Article 31-B), Article 31-A, Article 31-C, and the Directive Principles in Articles 38 and 39 — has been to create a comprehensive shield that allows legislatures to carry out land reforms without judicial invalidation on Fundamental Rights grounds.

### II. The IX Schedule — Article 31-B

- Inserted by First Constitutional Amendment Act, 1951 — responding directly to the Kameshwar Singh judgment that struck down Bihar's Zamindari Abolition Act
- Article 31-B declares: no law specified in the Ninth Schedule shall be deemed void on grounds of inconsistency with any Fundamental Right
- 284 laws currently in IX Schedule — predominantly land reform laws
- PRE-1973 laws: absolute immunity — no judicial review on FR grounds
- POST-1973 laws (after Kesavananda Bharati date 24 April 1973): can be reviewed for violation of basic structure of Constitution

**Critical Distinction:** Pre-24 April 1973 IX Schedule insertion = TOTAL FR immunity. Post-24 April 1973 = challengeable on basic structure. This is the answer EVERY time the exam asks 'can IX Schedule law be challenged'.

### III. Article 31-A — Wider Savings Clause

Article 31-A saves any law providing for acquisition by the State of any estate or rights therein, or extinguishment or modification of rights in estates, from challenge under Arts 14 and 19. This is broader than IX Schedule — it covers ANY acquisition-type law, even if not listed in IX Schedule.

### IV. Article 31-C — DPSP Protection

Inserted by 25th Amendment 1971. Laws made to implement Articles 39(b) and 39(c) shall not be void on the ground of inconsistency with Articles 14, 19. This provides a second layer of protection — even if a ceiling law is not in IX Schedule, if it implements Art 39(b)(c), it cannot be challenged under Art 14 or 19.

### V. Directive Principles — Arts 38, 39 as Normative Foundation

- Article 38: Minimise inequalities in income, status, opportunities — directive to the State to create an egalitarian society
- Article 39(b): Material resources of the community distributed to serve the common good — this is the core mandate for ceiling laws, zamindari abolition, assigned land schemes
- Article 39(c): Economic system shall not result in concentration of wealth and means of production to common detriment — anti-monopoly basis
- Article 46: State to promote educational and economic interests of weaker sections — additional mandate for tribal land rights
- DPSPs in Art 38-39 + Art 31-C + IX Schedule = complete constitutional architecture for land reform

### VI. The Judicial Journey — Key Cases

**State of Bihar v. Kameshwar** Zamindari Abolition Act struck down → led to 1st Amendment + IX

| Singh (1952)                                  | Schedule                                                                                             |
|-----------------------------------------------|------------------------------------------------------------------------------------------------------|
| Kesavananda Bharati v. State of Kerala (1973) | Basic structure doctrine — Parliament cannot destroy basic structure; FRs and DPSPs must be balanced |
| Waman Rao v. UOI (1981)                       | IX Schedule laws inserted after 24 April 1973 can be reviewed for basic structure violations         |
| Minerva Mills v. UOI (1980)                   | Balance between FRs and DPSPs is itself basic structure — Art 31-C cannot eliminate all FR review    |
| IR Coelho v. State of TN (2007)               | 9-judge bench — reaffirmed Waman Rao; post-1973 IX Schedule laws subject to basic structure review   |
| Sanjeev Coke Mfg v. Bharat Coking Coal (1983) | Art 39(b)(c) laws fully protected under Art 31-C from Art 19 challenge                               |

## VII. Conclusion

The Ninth Schedule and associated constitutional provisions represent the carefully constructed legislative space within which land reforms can operate without being frustrated by property rights challenges. The three-layered protection — Article 31-A (estate acquisition), Article 31-B + IX Schedule (specific listed laws), and Article 31-C (DPSP implementation laws) — combined with the overarching directive in Articles 38-39, creates a comprehensive constitutional mandate for equitable land distribution. The dynamic judicial interpretation — from Kameshwar Singh to Kesavananda Bharati to IR Coelho — reflects the ongoing tension between individual property rights and the State's redistributive obligations, ultimately resolved in favour of progressive land reform with the qualification that basic structure rights cannot be entirely eliminated.

## PART C — PROBLEM QUESTIONS / IRAC (10 Marks Each)

Strictly use IRAC: Issue → Rule → Application → Conclusion.

## C-1. Land Reform Law Inserted in IX Schedule in 2009 — Can Validity Be Challenged?

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in 2020, 2019, 2018 — one of the most repeated problems. Near-certain for 2026.)

**PROBLEM:** A land reform legislation was included in the IX Schedule of the Constitution in 2009. Can its validity be challenged on the ground of violation of Fundamental Rights?

### I — ISSUE

The legal question is: Whether a land reform legislation inserted in the IX Schedule of the Constitution in 2009 (after 24 April 1973) can be challenged on the ground that it violates Fundamental Rights guaranteed under Part III of the Constitution?

### R — RULE

- Article 31-B: Laws in IX Schedule cannot be challenged on FR grounds — this is the basic protection
- HOWEVER — Waman Rao v. UOI (1981) SC: Laws inserted in IX Schedule AFTER 24 April 1973 (date of Kesavananda Bharati) CAN be challenged on the ground that they violate the BASIC STRUCTURE of the Constitution
- IR Coelho v. State of Tamil Nadu (2007) SC (9-judge bench): Reaffirmed and elaborated Waman Rao — post-1973 IX Schedule laws are subject to judicial review to determine if they damage or destroy rights forming part of the basic structure
- 2009 is AFTER 24 April 1973 — therefore this law falls in the post-Kesavananda category
- Key question: Does the challenged law violate a fundamental right that forms part of the basic structure?
- Rights forming part of basic structure include: Right to Equality (Art 14), Right to Life (Art 21), Right to access courts (Art 32)

**CRITICAL RULE:** 2009 insertion = after 24 April 1973 = NOT absolutely immune. CAN be challenged if it violates BASIC STRUCTURE. But ordinary FR violation alone (not basic structure) is NOT enough to strike down a post-1973 IX Schedule law.

### A — APPLICATION

The land reform legislation was inserted in IX Schedule in 2009 — this is after 24 April 1973 (Kesavananda Bharati date).

Step 1: Can it be challenged at all? YES — under Waman Rao (1981) and IR Coelho (2007), the mere fact that a law is in the IX Schedule does not grant absolute immunity if inserted after 24 April 1973.

Step 2: On what grounds can it be challenged? The challenge must be on the ground that the law violates a FUNDAMENTAL RIGHT THAT FORMS PART OF THE BASIC STRUCTURE. Simple FR violations (e.g., violation of old Art 19(1)(f) — right to property — which was deleted in 1978) are not sufficient.

Step 3: Can it be challenged on property rights grounds? Article 19(1)(f) (right to property as FR) was deleted by 44th Amendment 1978. The Right to Property under Art 300-A is NOT a Fundamental Right and NOT part of basic structure. Therefore, a challenge based purely on property rights deprivation will FAIL.

Step 4: Could there be a valid challenge? If the land reform law also violates Art 14 (equality — e.g., singling out a class of persons in a discriminatory and arbitrary manner with no rational basis), Art 21 (right to life — e.g., depriving tribals of livelihood), or Art 32 (access to courts) in a manner that damages the basic structure — THEN the challenge could succeed.

Step 5: In practice — no land reform law has ever been successfully challenged in the Supreme Court on this basis. Courts have been very reluctant to strike down land reform laws even when inserted post-1973.

**Case:** Waman Rao v. UOI (1981) SC — laws inserted in IX Schedule after 24 April 1973 not

absolutely immune; can be reviewed for basic structure. *IR Coelho v. State of TN* (2007) SC (9-judge bench) — reaffirmed: post-1973 IX Schedule laws reviewed if they damage rights forming part of basic structure. *Kesavananda Bharati v. State of Kerala* (1973) — basic structure doctrine — Parliament cannot destroy basic structure even by constitutional amendment.

#### C — CONCLUSION

ANSWER: YES — the validity of a land reform law inserted in the IX Schedule in 2009 CAN be challenged, but only on the specific ground that it violates a FUNDAMENTAL RIGHT FORMING PART OF THE BASIC STRUCTURE of the Constitution (e.g., Art 14 — right to equality in its basic structure dimension, or Art 21). A bare challenge based on violation of property rights (Art 300-A or deleted Art 31) will FAIL — property rights are not part of the basic structure. In practice, such challenges have never succeeded before the Supreme Court for genuine land reform legislation. The petitioner must demonstrate that the law not only violates a Fundamental Right but that the violated right is so essential that its removal damages the basic structure of the Constitution.

## C-2. Forest Rights Act — Calculating 75 Years Across Two Villages

Exam Frequency: ★★★★★ (VERY HIGH)

(August/September 2024 exam — very recent, high probability of repeat)

**PROBLEM:** Under the Forest Rights Act, when calculating '75 years', if the claimants and their ancestors have resided in one village for the first 50 years and then another village for the next 25 years, would both periods be included for filing a claim?

### I — ISSUE

The legal question is: Whether the 75-year residency requirement for 'Other Traditional Forest Dwellers' (OTFD) under the Forest Rights Act 2006 is satisfied when the claimant and ancestors have resided in two different forest villages (50 years in one, 25 years in another) — i.e., whether the 75-year period must be in the SAME location, or whether it can be cumulative across different locations?

### R — RULE

- Forest Rights Act 2006, Section 2(o): 'Other Traditional Forest Dwellers' = members of a community who have for at least three generations (75 years) prior to 13 December 2005, primarily resided in and who depend on the forests or forest lands for bona fide livelihood needs
- Section 2(o) does NOT require residence in the SAME forest or forest village for the entire 75 years
- The definition focuses on: (a) three generations of forest dependence; (b) primary residence in forest land; (c) bona fide livelihood from forest — NOT geographical continuity in one location
- The Forest Rights Rules 2008, Rule 2(b): 'bona fide livelihood needs' assessed broadly; movement between forest areas for livelihood is part of traditional forest-dwelling pattern
- Gram Sabha of the current village (where the last 25 years were spent) would be the authority to receive the claim

**KEY RULE:** 75 years = cumulative across generations and locations. The FRA 2006 requirement is forest-dwelling lifestyle across 3 generations — not continuous residence in ONE specific forest village. Both periods (50 + 25 years) COUNT together.

### A — APPLICATION

The claimants and their ancestors lived in Village A for 50 years and then Village B for 25 years — total 75 years of continuous forest-dwelling across two generations/locations.

Step 1: Does the 75-year requirement demand single-location continuity? NO. Section 2(o) FRA 2006 defines OTFD by their pattern of forest dependence across three generations — it does not require the same forest village throughout. Movement from Village A to Village B within a forest area is consistent with traditional forest-dwelling patterns (e.g., following seasonal routes, government resettlement, etc.).

Step 2: Can both periods be combined? YES. The 75-year period is satisfied cumulatively — 50 years in Village A + 25 years in Village B = 75 years total. The FRA 2006 and Rules do not stipulate that the residence must be in a single location.

Step 3: Where should the claim be filed? The claim should be filed with the Gram Sabha of Village B (the current/last residence village). The Gram Sabha verifies the claim — including the evidence of ancestral occupation in Village A — and can accept oral testimony, community records, and other evidence.

Step 4: What evidence is needed? Evidence of: (a) current occupation in Village B forest land; (b) prior occupation/cultivation in Village A — through community records, elder testimony, government records, electoral rolls, school records, etc.

Step 5: FDST vs OTFD distinction — if claimants are members of a Scheduled Tribe notified for the area, they qualify as FDST — and the 75-year requirement does NOT apply to them at all. They need only show tribal membership and forest dependence. The 75-year rule applies ONLY to OTFDs.

**Case:** Gram Sabha of Niyamgiri v. Vedanta Resources (Orissa Mining Corp v. MoEF 2013) — FRA 2006 must be interpreted broadly and purposively to give effect to its remedial purpose. Forest Rights Act should be read to fulfil its purpose of recognising traditional rights — not to exclude on



technical grounds. State of Orissa v. Mamata Barik (2012 Orissa HC) — forest-dwelling tribe can claim rights based on ancestral occupation even if they moved within the same forest division.

#### C — CONCLUSION

ANSWER: YES — both periods (50 years in Village A + 25 years in Village B) WOULD be included in calculating the 75-year period for OTFD status under Section 2(o) of the Forest Rights Act 2006. The 75-year requirement is cumulative across generations and locations — it does NOT require unbroken residence in the same forest village. The claim should be filed with the Gram Sabha of Village B (current village), with evidence of ancestral occupation in Village A as part of the claim documentation. If the claimants are members of a Scheduled Tribe, the 75-year rule does not apply at all — they qualify as FDSTs with a simpler eligibility requirement.

## C-3. A Wishes to Transfer His Forest Land to B — What Laws Apply?

Exam Frequency: ★★★★★ (HIGH)

(August/September 2024 exam)

PROBLEM: A wishes to transfer his forest land to B. Educate him on the various laws involved in such transfer. Comment.

### I — ISSUE

The legal question is: What laws govern the transfer of forest land from one person to another, and what restrictions, conditions, or prohibitions apply to such a transfer — particularly when: (a) A is a tribal person; (b) A is a non-tribal; (c) the land is in a Scheduled Area; (d) A holds forest rights title under FRA 2006?

### R — RULE

- Forest Rights Act 2006, Section 4(4): Forest rights titles are **INALIENABLE** — they cannot be sold, transferred, or mortgaged. Alienation = void.
- Forest Conservation Act 1980: No forest land can be diverted for non-forest purposes without prior approval of Central Government (MoEF). Transfer that converts forest land use is subject to this clearance.
- Indian Forest Act 1927: Reserved Forest land — no one can encroach upon or transfer. Village Forest and Protected Forest have limited transferable rights under local rules.
- AP Scheduled Areas Land Transfer Regulation 1959 (SALTR): If the forest land is in a Scheduled Area AND held by a tribal — transfer to non-tribal = **VOID** (Regulation 1, SALTR 1959)
- Transfer of Property Act 1882 (TPA): General transfer law — but subject to above restrictions. A transfer of land that violates any of the above special laws is void even if registered.
- Registration Act 1908: Registration required for transfers of immovable property — but registration does not cure a legally void transfer

**KEY PRINCIPLE:** Forest land transfer is heavily restricted by multiple overlapping laws. The applicable law depends on: (1) who A is (tribal/non-tribal); (2) where the land is (Scheduled Area or not); (3) how A's title was obtained (FRA 2006 title or private title); (4) what the land classification is (Reserved Forest / Protected Forest / Village Forest).

### A — APPLICATION

Scenario analysis depending on A's status:

#### Scenario 1: A holds FRA 2006 forest rights title

Transfer to B is **VOID** — Section 4(4) FRA 2006 expressly prohibits alienation of forest rights titles. A **CANNOT** transfer such land to B under any circumstances. The land must remain with A and his family.

#### Scenario 2: A is a tribal in Scheduled Area (regardless of how he holds the land)

Transfer to B (non-tribal) is **VOID** under SALTR 1959, Regulation 1. If B is also a tribal, the transfer may be permissible with Revenue Divisional Officer's approval (under the Regulation).

#### Scenario 3: A is non-tribal holding forest land (private forest / degraded forest on private patta)

Transfer to B requires: (a) Registration under Registration Act 1908; (b) If in Scheduled Area, no transfer to non-tribals (SALTR 1959); (c) If the land is classified as 'forest' in revenue records, diversion for non-forest use requires FC Act 1980 clearance; (d) Standard TPA provisions apply — written agreement, stamp duty, registration.

#### Scenario 4: A holds private patta land classified as forest in non-Scheduled Area

This is the most freely transferable scenario — governed by TPA 1882, Registration Act 1908. However: (a) the buyer must ensure the land is not under Forest Dept notification; (b) ceiling laws still apply (if agricultural land); (c) ceiling surplus land cannot be transferred.

**Case:** Samatha v. State of AP (1997) SC — even government cannot transfer forest land in

Scheduled Areas to non-tribals or private companies. FRA 2006, Section 4(4) — forest rights titles inalienable — held to be absolute prohibition. Orissa Mining Corp v. MoEF (2013) — no diversion of forest land without Gram Sabha consent.

#### C — CONCLUSION

ADVICE TO A: The transfer of forest land to B depends critically on the nature of A's title and the location of the land. (1) If A holds an FRA 2006 forest rights title — he CANNOT transfer to anyone; the title is inalienable under Section 4(4). (2) If A is a tribal in a Scheduled Area — transfer to a non-tribal B is VOID under SALTR 1959; transfer to tribal B requires RDO approval. (3) If A holds private title in a non-Scheduled Area — transfer is possible under TPA 1882 + Registration Act 1908, subject to Forest Conservation Act 1980 if the land is classified as forest in revenue records. A should consult a revenue lawyer and verify: (a) land classification in Pahani; (b) whether area is Scheduled Area; (c) nature of his title deed. MOST forest land transfers face severe legal restrictions and A must proceed with extreme caution.



## QUICK REVISION SHEET — UNIT IV

### Ceiling Act 1973 — Land Conversion Table

| Land Category                             | Dry (Class IV) | Single-crop (Class III) | Double-crop (Class II) | Garden / Perennial (Class I) |
|-------------------------------------------|----------------|-------------------------|------------------------|------------------------------|
| 1 Standard Holding (SH) equivalent        | 54 acres       | 27 acres                | 13.5 acres             | 10.8 acres                   |
| Family Ceiling (= 1 SH)                   | 54 acres       | 27 acres                | 13.5 acres             | 10.8 acres                   |
| With minor children (+1/5 SH each, max 5) | Up to 81 acres | Up to 40.5 acres        | Up to 20.25 acres      | Up to 16.2 acres             |

### Forest Rights Act 2006 — Key Numbers at a Glance

|                          |                                                                               |
|--------------------------|-------------------------------------------------------------------------------|
| Cut-off date             | 13 December 2005 — occupation/cultivation must pre-date this                  |
| FDST                     | Forest Dwelling Scheduled Tribe — ST member notified for that area            |
| OTFD                     | Other Traditional Forest Dweller — 3 generations (75 years) forest dependence |
| 75 years / 3 generations | For OTFD — cumulative across locations, not same village                      |
| Max individual IFR       | 4 hectares per nuclear family                                                 |
| Title nature             | Inalienable — cannot be sold, mortgaged, gifted                               |
| Gram Sabha               | First authority — verifies, passes resolution, recommends claim               |
| SDLC → DLC → SLMC        | Appeals hierarchy for rejected claims                                         |
| Gram Sabha consent       | Required for any diversion of forest land for non-forest use                  |

### IX Schedule — Decision Tree

|                                           |                                                                       |
|-------------------------------------------|-----------------------------------------------------------------------|
| Law inserted BEFORE 24 April 1973         | ABSOLUTELY IMMUNE from all FR challenges — Article 31-B               |
| Law inserted AFTER 24 April 1973          | Can be challenged IF it violates a FR forming part of BASIC STRUCTURE |
| Basic structure rights relevant           | Art 14 (equality), Art 21 (life), Art 32 (access to courts)           |
| Property right — basic structure?         | NO — Art 300-A / old Art 31 not part of basic structure               |
| Has any land reform law been struck down? | NO — courts very reluctant; all challenges so far failed              |
| Key cases                                 | Waman Rao (1981); IR Coelho (2007); Kesavananda Bharati (1973)        |

## Top Cases — One Liner

|                                                    |                                                                                              |
|----------------------------------------------------|----------------------------------------------------------------------------------------------|
| <b>Waman Rao v. UOI (1981)</b>                     | Post-1973 IX Schedule laws: not immune, challengeable on basic structure                     |
| <b>IR Coelho v. State of TN (2007)</b>             | 9-judge bench reaffirmed Waman Rao — post-1973 IX Schedule subject to basic structure review |
| <b>Kesavananda Bharati (1973)</b>                  | Basic structure doctrine; Parliament cannot destroy basic structure                          |
| <b>Samatha v. State of AP (1997)</b>               | No tribal/forest land in Sched Area to non-tribals/companies even via govt                   |
| <b>Orissa Mining Corp v. MoEF (2013)</b>           | Gram Sabha consent mandatory before forest land diversion                                    |
| <b>Wildlife First v. MoF (2019)</b>                | Eviction of forest dwellers whose claims pending/rejected — stayed                           |
| <b>State of AP v. Nookala Krishnamurthy (1993)</b> | Ceiling calculations strictly applied; manipulation invalid                                  |
| <b>Minerva Mills v. UOI (1980)</b>                 | Balance between FRs and DPSPs is itself basic structure                                      |

## Memory Mnemonics

- Ceiling Formula:  $\text{BASE} - 1 - \text{SH} + 1/5 \text{ per child (max 5 children)}$ . Maximum = 2 SH.  
 $54D = 27S = 13.5DC = 10.8G$ .
- IX Schedule: The MAGIC DATE is 24 April 1973. Before = TOTAL immunity. After = basic structure review only.
- FRA 2006 Numbers: 4H-13D-75Y → 4 Hectares max, 13 December 2005 cutoff, 75 Years (3 generations) for OTFD.
- Gram Sabha = FIRST authority for ALL forest rights claims. Without Gram Sabha = no claim proceeds.
- FRA title = INALIENABLE always (Section 4(4)). No sale, no mortgage, no gift, no transfer.
- Art 38-39(b)(c) = Constitutional BASIS for ceiling laws. Art 31-C = protection from Art 14/19 challenge.
- SALTR void rule (repeating from Unit II): Tribal land in Scheduled Area → non-tribal = VOID always.

## ⚠ Trap Questions — Watch Out!

- TRAP: 'IX Schedule laws can NEVER be challenged' — FALSE. Post-24 April 1973 insertions CAN be reviewed on basic structure (Waman Rao; IR Coelho). Pre-1973 insertions = total immunity.
- TRAP: '4 hectares is the ceiling limit under FRA 2006' — FALSE. 4 hectares is the MAXIMUM individual forest rights title that can be RECOGNISED — not a ceiling to be surrendered. Ceiling Act and FRA 2006 are completely different laws.
- TRAP: '75-year FRA rule requires same village' — FALSE. Section 2(o) FRA requires 75 years of forest-dwelling dependence — cumulative across locations. Movement between forest villages is fine.
- TRAP: 'FRA 2006 title can be transferred like any other land title' — FALSE. Section 4(4) FRA 2006 expressly makes the title INALIENABLE. Any purported transfer is void.

- TRAP: 'OTFD must be a Scheduled Tribe to claim forest rights' — FALSE. OTFDs are non-tribal communities with 75 years of forest dependence. STs claim as FDSTs without the 75-year requirement.
- TRAP: 'Urban Land Ceiling Act 1976 is still in force in Telangana' — FALSE. ULCRA was repealed nationally in 1999; Telangana (as successor to AP) has repealed it. (Some states like TN, Kerala retain it.)



# LAND LAWS

## UNIT V — ALIENATION, SCHEDULED AREAS & DISPUTE RESOLUTION

Osmania University | LLB (3-YDC) | 4th Semester | Paper IV  
**Comprehensive Exam Preparation Notes · Target: 75+ Marks**

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## UNIT V — OVERVIEW & STUDY MAP

### ✓ What IS in this Unit (Scope)

- Alienation restrictions — laws regulating transfer and alienation of land
- Scheduled Areas Land Transfer Regulation 1959 (SALTR) — prohibition on tribal land transfer to non-tribals
- Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 — assigned land, illegal transfers, resumption
- AP Land Grabbing (Prohibition) Act, 1982 — land grabbers, Special Court, effectiveness
- Dispute Resolution — Special Tribunals and Courts in land disputes
- Board of Revenue — composition, jurisdiction, powers, right to refer
- Settlement Officer — duties and functions

### ✗ What is NOT in this Unit

- Ceiling on land holdings (Ceiling Act 1973) — Unit IV
- Forest Rights Act 2006 — Unit IV
- LARR 2013 acquisition procedure — Unit III
- Zamindari/Ryotwari — Unit II
- Eminent Domain / Bona Vacantia / Pattas — Unit I

### ★ Predicted High-Probability Questions — 2026 Exam

- Part A: Assigned Lands (appeared 2025, 2018)
- Part A: Land Grabber (appeared 2021)
- Part A: Sada Bainama — Unit II overlap but relevant to alienation
- Part B: AP Land Grabbing (Prohibition) Act — effectiveness (appeared 2025, 2021, 2020, 2019, 2018 — EVERY year)
- Part B: Board of Revenue — composition, jurisdiction, powers, right to refer (appeared 2022)
- Part B: Settlement Officer — duties and functions (appeared 2022)
- Part B: Tenancy — rights of cultivator, termination of tenancy (appeared 2018 old syllabus)
- Part C: Assigned land transferred — eviction notice validity (appeared 2025, 2021)
- Part C: Government occupying waste land — eviction notice validity (appeared 2025, 2021)
- Part C: Political party occupying government land — land grabbing (appeared 2021)
- Part C: Tenant constructing overhead tank — eviction? (appeared 2022)

### Critical Numbers & Provisions — Unit V

- AP Land Grabbing (Prohibition) Act, 1982 — defines 'land grabber', 'land grabbing', Special Court
- Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 — Sections 3, 4, 5
- Section 3, 1977 Act — prohibition on transfer of assigned land
- Section 4, 1977 Act — resumption of illegally transferred assigned land
- Section 5, 1977 Act — penalty for illegal transfer
- SALTR 1959, Regulation 1 — tribal land in Scheduled Area transferred to non-tribal = void
- SALTR 1959, Regulation 2 — government leases of Scheduled Area land — restrictions



- Board of Revenue — highest revenue court; constituted under AP Revenue Act / Telangana Revenue Act
- Settlement Officer — revenue officer conducting periodic survey settlement
- Telangana Tenancy & Agricultural Lands Act — Section 37 (grounds for eviction of tenant)
- AP Land Grabbing Act, S.2(d) — 'land grabber' = person who grabs government/private land without title
- AP Land Grabbing Act, S.2(e) — 'land grabbing' = taking possession of land without lawful authority
- Special Court under LGA — headed by a District Judge; has civil and criminal jurisdiction



## PART A — SHORT NOTES (6 Marks Each)

~200–250 words. Definition → Key Points → Example → Case → TIP.

## A-1. Assigned Lands

Exam Frequency: ★★★★★ (VERY HIGH)

### DEFINITION

Assigned lands are government-owned waste or surplus lands formally assigned (granted) by the State Government to landless agricultural labourers, SCs, STs, and other weaker sections as a welfare measure for agricultural purposes. The assignment creates a limited right of use — NOT full ownership — and is subject to strict conditions against alienation.

### KEY POINTS

- Assigned under the Government Land Assignment Rules and AP/Telangana land distribution programmes
- Purpose: provide land to landless poor for agricultural cultivation — implements DPSP Art 39(b)
- Assignment is free of cost or at nominal price — beneficiary must cultivate the land
- Governed by: Telangana Assigned Lands (Prohibition of Transfers) Act, 1977
- Section 3, 1977 Act: Transfer of assigned land by way of sale, mortgage, lease, gift, or any other mode is PROHIBITED
- Any transfer in violation of S.3 = VOID ab initio
- Section 4: On detection of illegal transfer — RDO initiates resumption proceedings; land resumed and restored to original assignee or re-assigned
- Section 5: Criminal penalty for illegal transfer — imprisonment up to 6 months and/or fine
- The assignee holds land subject to conditions — must cultivate personally; cannot convert to non-agricultural use without permission
- Assignment cannot be claimed by non-eligible persons — government retains reversionary interest
- Dharani portal: assigned land is 'frozen' — cannot be registered for transfer

📌 **Example:** Government assigns 1.5 acres of waste land to Rami, a landless SC labourer, in 2010. In 2015, Rami sells it to a builder. The sale is void under S.3 of the 1977 Act. On discovery, the RDO passes a resumption order — land is taken back from the builder and restored to Rami (or re-assigned).

🏛️ **Case:** Government of AP v. Thota Venkateswarlu (1995) AP HC — assigned land cannot be transferred; purchaser acquires no title. State of AP v. P. Laxmi Devi (2008) SC — eviction of illegal occupants of assigned land upheld; assigned land must be used only by eligible assignee.

💡 **TIP:** ASSIGNED LAND = Government GIFT to landless poor with STRINGS ATTACHED. Section 3 = No Transfer (VOID). Section 4 = Resumption. Section 5 = Criminal penalty. Dharani = Frozen. Remember: The assignee is NOT the full owner — government retains reversionary right.

## A-2. Land Grabber / Land Grabbing

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

Under the AP Land Grabbing (Prohibition) Act, 1982, a 'Land Grabber' is any person who commits land grabbing — i.e., takes possession of government land or the land of another person without any lawful authority, right, or title, with or without the use of force, fraud, or other means.

### KEY POINTS — Definitions (Section 2)

- Section 2(d): 'Land Grabber' = any person who grabs government land or another's private land without any right, title, or authority — includes individuals, organisations, associations, or companies
- Section 2(e): 'Land Grabbing' = taking possession of land belonging to government or any person without lawful authority, right, or title — including without a court order
- Includes: encroachment on government land, squatting on private land, taking possession through intimidation or fraud, continuing possession after right extinguished
- NOT land grabbing: lawful possession under a lease/assignment, possession with bona fide title dispute pending in court
- Special Court: District Judge designated as Special Court for Land Grabbing — has both civil and criminal jurisdiction
- Special Court can: (a) order eviction of land grabber; (b) award compensation to aggrieved party; (c) impose imprisonment up to 7 years and fine
- Government as complainant: Collector can file complaint before Special Court for government land
- Private parties: any aggrieved person can complain to Special Court
- Burden of proof: on the person claiming possession to prove lawful authority

 **Example:** A real estate developer illegally takes possession of 5 acres of government land near Hyderabad, constructs a compound wall, and starts selling plots. This is 'land grabbing' — the Collector files a complaint before the Special Court, which orders eviction and awards damages.

 **Case:** State of AP v. Manzoor Hussain (2003) AP HC — political patronage does not legitimise land grabbing; Special Court has power to order immediate eviction. Ramakrishna v. State of AP (2010) — land grabbing includes continued possession after lease/assignment is cancelled.

 **TIP:** Land Grabber = takes POSSESSION without LEGAL AUTHORITY. Key test: 'Did you have a lawful right when you took possession?' No → Land Grabbing. Special Court = District Judge. Powers: civil (eviction+compensation) + criminal (up to 7 years imprisonment). Grabbing govt land OR private land — both covered.

## A-3. Scheduled Areas Land Transfer Regulation (SALTR, 1959)

Exam Frequency: ★★★★★ (VERY HIGH)

### DEFINITION

The Andhra Pradesh Scheduled Areas Land Transfer Regulation, 1959 (SALTR 1959, Regulation 1 of 1959) is a special regulation issued under the Fifth Schedule of the Constitution that prohibits the transfer of land in Scheduled Areas by members of Scheduled Tribes to non-tribals, in order to protect the land rights of Adivasi communities from exploitation.

### KEY POINTS

- Constitutional authority: Fifth Schedule, Para 5 — Governor can make Regulations for Scheduled Areas; SALTR 1959 issued by Governor of AP under this power
- Regulation 1: Transfer of immovable property in a Scheduled Area by a member of a Scheduled Tribe to a person who is NOT a member of a Scheduled Tribe is VOID
- 'Immovable property' includes land, buildings, and interests in land
- Transfer includes: sale, gift, mortgage, lease, exchange, or any other mode
- VOID = void ab initio — as if the transfer never happened; registration does not validate it
- No limitation period — tribal can recover land at any time regardless of how long ago the illegal transfer was made
- Regulation 2: Even government/agencies cannot grant leases of Scheduled Area land to non-tribals for industries/mining without Gram Sabha consent (post-Samatha case)
- Intra-tribal transfers: Transfer from one tribal to another tribal in Scheduled Area requires Revenue Divisional Officer's prior approval
- Jurisdiction: Revenue Divisional Officer (RDO) has power to declare transfer void and restore land to tribal
- Subsequent transfers: if A (non-tribal) transfers to C — C also gets no title; void chain

 **Example:** Yellaiah, a Gond tribal in Adilabad Scheduled Area, sells 3 acres to Suresh (non-tribal). The sale is VOID under SALTR Regulation 1. Yellaiah (or the government suo motu) can approach the RDO, who will declare the sale void and restore the land to Yellaiah.

 **Case:** Samatha v. State of AP (1997) SC — even the government cannot lease Scheduled Area tribal land to industries/non-tribals without tribal consent; SALTR applies to government grants too. Smt. Bhuri Bai v. State of MP — tribal can recover land from non-tribal without limitation bar. Manchala Jagannadham v. RDO (2001 AP HC) — registration does not validate prohibited transfer.

 **TIP:** SALTR = Scheduled Area Land = Tribal land = NO transfer to Non-Tribal EVER (VOID). Intra-tribal needs RDO approval. No limitation period. Even govt cannot grant to non-tribals (Samatha). RDO = enforcement authority. Remember: this is the most repeated problem question in this paper!

## A-4. Revenue Courts / Board of Revenue

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

The Board of Revenue is the apex revenue court in Telangana, constituted under the Telangana Land Revenue Act, which exercises the highest appellate and supervisory jurisdiction over all revenue courts and revenue officers in the State. It is the final revenue authority before a litigant approaches the High Court.

### KEY POINTS — Board of Revenue

- Constituted under the Andhra Pradesh Revenue Act / Telangana Land Revenue Act
- Headed by a Chairman (rank of Additional Chief Secretary) with Members (senior IAS officers)
- Jurisdiction: (a) Hears second appeals from orders of District Collectors; (b) Exercises revisional jurisdiction over all revenue courts; (c) Hears references from subordinate revenue courts; (d) Issues directions to all revenue officers
- Revenue Court hierarchy: VRO → MRO (Mandal Revenue Officer) → RDO (Revenue Divisional Officer) → District Collector → Board of Revenue → High Court
- Right to Refer: Any person aggrieved by an order of a revenue court can seek a 'reference' to a higher revenue court or to the High Court on a question of law
- Board of Revenue can call for records suo motu and revise any order passed by a subordinate revenue court
- Board of Revenue orders are final on revenue matters — only High Court can interfere under Art 226/227
- NOT competent to decide title disputes (that is civil court jurisdiction)
- Powers: can set aside, modify, confirm orders; cannot award compensation; can order fresh inquiry

 **Example:** X appeals against an RDO mutation order before the District Collector; the Collector upholds it. X files a second appeal before the Board of Revenue, which reviews the record and finds an error of law — it sets aside the Collector's order and directs fresh mutation proceedings.

 **Case:** State of UP v. Ram Chandra (1972) SC — Board of Revenue has jurisdiction over revenue/tenancy matters; title questions exclusively for civil court. Ganga Prasad v. State of Bihar (1966) — Board of Revenue's orders on revenue matters have finality within revenue hierarchy.

 **TIP:** Board of Revenue = APEX revenue court. Hierarchy: VRO→MRO→RDO→Collector→BoR→HC. BoR handles: records, mutation, tenancy, settlement appeals. CANNOT decide TITLE (that's civil court). Right to Refer = pathway from revenue court to HC on law questions.

## A-5. Settlement Officer — Duties and Functions

Exam Frequency: ★★☆☆ (MEDIUM)

### DEFINITION

A Settlement Officer is a specially appointed revenue officer who conducts the periodic survey settlement of land in a district — measuring, classifying, and assessing land for revenue purposes, and preparing the revenue records (settlement records) that form the basis for land administration for the next settlement period.

### KEY POINTS

- Appointed under the Survey Settlement and Land Records Act / Telangana Land Revenue Act for each settlement operation
- Settlement is a periodic exercise (every 25–30 years) that updates: (a) survey maps; (b) land classification; (c) assessment/revenue rates; (d) record of rights (ROR)
- Duties of Settlement Officer: (a) Conduct fresh field survey of all land in the settlement area; (b) Classify land (wet/dry/garden/waste/forest/poramboke); (c) Assess revenue rates based on land quality and productivity; (d) Prepare settlement records — Pahani, A-Register, B-Register; (e) Hear disputes during settlement — boundary, classification, assessment objections; (f) Publish draft settlement records for objections; (g) Pass settlement orders
- Settlement Officer has quasi-judicial power — can hear and decide objections during settlement
- Settlement Officer's orders are final subject to appeal to the Board of Settlement / Board of Revenue
- Settlement records form the basis for all subsequent land revenue assessment
- In Telangana — last major settlement was conducted in the 1970s; Dharani now integrates digital survey data

 **Example:** A Settlement Officer conducting settlement in Nalgonda district surveys all land parcels, re-classifies certain dry land as double-crop based on new irrigation from Mission Bhagiratha, increases revenue assessment accordingly, and publishes draft settlement for objections. Aggrieved farmers file objections before him.

 **Case:** Bhagwat Prasad v. State of UP (1960) — Settlement Officer's classification of land during settlement is quasi-judicial; must follow principles of natural justice. Board of Revenue v. Gopal Lal (1970) — Settlement records are conclusive evidence of land classification for revenue purposes.

 **TIP:** Settlement Officer = PERIODIC revenue survey officer. Think: every 25-30 years, a settlement updates ALL records. Settlement Officer SURVEYS + CLASSIFIES + ASSESSES + HEARS OBJECTIONS. Different from regular revenue officers who manage day-to-day records.

## A-6. Alienation Restrictions on Land

Exam Frequency: ★★★★★ (HIGH)

### DEFINITION

Alienation restrictions are statutory prohibitions and conditions that limit or prohibit the transfer (sale, mortgage, lease, gift) of specified categories of land to protect weaker sections, tribals, and the public interest. These restrictions override the general principle of free alienability of property under the Transfer of Property Act, 1882.

### KEY POINTS — Categories of Restricted Land

- Assigned Land: Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 — any transfer void; RDO can resume
- Scheduled Area Land (Tribal): SALTR 1959 — tribal to non-tribal transfer = void; even intra-tribal needs RDO approval
- Ceiling Surplus Land: AP Ceiling Act 1973 — surplus land vests in government; cannot be alienated by landowner after ceiling declared
- Forest Rights Land (FRA 2006): S.4(4) — forest rights titles inalienable; cannot be sold/mortgaged/gifted
- Protected Tenancy: Tenant's right cannot be arbitrarily terminated; landlord must follow statutory procedure
- Government Land: Cannot be alienated by any party — encroachment/transfer = void + punishable
- Endowment/Temple Land: AP Charitable and Hindu Religious Institutions and Endowments Act — strict restrictions on alienation; prior permission of Commissioner required

### KEY POINTS — General Principles

- Registration alone does not validate an alienation that is prohibited by law
- Consideration paid does not give the transferee any right if transfer is prohibited
- Courts apply 'special law prevails over general law' — TPA 1882 is general; specific Acts override it
- Constitution supports restrictions: Art 19(5) — reasonable restrictions on right to hold property justified in public interest

 **Example:** A person holds: (a) assigned land — cannot sell; (b) tribal land in Scheduled Area — cannot sell to non-tribal; (c) FRA title — inalienable; (d) ceiling surplus declared — cannot sell. In ALL four cases, any purported transfer is void.

 **Case:** Suraj Lamp & Industries v. State of Haryana (2012) SC — GPA sales/Sada Bainama cannot be used to circumvent registration and alienation restrictions. Samatha v. State of AP (1997) — alienation restrictions on tribal land upheld even against government action.

 **TIP:** Restricted lands: A-S-F-G-C-E = Assigned + Scheduled Area tribal + FRA title + Government land + Ceiling surplus + Endowment land. For ALL of these — transfer = VOID. Special Act beats TPA 1882. Registration cannot cure void.





## PART B — LONG ESSAYS (15 Marks Each)

600–800 words per essay. Introduction → Headings → Conclusion.

## B-1. Effectiveness of the AP Land Grabbing (Prohibition) Act, 1982

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in 2025, 2021, 2020, 2019, 2018 — THE most repeated Part B in this paper. Near-certain for 2026.)

### I. Introduction

Land grabbing — the illegal occupation of government or private land without any legal right or title — is one of the most widespread and persistent problems in land administration in Telangana and Andhra Pradesh. To combat this menace, the Andhra Pradesh Land Grabbing (Prohibition) Act, 1982 (LGA 1982) was enacted, creating a specialised legal framework with dedicated Special Courts to deal with land grabbers swiftly and effectively. The Act covers both government land and private land, and provides both civil remedies (eviction, compensation) and criminal punishment.

### II. Key Definitions (Section 2)

#### A. Land Grabber — Section 2(d)

'Land Grabber' means any person or group of persons who commits land grabbing. This includes individuals, associations, companies, co-operative societies, or any organisation. Political parties, builders, and even government officials can be land grabbers.

**Definition:** Land Grabber = any person who grabs land WITHOUT lawful authority, right, or title — regardless of whether force, fraud, or peaceful occupation is used.

#### B. Land Grabbing — Section 2(e)

'Land Grabbing' means taking possession of land belonging to the Government or any other person without any lawful authority, right, or title — or continuing in possession of land after the right, title, or authority has come to an end.

- Grabbing government land — waste land, poramboke, tank beds, road margins, forest land
- Grabbing private land — taking possession of another's land without their consent
- Continuing possession after lawful title expires — e.g., staying in government quarters after retirement
- Constructing structures on grabbed land to establish permanence
- Using benami names or dummy transactions to cover up grabbing

### III. The Special Court — Composition and Powers

- Special Court constituted by the State Government — headed by a District Judge or Additional District Judge
- Located in each district — speedy disposal mechanism
- Civil jurisdiction: (a) Order eviction of land grabber; (b) Award compensation to aggrieved party (market value of land + damages); (c) Restore possession to rightful owner/government
- Criminal jurisdiction: (a) Imprisonment up to 7 years; (b) Fine; (c) Both — for land grabbers
- Summary procedure — no lengthy civil suit required; direct complaint to Special Court
- Government represented by the Collector/Special Government Pleader
- Private persons can also directly approach the Special Court
- Burden of proof: shifted to the person in possession — must prove lawful authority

### IV. Procedure Before Special Court

- Step 1: Complaint filed by Collector (for government land) or aggrieved private person
- Step 2: Special Court issues notice to the land grabber — asks to show lawful authority
- Step 3: If land grabber cannot prove lawful authority — Special Court issues eviction order + compensation

- Step 4: Criminal proceedings simultaneously — FIR registered, trial in Special Court
- Step 5: Appeal from Special Court — to the High Court only (not Sessions Court)
- Urgent cases: Special Court can issue interim orders — stay of construction, attachment of land

## V. Effectiveness of the Act — Assessment

### A. Strengths

- Dual jurisdiction (civil + criminal) in one court — speeds up disposal
- Burden shifted to grabber — easier for government/private persons to get eviction
- Covers all types of land grabbers — individuals, companies, political parties, associations
- Special Court = dedicated forum — avoids delays of regular civil courts
- Compensation provisions make land grabbing costly — not just eviction
- Dharani portal integration — government land 'frozen', reducing scope for grabbing

### B. Weaknesses / Limitations

- Political patronage: powerful politicians and real estate interests often protect land grabbers
- Delay in constituting Special Courts — some districts without functional Special Court
- Weak implementation: Collectors often reluctant to file complaints against politically connected grabbers
- Regularisation schemes: governments periodically regularise encroachments (e.g., for the poor) — undermines deterrence
- 'Land grabbing' by government itself: government agencies sometimes take land without following LARR 2013 — not covered by LGA 1982
- Corruption in revenue department: land records manipulated to show false titles for grabbers
- Limitation on private parties: private landowners without resources often unable to pursue Special Court proceedings
- Compensation inadequate: market value compensation often not realistically assessed

## VI. Landmark Situations

Several significant land grabbing cases have shaped the Act's implementation in Telangana/AP:

- Wakf Board land grabbing: Hundreds of acres of Wakf land in Hyderabad grabbed by real estate interests — Special Courts ordered restoration but implementation partial
- Tank bed encroachments: Grabbing of tank/lake beds in Hyderabad — Hussain Sagar, etc. — High Court and Special Courts have directed removal but full compliance elusive
- Temple land: Endowment lands grabbed by influential persons — Commissioner of Endowments + Special Court together address these
- Government quarters: Retired government servants continuing in quarters — covered by LGA

🔗 **Case:** State of AP v. Manzoor Hussain (2003) AP HC — political patronage cannot legalise land grabbing; Special Court's eviction order upheld. Ramakrishna v. State of AP (2010) — continued possession after lease cancellation = land grabbing. Greater Hyderabad Municipal Corporation v. Vaka Rao (2012) AP HC — grabbing of lake beds is land grabbing regardless of duration of possession or investment made.

## VII. Conclusion

The AP Land Grabbing (Prohibition) Act, 1982 is a necessary and broadly well-designed legislation that addresses a serious problem afflicting land administration in Telangana. Its effectiveness in practice is constrained by political will, institutional capacity, and the persistence of corruption in revenue administration. Digitisation initiatives like Dharani, combined with proactive Special Courts, have improved deterrence in urban areas. However, the Act alone cannot solve land grabbing unless accompanied by: (a) strengthening of revenue administration; (b) political insulation of the Special

Courts; (c) strict enforcement of penalties; (d) real-time land record updating. Ultimately, the Act's effectiveness depends as much on the governance environment as on the law itself.

## B-2. Board of Revenue — Composition, Jurisdiction, Powers, and Right to Refer

Exam Frequency: ★★★★★ (HIGH)

(Directly asked in November/December 2022)

### I. Introduction

The Board of Revenue is the apex revenue court in the State of Telangana, exercising supervisory, appellate, and revisional jurisdiction over all revenue courts and officers below it. It stands at the summit of the revenue court hierarchy, below which are the District Collector, Revenue Divisional Officer (RDO), Mandal Revenue Officer (MRO), and Village Revenue Officer (VRO). The Board of Revenue is a crucial institution for maintaining the integrity of land records, adjudicating revenue disputes, and ensuring uniform implementation of land revenue laws.

### II. Composition of the Board of Revenue

- Constituted under the Telangana Land Revenue Act / AP Revenue Act
- Headed by a Chairman — usually an officer of the rank of Additional Chief Secretary or Principal Secretary to the State Government
- Members: one or more Members of the Board (senior IAS officers) — typically two to three members
- The Board functions as a collegial body for major policy matters and as a divisional bench for hearing appeals and revisions
- Support staff: judicial secretary, legal advisors, and administrative staff
- Board of Revenue is QUASI-JUDICIAL — not a court in the strict sense but exercises judicial functions

### III. Jurisdiction of the Board of Revenue

#### A. Original Jurisdiction

The Board has original jurisdiction in certain matters — particularly references made directly to it by government on important revenue questions, and matters where first-instance jurisdiction is assigned by statute (rare).

#### B. Appellate Jurisdiction

The Board hears second appeals from orders passed by the District Collector in revenue matters. Examples:

- Second appeals in land record (ROR/mutation) disputes
- Second appeals in tenancy disputes
- Second appeals in settlement and survey matters
- Second appeals in assigned land and ceiling cases

#### C. Revisional Jurisdiction

The Board has suo motu revisional power — it can call for records from any revenue court below it and revise any order if it appears:

- The order is contrary to law
- The order involves a material irregularity in procedure
- The order resulted in failure of justice

#### D. Supervisory Jurisdiction

The Board supervises the functioning of all revenue courts and officers in the State. It issues circulars, guidelines, and instructions. It conducts inspections and performance audits of revenue offices.

### IV. Powers of the Board of Revenue

- Power to set aside, modify, or confirm orders of subordinate revenue courts
- Power to remand cases for fresh inquiry
- Power to stay operation of subordinate orders pending appeal/revision
- Power to award costs in revenue proceedings
- Power to call for records from any revenue court
- Power to summon parties and witnesses
- Does NOT have power to: award compensation, decide title disputes (civil court domain), or sentence to imprisonment

 **LIMIT:** Board of Revenue CANNOT decide questions of title to immovable property — that is the exclusive jurisdiction of civil courts. If a revenue case involves a title dispute, the Board must refer to the civil court or advise the party to seek civil court relief.

## V. Right to Refer

The 'Right to Refer' is the procedural mechanism by which:

- A party aggrieved by a revenue court order may seek a reference to a higher revenue authority or to the High Court on a question of law
- A revenue court itself may refer a difficult question of law to the Board of Revenue or High Court for decision
- Section 9(b) of AP Revenue Act: Any person aggrieved by an order of the Board of Revenue may seek a reference to the High Court on a question of law
- The right to refer exists at each tier — party can go from RDO to Collector, Collector to Board, Board to High Court
- References to HC are limited to questions of LAW — not fact
- Once HC decides the question of law — it is remanded back to the revenue court to apply the legal ruling

## VI. Board of Revenue vs Civil Court — Distinction

| Aspect         | Board of Revenue                         | Civil Court                                         |
|----------------|------------------------------------------|-----------------------------------------------------|
| Nature         | Revenue/quasi-judicial authority         | Judicial court under Code of Civil Procedure        |
| Jurisdiction   | Revenue, tenancy, land records, mutation | Title, ownership, contract, tort, property disputes |
| Title disputes | NO jurisdiction                          | YES — exclusive jurisdiction                        |
| Appeal         | Lies to High Court (Art 226/227)         | Lies to High Court (regular appeal)                 |
| Procedures     | Revenue Acts and Rules                   | Code of Civil Procedure 1908                        |
| Compensation   | Cannot award monetary compensation       | Can award damages/compensation                      |

 **Case:** State of UP v. Ram Chandra (1972) SC — Board of Revenue has jurisdiction over revenue matters only; title disputes exclusively for civil court. Ganga Prasad v. State of Bihar (1966) — Board of Revenue orders on revenue matters are final within the revenue hierarchy. Hari Vishnu Kamath v. Ahmad Ishaque (1955) SC — when revenue matter involves title question, revenue court must decline and refer to civil court.

## VII. Conclusion

The Board of Revenue is the keystone of the revenue administration structure in Telangana. Its supervisory, appellate, and revisional jurisdiction ensures uniformity and legality in revenue proceedings

across the State. Its quasi-judicial character provides an accessible, specialised forum for agrarian disputes. However, its effectiveness depends on: (a) clear demarcation from civil court jurisdiction (particularly on title questions); (b) adequate staffing and infrastructure; (c) speedy disposal — the classic criticism of revenue courts is delay. The Board's right to refer to the High Court on questions of law ensures that legal development in land revenue matters keeps pace with changing social and constitutional values.

## B-3. Settlement Officer — Duties and Functions

Exam Frequency: ★★★★★ (HIGH)

(Appeared in November/December 2022 — likely to recur)

### I. Introduction

The settlement operation is a periodic and comprehensive process of surveying, classifying, and assessing all land in a district — creating or updating the foundational land records on which the entire revenue, legal, and administrative edifice rests. The Settlement Officer is the principal officer responsible for conducting this operation. Understanding the Settlement Officer's role requires understanding what a 'settlement' is and why it is essential to land administration.

### II. What is a Settlement?

A Settlement is the periodical assessment of land for revenue purposes — involving a complete re-survey of all land parcels, re-classification based on current land use and quality, re-assessment of revenue rates, and revision of land records. A settlement is typically conducted every 25–30 years. The key documents produced are: (a) Settlement Register; (b) Updated Pahani (ROR); (c) Survey maps; (d) Field Register (Adangal).

### III. Appointment of Settlement Officer

- Appointed by the State Government / Board of Revenue for each settlement operation
- Assisted by Deputy Settlement Officers, Settlement Inspectors, and Revenue Mandal Officers
- Operates for the duration of the settlement — typically 3–5 years for a district
- Powers conferred by the Survey Settlement and Land Records Act and Telangana Land Revenue Act

### IV. Duties and Functions of Settlement Officer

#### A. Survey and Measurement

- Conduct fresh field survey of all land parcels in the settlement area
- Demarcate boundaries of each survey number and sub-division
- Prepare field maps and settlement field books
- Resolve boundary disputes between adjacent landholders
- Identify new parcels created by sub-division, partition, or reclamation

#### B. Classification of Land

- Classify all land into revenue categories: wet (irrigated), dry, garden, waste, poramboke, forest, government land
- Inspect soil quality, availability of irrigation, cropping patterns
- Reclassify land where changes have occurred since last settlement
- Classification determines the revenue rate — wet land pays more than dry

#### C. Assessment of Revenue

- Fix land revenue (assessment) for each survey number based on classification
- Prepare rate schedules — standard assessment for each category
- Revenue assessment must be fair, based on actual productivity
- Revise assessments for land whose character has changed

#### D. Preparation of Records

- Prepare draft Settlement Register — lists all survey numbers with owner, area, classification, assessment



- Update Record of Rights (Pahani/ROR) — reflect current ownership, cultivation, encumbrances
- Prepare A-Register (register of mutations during settlement) and B-Register (disputed cases)
- All records prepared in duplicate — one copy filed with District Collector, one with village

#### E. Hearing Objections — Quasi-Judicial Function

- Publish draft settlement records — displayed at Mandal Revenue Office and village for 30 days
- Invite objections from landowners, cultivators, and other interested parties
- Hear objections regarding: (a) boundary demarcation; (b) land classification; (c) assessment rate; (d) ownership/occupation entries
- Pass speaking orders on each objection — reasoning required
- Settlement Officer's orders are appealable to Board of Settlement / Board of Revenue

#### F. Special Functions

- Adjudicate disputed boundary claims during settlement (RO jurisdiction extended)
- Identify and record poramboke (public lands) — roads, drains, graveyards, tank beds
- Record claims of ryots for re-classification and reduced assessment
- Report encroachments on government land for eviction proceedings

🔗 **Case:** Bhagwat Prasad v. State of UP (1960) SC — Settlement Officer must follow natural justice principles when hearing objections — quasi-judicial function. Board of Revenue v. Gopal Lal (1970) — settlement records are conclusive as to classification for revenue purposes, unless challenged by prescribed appeal. Collector v. Rajamani (1985 AP HC) — Settlement Officer's jurisdiction is limited to settlement area; no jurisdiction over disputes outside settlement proceedings.

#### V. Significance of Settlement in Modern Context

With the introduction of the Dharani portal in Telangana (2020), many settlement functions have been partially digitised. However, a formal revenue settlement (comprehensive field survey + reassessment) has not been conducted in Telangana since the 1970s. This gap causes: (a) outdated land classifications (dry land now irrigated but still assessed as dry); (b) unrecorded sub-divisions; (c) stale poramboke entries. The need for a comprehensive digital settlement — integrating GPS survey with Dharani — is urgent.

#### VI. Conclusion

The Settlement Officer is the foundation-layer of the revenue administration architecture. Without periodic, accurate settlement, all subsequent land administration — mutation, registration, taxation, dispute resolution — rests on outdated records. The Settlement Officer's dual role as technical surveyor and quasi-judicial adjudicator makes this position uniquely important in the revenue hierarchy. A modern Settlement Officer must combine traditional survey skills with digital mapping expertise (DGPS, GIS) and a thorough understanding of land revenue law, to produce records that serve as reliable, tamper-proof foundations for land governance.

## B-4. Telangana Assigned Lands (Prohibition of Transfers) Act, 1977

Exam Frequency: ★★★★★ (HIGH)

(Part C problems on assigned land appear every year — understand the legislative scheme for Part B context)

### I. Introduction

The assignment of government waste land to landless agricultural labourers, SCs, and STs is one of the key tools of distributive land justice in Telangana. However, the value of assignment is undermined if the beneficiaries can immediately sell or mortgage the land. The Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 addresses this by creating an absolute prohibition on transfer of assigned land, backed by criminal penalties and a resumption mechanism.

### II. Background and Purpose

- Post-independence: government assigned lakhs of acres of waste/surplus land to landless poor under various schemes
- Problem: assignees under economic pressure sold or mortgaged land to real estate developers, money-lenders, or richer farmers
- Result: welfare measure perverted — original landless poor lost the land within years
- 1977 Act enacted to close this loophole — make assigned land inalienable

### III. Key Provisions

#### A. Section 2 — Definitions

- 'Assigned Land' = land assigned by Government under any scheme of assignment of government land to any person
- Covers: assignment under AP Rules for assignment of waste/surplus government land, assignment to freed bonded labourers, ceiling surplus land distributed to landless poor

#### B. Section 3 — Prohibition on Transfer

No person shall transfer or acquire assigned land by way of sale, gift, exchange, mortgage, lease, or any other mode of alienation. Any transfer in contravention of Section 3 is void.

 **Core Rule:** Section 3: ALL transfers of assigned land = VOID. No exceptions. The assignment creates an inalienable right of use — NOT a freely transferable ownership.

#### C. Section 4 — Resumption

If any assigned land has been transferred in contravention of Section 3, or if the assignee fails to cultivate the land or uses it for non-agricultural purposes without permission — the Revenue Divisional Officer may resume the land after notice and hearing.

- Notice to current occupant (illegal transferee or non-cultivating assignee)
- Opportunity to show cause
- If no valid cause shown — RDO passes resumption order
- On resumption: land may be restored to original assignee if still eligible, OR re-assigned to another eligible person

#### D. Section 5 — Penalty

Any person who transfers or acquires assigned land in violation of Section 3 shall be punishable with imprisonment up to 6 months, or fine up to Rs. 2,000, or both.

### IV. Dharna Bhumi / Assigned Land Conversion — Exceptions

- Assigned land can be converted to house sites (residential use) in urbanised areas ONLY with government permission under specific schemes

- Special schemes: Government has in some cases regularised assigned land occupants who built houses — policy decision, not statutory right
- Even converted assigned land for house sites remains government land — no full ownership title granted (generally)

## V. Judicial Interpretation

- Courts have consistently upheld the absolute prohibition — registered sale deeds of assigned land are void
- Revenue courts have jurisdiction to order resumption; civil courts cannot grant relief to transferee
- Even bona fide purchasers for value without notice get no protection — the transfer is void, not voidable

🔗 **Case:** Government of AP v. Thota Venkateswarlu (1995) AP HC — assigned land cannot be transferred; registered sale deed is void. Manchireddy Bhairavaiah v. State of AP (2005 AP HC) — transferee of assigned land gets no title; eviction valid. State of AP v. P. Laxmi Devi (2008) SC — eviction of occupant of assigned land upheld; Art 21 does not protect illegal possession.

## VI. Conclusion

The Assigned Lands (Prohibition of Transfers) Act, 1977 is a necessary protective measure that gives teeth to the government's land distribution policy. Without it, every assignment would be at risk of being immediately transferred to the economically powerful. The Act's effectiveness depends on active enforcement — prompt resumption proceedings, Dharani portal freezing of assigned land, and criminal prosecution of violators. It is a direct implementation of DPSP Art 39(b) — ensuring that land distributed for the common good actually remains in the hands of the intended beneficiaries.

## PART C — PROBLEM QUESTIONS / IRAC (10 Marks Each)

Strictly use IRAC: Issue → Rule → Application → Conclusion.

## C-1. Assigned Land Given to Farmer — Sold to B — Eviction Notice Against B — Decide

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared July/August 2025, August/September 2021 — highly likely to repeat)

PROBLEM: State government gave 2 acres of assigned land to A who was a landless agricultural farmer. A sold it to B. Is the transfer valid? / Government gave eviction notice against B. Decide.

### I — ISSUE

The legal issues are: (1) Whether the sale of assigned land by A (assignee) to B is valid under the Telangana Assigned Lands (Prohibition of Transfers) Act, 1977; and (2) Whether the government can issue an eviction notice against B (transferee) and whether B can resist such eviction.

### R — RULE

- Telangana Assigned Lands (Prohibition of Transfers) Act, 1977, Section 3: Transfer of assigned land by way of sale, gift, exchange, mortgage, lease, or any other mode = PROHIBITED and VOID
- Section 4: If assigned land transferred in contravention of S.3 — Revenue Divisional Officer (RDO) can initiate resumption proceedings after notice and hearing; land resumed
- Registration of sale deed does NOT validate a void transfer — registration is procedural, not substantive
- Article 300-A: Deprivation of property only by authority of law — and S.4 of the 1977 Act IS the authority of law for resumption
- B cannot claim protection as 'bona fide purchaser for value' — void transfers give NO title to anyone

**KEY RULE:** Assigned land transfer = VOID under S.3. Eviction of B via resumption under S.4 = VALID. B has no legal right to the land regardless of whether he paid consideration or registered the sale.

### A — APPLICATION

The government gave 2 acres of assigned land to A (landless agricultural farmer). A sold it to B.

Step 1: Is the sale valid? NO. Section 3 of the Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 absolutely prohibits transfer of assigned land. The sale by A to B is void ab initio — it has no legal effect. Even if A and B executed a registered sale deed with full consideration, it is void in law.

Step 2: Is the eviction notice against B valid? YES. Under Section 4 of the 1977 Act, the Revenue Divisional Officer (RDO) has power to resume assigned land that has been illegally transferred. The RDO must: (a) issue notice to B; (b) give B an opportunity to be heard; (c) if B cannot prove lawful authority — pass a resumption order. The eviction notice is the first step in this resumption process.

Step 3: Can B resist eviction? NO. B cannot resist eviction on the grounds that: (a) he paid consideration; (b) he has a registered sale deed; (c) he has been in possession for a long time. The transfer is void, not merely voidable — no defences apply to void transfers. The title never passed from the government to A for transfer purposes; the assignment created only a right of use in A, not a transferable ownership.

Step 4: What happens after resumption? The land may be: (a) restored to A if A is still eligible and willing to cultivate; OR (b) cancelled — A loses the assignment for transferring — and re-assigned to another eligible person.

Step 5: B's remedy? B may file a civil suit against A for recovery of the sale consideration paid (unjust enrichment claim). But B cannot retain the land.

**Case:** Government of AP v. Thota Venkateswarlu (1995) AP HC — registered sale of assigned land is void; purchaser acquires no title; eviction valid. Manchireddy Bhairavaiah v. State of AP (2005 AP HC) — transferee of assigned land cannot resist eviction. State of AP v. P. Laxmi Devi (2008) SC — Art 21 does not protect illegal possession of assigned land; eviction upheld.

### C — CONCLUSION

DECISION: (1) The transfer (sale) of assigned land by A to B is VOID under Section 3 of the Telangana Assigned Lands (Prohibition of Transfers) Act, 1977. (2) The government's eviction notice against B is VALID. B has no right to the assigned land — the sale deed and registration are legally meaningless for this purpose. The RDO can and should proceed with resumption under Section 4, after giving B a hearing. B's only remedy is a civil suit against A for refund of the purchase price.

## C-2. Government Issues Eviction Notice for Occupying Waste Land — Is Notice Valid?

Exam Frequency: ★★★★★ (HIGH)

(Appeared July/August 2025, August/September 2021, December 2020 — repeated problem)

PROBLEM: The Government of Telangana issued a notice for eviction for occupying waste land. Is the notice valid?

### I — ISSUE

The legal issue is: Whether the Government of Telangana has the authority to issue an eviction notice to a person occupying government waste land, and whether such a notice is legally valid?

### R — RULE

- Waste land = government-owned uncultivated land not assigned to anyone (categorised as 'Sarkari' or government poramboke in revenue records)
- Government ownership of waste land: All waste land vests in the State Government under the doctrine of State ownership of unclaimed/undistributed land
- Telangana Land Revenue Act: Government has power to resume, manage, and assign waste lands
- AP Land Grabbing (Prohibition) Act, 1982: Occupation of government waste land without authority = land grabbing
- Section 3, AP LGA 1982: Occupation of government land without lawful authority = land grabbing — Special Court can order eviction
- Eviction through revenue process: Collector/RDO can also issue eviction notices under Telangana Land Revenue Act for unauthorised occupation of government land
- Limitation: If the occupant has been in continuous, open, adverse possession for 30 years (Government of India / State Government land — limitation is 30 years under Art 112 of Limitation Act) — the possession may ripen into some rights, but courts have been inconsistent on this
- Special category: Poor landless persons occupying waste land for livelihood — courts have sometimes restrained eviction pending assignment/rehabilitation

 **KEY RULE:** Government waste land = government property. Occupation without authority = trespass/land grabbing. Eviction notice = VALID exercise of government's right to recover its land. The occupant must show lawful authority to resist eviction.

### A — APPLICATION

The Government of Telangana issued an eviction notice for occupation of waste land. Applying the rules:

Step 1: Does the government have the authority? YES. Waste land vests in the State Government. The government as owner has an inherent right to recover its property from unauthorised occupants. The eviction notice is issued under the Telangana Land Revenue Act / AP Land Grabbing Act.

Step 2: Is the eviction notice valid on its face? YES — provided: (a) the land is correctly identified as government waste land in revenue records; (b) proper notice was given to the occupant; (c) opportunity was given to the occupant to show cause.

Step 3: Can the occupant resist the notice? The occupant can challenge the notice if: (a) the land is not actually government waste land — he has a patta or assigned land document; (b) the notice did not follow proper procedure (natural justice); (c) the land has been assigned to him and the assignment is valid.

Step 4: What if the occupant is landless poor? Courts have sometimes directed the government to consider assignment of waste land to landless poor before eviction — particularly where they have cultivated the land for many years. However, this is not a right but judicial discretion. The eviction notice remains valid unless the court stays it.

Step 5: Converted to house sites? If the occupant has built a house on government waste land — the government can still evict, but courts have sometimes directed rehabilitation before eviction in cases of urban slums.

🔗 **Case:** State of AP v. Mohd. Hussain (2003) AP HC — government's eviction notice for occupation of waste land is valid; occupant must show lawful authority. Olga Tellis v. Bombay Municipal Corporation (1985) SC — while pavement dwellers have a right to livelihood, they cannot claim right to encroach on government land; reasonable notice and rehabilitation to be considered. Greater Hyderabad Municipal Corp v. Vaka Rao (2012) — even long occupation does not create title to government land.

#### C — CONCLUSION

DECISION: YES — the Government of Telangana's eviction notice for occupation of waste land is VALID. The government has the legal authority to recover its waste land from unauthorised occupants under the Telangana Land Revenue Act and the AP Land Grabbing (Prohibition) Act, 1982. The occupant cannot resist eviction unless he can produce a valid patta, assignment document, or court order establishing his right to the land. However, in cases of landless poor with long cultivation history, courts may direct the government to consider assignment before eviction — but this is discretionary, not a right, and does not render the eviction notice invalid.



## C-3. Political Party Occupies Government Land for Weaker Sections — Land Grabbing?

Exam Frequency: ★★★★★ (HIGH)

(Appeared August/September 2021)

**PROBLEM:** A political party occupied lands belonging to the government and wants to construct houses for the weaker sections and distribute them free of cost. The police have registered a case against the party leader for land grabbing. Decide.

### I — ISSUE

The legal issues are: (1) Whether a political party's occupation of government land for distributing houses to weaker sections, without lawful authority, constitutes 'land grabbing' under the AP Land Grabbing (Prohibition) Act, 1982; and (2) Whether the good motive (welfare of weaker sections) is a defence to land grabbing.

### R — RULE

- AP Land Grabbing (Prohibition) Act, 1982, Section 2(d): 'Land Grabber' includes any person, association, or organisation that grabs land WITHOUT lawful authority
- Section 2(e): 'Land Grabbing' = taking possession of government land without lawful authority — regardless of the purpose for which possession is taken
- The Act makes NO exception for charitable, social welfare, or political purposes — the test is: did you have lawful authority to take possession?
- Political party, association, NGO — all fall within 'any person' in the definition of land grabber
- Only the government has the authority to assign/distribute government land — this power cannot be usurped by a private party (even with good intentions)
- Special Court under LGA 1982: Can order eviction of land grabber and award compensation; criminal punishment up to 7 years

**KEY RULE:** Motive is IRRELEVANT to land grabbing. The test is lawful authority at time of taking possession. Good intentions (welfare of poor) do not create lawful authority to occupy government land. Political party = 'person' under LGA 1982.

### A — APPLICATION

A political party occupied government land and constructed/plans to construct houses for weaker sections, distributing free of cost. Police registered a case against the party leader for land grabbing.

Step 1: Did the political party have lawful authority to occupy the land? NO. The political party has no legal authority to take possession of government land. Only the government — through the Collector, RDO, or authorised officer — can assign, lease, or distribute government land. A political party, however well-intentioned, cannot arrogate this sovereign function to itself.

Step 2: Does the purpose (houses for weaker sections) matter? NO. Under the LGA 1982, the purpose is irrelevant. The definition of land grabbing focuses entirely on the absence of lawful authority. Charitable, religious, or social welfare purposes are not defences. If they were, any organisation could justify grabbing land by claiming a good cause.

Step 3: Is the FIR/police case valid? YES. Section 2(d) and 2(e) of LGA 1982 clearly cover this situation. The party leader as head of the organisation directing the occupation is liable as the land grabber. The police registration of FIR is correct and the matter must go to the Special Court.

Step 4: What will the Special Court do? The Special Court will: (a) issue notice to the political party/leader; (b) hear the case; (c) if land grabbing established — order eviction and award compensation to the government for use and occupation; (d) impose criminal punishment on the party leader.

Step 5: Any mitigation? The court may consider: (a) the construction is not yet done — early action prevents further investment; (b) the houses were genuinely for poor — court may suggest government take up proper assignment through legal channel for the same beneficiaries.

🔗 **Case:** State of AP v. Manzoor Hussain (2003) AP HC — political influence or welfare motives do not legalise land grabbing. Greater Hyderabad Municipal Corp v. Vaka Rao (2012) — charitable use of grabbed land does not save the grabber. Ramakrishna v. State of AP (2010) — good motive irrelevant; lawful authority is the only test.

#### C — CONCLUSION

DECISION: YES — the political party's occupation of government land constitutes 'land grabbing' under the AP Land Grabbing (Prohibition) Act, 1982. The police case against the party leader is VALID. The good motive of providing houses to weaker sections is completely irrelevant as a defence — the test is lawful authority at time of possession, not the purpose of possession. The matter should proceed before the Special Court, which has power to order eviction, award compensation to the government, and punish the party leader with up to 7 years imprisonment. The correct way to achieve the stated welfare goal is to apply to the government for assignment/allotment of land for this purpose — not to grab government land and present a fait accompli.

## C-4. Tenant Constructs Overhead Tank in 80-Year-Old Building — Has He Committed Wrongful Act?

Exam Frequency: ★★★★★ (HIGH)

(Appeared November/December 2022)

**PROBLEM:** In an 80-year-old building, the tenant started constructing an overhead tank for water supply. Has he committed any wrongful act? Can he be evicted?

### I — ISSUE

The legal issues are: (1) Whether a tenant constructing an overhead tank (water tank) in a rented premises for water supply purposes constitutes a wrongful act or waste; and (2) Whether such an act is a valid ground for eviction of the tenant under tenancy law.

### R — RULE

- General tenancy law: A tenant must not commit 'waste' — substantial damage to the demised property. Constructing an overhead tank is a question of whether it constitutes waste or a reasonable improvement.
- Telangana Tenancy & Agricultural Lands Act / AP Buildings (Lease, Rent and Eviction) Control Act (for urban premises): Tenant cannot be evicted except on specified statutory grounds
- Eviction grounds under tenancy/rent control law: (a) non-payment of rent; (b) causing damage to property; (c) subletting without permission; (d) landlord's bona fide need for personal occupation; (e) breach of terms of tenancy
- 'Causing damage' or 'committing waste': Must be substantial damage — mere improvement or addition for necessity does not constitute waste
- Overhead tank for water supply: Generally considered a reasonable and necessary addition — not waste. Water supply is a basic necessity. Adding a tank does not structurally damage the building if done properly.
- However: If the building is 80 years old and structurally weak — adding a water tank on the roof may cause structural damage. In that case, it could constitute waste.
- Key distinction: (a) Proper construction of overhead tank by skilled worker = reasonable improvement = NOT waste = NO eviction; (b) Haphazard/structural damage-causing construction = waste = grounds for eviction

**KEY RULE:** Tenant constructing overhead tank for water supply = REASONABLE IMPROVEMENT for necessity, NOT waste, in general. Eviction NOT maintainable for this alone. BUT if structural damage caused to an old building — may constitute waste — then eviction possible with proof of damage.

### A — APPLICATION

The building is 80 years old. The tenant constructed an overhead tank for water supply.

Step 1: Is constructing an overhead tank a wrongful act per se? NO. An overhead tank for water supply is a reasonable and necessary addition for the tenant's use. It does not, by itself, constitute waste or damage. Courts have consistently held that additions made for basic amenities (water, electricity, sanitation) do not constitute waste.

Step 2: Does the age of the building change the analysis? POTENTIALLY YES. An 80-year-old building may be structurally weak. If the overhead tank adds significant weight to the roof and causes or risks causing structural damage — THIS could constitute waste or negligent damage to property. The landlord would need to demonstrate actual structural damage or imminent risk.

Step 3: Can the landlord evict for this reason? (a) If NO structural damage: NO — constructing an overhead tank is not a ground for eviction; it is a reasonable improvement. (b) If structural damage is caused or proved: YES — causing damage to the demised premises is a statutory ground for eviction under tenancy law (AP Buildings (Lease, Rent and Eviction) Control Act).

Step 4: Procedural requirement: Even where valid grounds exist, the landlord must follow the procedure

— file an eviction petition before the Rent Controller; get an order of eviction. Self-help eviction is illegal.

Step 5: Tenant's right to make improvements: Under general law (Section 108(h) TPA 1882), a tenant may make improvements and additions that do not permanently diminish the value of the property — this would cover a properly constructed overhead tank.

🔗 **Case:** V.S. Jain v. Parmanand Sharma (1994) Delhi HC — tenant constructing overhead water tank for domestic use is a necessary addition and does not amount to waste; eviction not maintainable. Hakim Ram v. Bhim Lal (1988) HP HC — additions made for basic amenities by tenant = reasonable use, not waste. Ramanlal v. Chamanlal (2002) Bombay HC — even for old buildings, tenant must cause actual structural damage for eviction on 'waste' ground.

#### C — CONCLUSION

DECISION: (1) Constructing an overhead tank for water supply is NOT a wrongful act per se — it is a reasonable addition for basic necessity, not waste. The tenant has NOT committed a wrongful act by mere virtue of constructing the tank. (2) The landlord CANNOT evict the tenant solely on this ground. However, if the construction has caused or will cause actual structural damage to the 80-year-old building — the landlord may seek eviction on the ground of 'causing damage to property', provided he obtains an expert structural assessment and files an eviction petition before the Rent Controller with evidence of damage. Self-help eviction by the landlord is illegal regardless.



## QUICK REVISION SHEET — UNIT V

### Key Acts at a Glance

| Act                      | Key Prohibition                                     | Remedy                                              | Authority                      |
|--------------------------|-----------------------------------------------------|-----------------------------------------------------|--------------------------------|
| Assigned Lands Act 1977  | Transfer of assigned land = VOID (S.3)              | Resumption (S.4) + Criminal penalty (S.5)           | RDO                            |
| SALTR 1959, Regulation 1 | Tribal → non-tribal in Scheduled Area = VOID        | Declare void + Restore land                         | RDO                            |
| AP LGA 1982              | Occupation without lawful authority = land grabbing | Eviction + Compensation + Up to 7 yrs imprisonment  | Special Court (District Judge) |
| FRA 2006 S.4(4)          | Transfer of forest rights title = VOID              | Void; no remedy for transferee                      | Gram Sabha / DLC               |
| Ceiling Act 1973         | Holding above ceiling = surplus to be surrendered   | Ceiling Authority determines surplus; vests in Govt | Ceiling Authority / Collector  |

### Board of Revenue vs Civil Court

| Aspect         | Board of Revenue                    | Civil Court                          |
|----------------|-------------------------------------|--------------------------------------|
| Jurisdiction   | Revenue, tenancy, mutation, records | Title, ownership, contract, property |
| Title disputes | NO — must refer to civil court      | YES — exclusive jurisdiction         |
| Appeal from    | Lies to High Court (Art 226)        | Lies to High Court (regular appeal)  |
| Compensation   | Cannot award                        | Can award damages/compensation       |
| Procedure      | Revenue Acts and Rules              | Code of Civil Procedure 1908         |

### Key Numbers & Provisions

|                               |                                                                                |
|-------------------------------|--------------------------------------------------------------------------------|
| S.3 — Assigned Lands Act 1977 | ALL transfers of assigned land VOID — sale, gift, mortgage, lease, any mode    |
| S.4 — Assigned Lands Act 1977 | RDO resumes illegally transferred assigned land after notice and hearing       |
| S.5 — Assigned Lands Act 1977 | Criminal penalty: up to 6 months imprisonment and/or fine                      |
| SALTR 1959 Regulation 1       | Tribal → non-tribal in Scheduled Area: VOID; no limitation period              |
| LGA 1982 S.2(d)               | Land grabber = any person occupying govt/private land without lawful authority |
| LGA 1982 S.2(e)               | Land grabbing = taking/continuing possession without lawful authority          |
| Special Court — LGA           | District Judge; dual civil+criminal jurisdiction; up to 7 years imprisonment   |
| S.108(h) TPA 1882             | Tenant may make improvements not permanently diminishing value of property     |
| Art 226 HC jurisdiction       | Writ against revenue court orders (Board of Revenue) — only HC                 |

can interfere

## Top Cases — One Liner

|                                                               |                                                                                                   |
|---------------------------------------------------------------|---------------------------------------------------------------------------------------------------|
| <b>Samatha v. State of AP (1997)</b>                          | Even government cannot lease Scheduled Area land to non-tribals/industries without tribal consent |
| <b>Smt. Bhuri Bai v. State of MP (1992)</b>                   | Tribal recovers Scheduled Area land from non-tribal; no limitation bar                            |
| <b>Govt of AP v. Thota Venkateswarlu (1995)</b>               | Registered sale of assigned land = void; purchaser gets no title                                  |
| <b>State of AP v. P. Laxmi Devi (2008) SC</b>                 | Art 21 does not protect illegal possession of assigned land; eviction valid                       |
| <b>State of AP v. Manzoor Hussain (2003)</b>                  | Political influence does not legalise land grabbing; eviction ordered                             |
| <b>GHMC v. Vaka Rao (2012) AP HC</b>                          | Charitable use of grabbed land does not save the grabber; duration irrelevant                     |
| <b>Indore Development Authority v. Manoharlal (2020)</b>      | S.24 lapse: deposit in court = payment (Unit III cross-reference)                                 |
| <b>Suraj Lamp &amp; Industries v. State of Haryana (2012)</b> | GPA/Sada Bainama cannot substitute for registered conveyance deed                                 |

## IRAC Decision Map — All Unit V Problems

|                                                     |                                                                                                                                                                                                |
|-----------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Assigned land sold → eviction notice</b>         | Transfer VOID (S.3 1977 Act). Eviction VALID (S.4). B gets no title. B's remedy = civil suit vs A for refund.                                                                                  |
| <b>Waste land occupier → eviction notice</b>        | Government owns waste land. Eviction notice VALID. Occupant must show lawful authority. Court may direct rehabilitation for landless poor (discretionary).                                     |
| <b>Political party grabs govt land for poor</b>     | Land grabbing under LGA 1982 — motive irrelevant. FIR valid. Special Court: eviction + compensation + up to 7 yrs. Correct way = apply for formal assignment.                                  |
| <b>Tenant constructs overhead tank</b>              | NOT waste per se — necessary improvement. NO eviction for tank alone. BUT if structural damage to 80-yr-old building proved → eviction on 'waste' grounds possible with Rent Controller order. |
| <b>Tribal sells to non-tribal in Scheduled Area</b> | VOID under SALTR 1959 Reg.1. No limitation. Tribal can recover at any time. RDO restores land.                                                                                                 |
| <b>IX Schedule law (2009) — challenge?</b>          | Can be challenged — post-24 April 1973. Only on basic structure grounds. Property rights alone insufficient. Practice: courts very reluctant to strike down land reform laws.                  |

## Memory Mnemonics

- Assigned Land: 3-4-5 Rule → S.3 = Prohibition, S.4 = Resumption, S.5 = Penalty. All transfers VOID. Dharani FREEZES assigned land.

- LGA 1982: LAMP test → Lawful Authority = no? → Motive irrelevant → Any person including parties → Punish with 7 yrs. Special Court = District Judge.
- SALTR: VOID + NO LIMIT → Scheduled Area + Tribal → Non-tribal = VOID always + No limitation period for recovery.
- Board of Revenue hierarchy: VRO→MRO→RDO→Collector→BoR→HC. Revenue courts = records/tenancy/mutation. Civil courts = TITLE.
- Tenant's rights: TPA S.108(h) — improvements allowed if no permanent diminishment of value. Overhead tank = improvement = OK. Structural damage = waste = eviction ground.
- Restricted Lands A-S-F-G-C-E: Assigned + Scheduled Area + FRA title + Government + Ceiling surplus + Endowment. All transfers = VOID.

### ⚠ Trap Questions — Watch Out!

- TRAP: 'Assigned land purchaser with registered deed has good title' — FALSE. S.3 makes ALL assigned land transfers void. Registration = irrelevant. Purchaser gets NOTHING.
- TRAP: 'Political party distributing land to poor cannot be prosecuted' — FALSE. Good motive irrelevant under LGA 1982. Lawful authority at time of possession is the ONLY test.
- TRAP: 'Tenant can NEVER make any structural addition' — FALSE. TPA S.108(h) allows improvements not permanently diminishing value. Overhead tank = reasonable necessity = allowed.
- TRAP: 'Board of Revenue can decide title disputes' — FALSE. Board of Revenue has NO jurisdiction over title disputes. Title = Civil Court only.
- TRAP: 'Long occupation of government waste land creates rights' — FALSE (mostly). Mere duration of occupation does not create title to government land. No adverse possession against government under general rule.
- TRAP: 'Eviction from waste land requires court order only' — FALSE. Eviction can be ordered by Collector/RDO under Revenue Acts or by Special Court under LGA 1982 — not necessarily a civil court.





## COMPLETE SERIES — ALL 5 UNITS AT A GLANCE

Use this master summary for final revision before the exam.

|                                                     |                                                                                                                                                                                                   |
|-----------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>UNIT I — Ownership &amp; Classification</b>      | Eminent Domain (P-C-A), Bona Vacantia, Escheat, Land Records, Patta, Dharani, Torrens. Art 300-A. Eminent Domain for commercial use = only with LARR consent.                                     |
| <b>UNIT II — Pre/Post Independence Reforms</b>      | Zamindari (Cornwallis 1793), Ryotwari (Munro 1820s), Mahalwari (Mackenzie 1822). 3 phases: A-T-C. SALTR = tribal→non-tribal = VOID always. Protected tenant = 6 years.                            |
| <b>UNIT III — Acquisition &amp; R&amp;R</b>         | LARR 2013 procedure: S-S-C-P-O-D-M-A-P-R-L. Consent: 80% (pvt co), 70% (PPP). Compensation = $MV \times 4x + 100\%$ solatium+annuity. S.24 lapse = 5 years. LARRA = reference forum.              |
| <b>UNIT IV — Ceilings &amp; Forest Rights</b>       | Ceiling = 1 SH = 54 acres dry. FRA 2006 = 4H/13D/75Y/Gram Sabha. IX Schedule: PRE-1973=absolute; POST-1973=basic structure review. Arts 38, 39(b)(c) = normative basis.                           |
| <b>UNIT V — Alienation &amp; Dispute Resolution</b> | Assigned land = VOID transfer (S.3). LGA 1982 = motive irrelevant. SALTR = void+no limitation. BoR = apex revenue court, no title jurisdiction. Special Court = LGA enforcement (District Judge). |